PERSONAL INFORMATION

Name_____

Address_____

City, State, Zip_____

Phone/Office Phone_____

E-Mail_____

IN CASE OF EMERGENCY NOTIFY:

Name_____

Phone_____

Rights Reserved. The president and officers of Defiance College reserve the right to change regulations affecting students should it be deemed necessary and appropriate in the interest of the students or of the College to do so. The only official interpretations of student policies and regulations are those which are made in writing by the President, and/or the Dean of Students.

DEFIANCE COLLEGE

To Know ◆ To Lead ◆ To Serve ◆ To Understand

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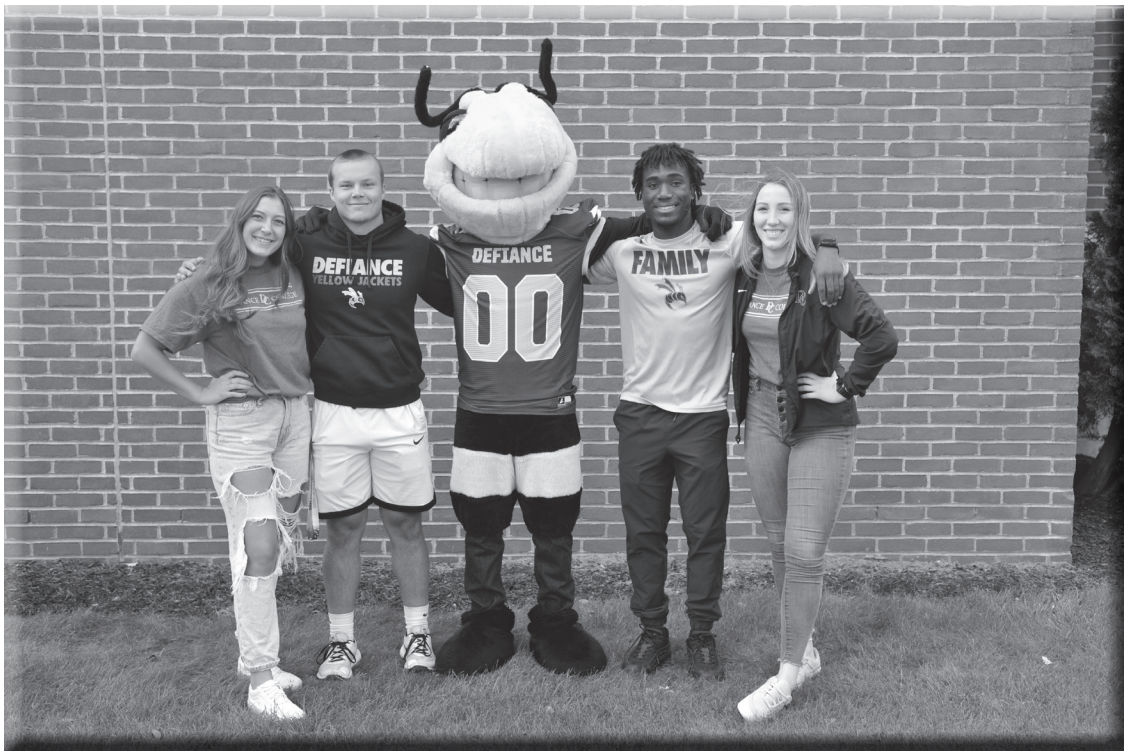
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WELCOME

DEFIANCE COLLEGE
To Know ◆ To Lead ◆ To Serve ◆ To Understand

Fellow Yellow Jackets!

A new school year is upon us and we are excited to welcome our returning students back to the campus while also celebrating the arrival of many new students. The beginning of an academic year is always a time of excitement and anticipation.

The contents of this handbook should help you during this journey we call “college” and should serve as a handy reference. In addition, we invite you to use the calendar/planner as a tool to manage your busy college life. We implore you to “engage” in your college experience. Be active, both in your academic coursework and in the wide array of co-curricular opportunities available at DC. You will be enriched, and of course so will the College. Our goal for each of you is that you become so busy with your studies and your activities that this calendar/planner becomes indispensable!

We all have one simple professional goal: we want your college experience to be a complete success. Let us know if there is something that we can do to help you achieve that goal. All of us, whether student, faculty, or staff, have high goals that we want to achieve in this coming year. We hope that the new academic year brings you success as you continue to grow and challenge yourself.

The staff of Student Life wishes you good luck!

The Office of Student Life

DEFIANCE COLLEGE COVENANT

Defiance College is a community of learners dedicated to nurturing the whole person of each of its members. We seek to inspire a commitment to know the truth, to understand our world, and the diverse cultures within it, to lead within our professions, and to serve our families, our communities, and our world as responsible citizens.

As a member of the Defiance College community…
I will respect the dignity and worth of each person.
I will recognize the importance of interpersonal relationships and of a caring community.
I will strongly advocate honest and open intellectual inquiry and academic freedom.
I will trust that truths, in all their complexities, are ultimately interrelated.
I will move beyond tolerance and acceptance to understanding and appreciation of religious, cultural, and individual diversity.
I will recognize the privilege and responsibility of my stewardship for individuals, for institutions, and for the resources of the natural world.
I will commit myself to serving others as an expression of faith and a way of life enrichment and fulfillment.

This statement is intended as a reflection of the central values of Defiance College. It is designed to be discussed and supported by the entire Defiance College community with the understanding that it is always a "work in progress."

* Adapted from the University of South Carolina's The Carolinian Creed and from the Defiance College statement covenantal status as a United Church of Christ related college.

DEFIANCE COLLEGE MISSION

Defiance College graduates students to lead distinctive lives in their chosen professions through a spirit of service by preparing them To Know, To Understand, To Lead, and To Serve.

DEFIANCE COLLEGE MISSION

Holistic Learning and Adaptability for Life.
Prepared Professionals.
Community Leaders.
Civic Stewards.

EDUCATIONAL PHILOSOPHY

Defiance College emphasizes learning based on the four pillars of its mission, "to know, to understand, to lead, and to serve." Within the tradition of liberal education, students experience broadly based learning in communication skills, critical thinking, moral development, the examination of global societies, and the abilities needed to function within a diverse society. Studies within the humanities, arts, sciences, and social sciences lead to an understanding of the complex, diverse world in which we live.

Because superior learning is a natural outcome of learning with engagement, the College strives to ensure that traditional liberal education is actively connected to the real world. Learning at Defiance is characterized by forging intellectual connections and engagement of the mind with the environment, the self with others, the individual with community, generality with context, and deliberation with action. As a result, students are expected to combine knowledge and understanding with active leadership and service as they develop reasoning abilities, superior professional skills, a well-developed sense of self and moral judgment, and an understanding of their civic roles and responsibilities.

Superior learning is realized through active engagement in undergraduate research, service learning, and campus organizations and activities. It is shared and expanded through interaction with like professionals and in leadership opportunities, cooperative education and internships, and partnerships with local, regional, national, and international organizations. The Defiance College education will provide students with the knowledge and experiences necessary for the improvement of the world of tomorrow.

NON-DISCRIMINATION POLICY

Defiance College adheres to all federal and state civil rights laws prohibiting discrimination in private institutions of higher education Defiance College does not discriminate against any employee, applicant for employment, student or applicant for admission on the basis of race, ethnicity, religion, national origin, sex, gender, gender identity/expression, sexual orientation, age, disability, genetic information, marital status, or veteran status in administration of its admission, financial aid, employment, and academic policies and practices, as well as the College's athletic programs and other college-administered programs, services, and activities. The College will abide by all applicable requirements of state and federal law prohibiting discrimination. Any inquiries regarding the College's nondiscrimination policies should be directed to: For employees, Director of Human Resources/Deputy Title IX Coordinator, 106F, Defiance Hall, 419-783-2360 or for Students, the Dean of Students/Title IX Coordinator, 128 Hubbard Hall, 419-783-2437.

It is expected that all members of the College community will abide by this non-discrimination policy and that no member of the campus community shall discriminate against another member of the campus community on any of these grounds. Any student who wishes to report a violation of this Policy should promptly report the matter to the Dean of Students in the Office of Student Life (Hubbard 128) for documentation and investigation. If the complaint is against the Dean of Students, the reporting person should file the complaint with the President.

STUDENT LIFE MISSION STATEMENT

The Division of Student Life is an integral part of the Defiance College community dedicated to developing the whole person. The Division promotes dynamic and inclusive co-curricular learning experiences that contribute to the academic, career, and personal success of Defiance College students.

To achieve this mission, we will:

1. Engage students in meaningful learning experiences by providing programs, services, opportunities, and initiatives that promote overall student development, retention, and persistence to graduation;

2. Cultivate an inclusive and diverse global community where civility, service to others, respect, and personal responsibility are valued and expected;

3. Create a campus environment that meets students evolving cultural, spiritual, physical, social, and facilities needs;

4. Sustain and strengthen partnerships with Academic Affairs to support the mission of Defiance College; and

5. Recruit and retain a competent, professional, welcoming student life staff and provide them with the tools and resources needed to successfully achieve their goals and objectives.

STUDENT LIFE

ACCESSIBILITY SERVICES

Location: Defiance Hall 201 & 202
Hours: M – F 8:00 am to 4:30 pm and by appointment
Assistant Dean for Campus Wellness & Director of Counseling & Accessibility Services - Kris Knight
Defiance Hall 201 B ext. 2548, kknight@defiance.edu
Accessibilities Services Coordinator & Counseling Center Case Manager - Nikki Arnold
Defiance Hall 202 B ext. 2445, narold@defiance.edu

Accessibility Services assists students with documented disabilities to receive reasonable accommodation to promote equal access to educational opportunities. The types of disabilities can include learning/intellectual, medical, and/or mental health. Some of the many ways staff assist students include: determining eligibility, establishing reasonable accommodations, serving as advocates for students, and individual consultations. Students must register with Accessibility Services to receive accommodations, and students are encouraged to do so as early as possible (accommodations are not retroactive). Students can schedule an appointment to register for Accessibility Services by contacting Kris or Nikki directly or at accessibility@defiance.com. Students should plan to bring documentation of their disability. Common examples of documentation include: IEPs, 504s, recommendations from medical doctor, psychiatrist, or counselor. Accessibility Services staff can also assist students to obtain necessary documentation if the student does not have it immediately available. All services are provided in compliance with the provisions of the Americans with Disabilities Act (ADA) of 1990 and the Rehabilitation Act of 1973 (Section 504).

CAMPUS SAFETY

Location: McCann Desk in Hubbard Hall
Hours: 24 hours
Phone: extension 2625

COUNSELING SERVICES

Location: Defiance Hall 201 & 202
Hours: M – F 8:00 am to 5:00 pm and by appointment
Phone: Scheduling - ext. 2562
Assistant Dean for Campus Wellness & Director of Counseling & Accessibility Services -
Kris Knight
Defiance Hall 201 B ext. 2548, kknight@defiance.edu

The Counseling Center provides free and confidential consultation, assessment, individual, group, couple's and family therapy to Defiance College students. Students utilize Counseling Services for a variety of reasons including: stress, difficulty coping with life events, depression and other mood issues, anxiety, relationship issues, struggling with self-worth, eating or body image concerns, alcohol or drug use, sexual assault, and many others.

If you would like to talk to someone in the Counseling Center, you can call (ext. 2562) or walk in (Defiance 201) to speak to someone or make an appointment. You can also email counseling@defiance.edu to schedule an appointment. We do ask that all students coming to the Center fill out some initial paperwork prior to being seen by our staff, unless it's an emergency or crisis appointment.

Outside of office hours, students in crisis may contact one of the Counseling Center clinicians by calling 419 783-2562. Students in crisis may call the DC Security Desk (419-783-2625 and ask to be connected to a counselor, or call First Call for Help (dial 211).

HEALTH RESOURCES

Defiance College's Health Center, located in Serrick Center room 218, is staffed by a nurse practitioner for two hours a day, four days a week. In addition to this on-campus resource, there are a number of healthcare options available (see the list below) within a short drive of Defiance College. These medical facilities provide a wide variety of services that benefit the needs of our students. If you're in need of help finding a provider or need to access health and immunization records you've provided to the College, contact Kris Knight, Assistant Dean of Campus Wellness & Director of Counseling & Accessibility Services at kknight@defiance.edu or call x2548.

ProMedica Defiance Regional Hospital (1.0 miles from campus)
1200 Ralston Ave, Defiance, Ohio 43512
Phone: 419-783-6955
Website: https://www.promedica.org/defiance-regional-hospital/Pages/default.aspx
Offers Express Care (located in the Emergency Room) to treat minor injuries or illnesses that need immediate attention. Express Care services are available Monday-Friday from 3pm-10pm and Weekends and Holidays from 1pm-10pm. They accept most health insurance plans that include ProMedica facilities. Cash, personal checks, Visa, MasterCard, and American Express are also accepted at the time of service.

Mercy Health - Defiance Clinic (1.8 miles from campus)
1400 E. Second Street, Defiance, Ohio 43512
Phone: 419-784-1414
Website: http://www.mercyweb.org/
Offers Urgent Care services to provide extended physician hours seven days a week. Appointments are not necessary, but patients are asked to call ahead if possible. Urgent Care is located inside the East Entrance of the Clinic. The hours of operation are Monday-Friday from 9am-9pm, Saturday from 9am-5pm and Sunday from 1pm-5pm.

Defiance County General Heath District (1.8 miles from campus)
1300 E. Second Street, Defiance, Ohio 43512
Phone: 419-784-3818
Website: http://www.defiancecohealth.org/
Offers immunizations and limited health screenings. Immunizations are available the 1st and 3rd Wednesday of the month from 8:30am-10:30am and 2pm-4pm. Health screening and testing are available the 1st and 3rd Wednesday of the month but at varying times depending on the type of screening. Please check the website to see the complete list of screenings and times.

There are also three pharmacies within walking distance of the campus.

INTRAMURAL SPORTS

Location: George M. Smart Athletic Center & Green Space between Residence Halls
Hours: various, depending on intramural sport and season
Phone: 419-783-2562

The DC Intramural Sports Program provides Defiance College students, faculty and staff an opportunity to experience competition as an individual or as a member of an organized group in a wide variety of sports and recreational activities. Active participation by students, faculty and staff as players and student officials are integral to the success of the DC IM Sports Program. Some of the activities include: Sand Volleyball, Volleyball, 5-on-5 Basketball, Frisbee Golf, Ping Pong, Euchre, Indoor Soccer, 3-on-3 Basketball and more. Information about specific activities is posted in the DC Student Events Google Calendar.

OFFICE OF VETERAN, TRANSFER & ADULT STUDENT SUPPORT

Location: Defiance Hall 109
Hours: M – F 8:00 am to 4:30 pm
VTC Student Support Coordinator - - Mike Winslow
ext. 2313, mwinslow@defiance.edu

This office is an information and advocacy center for veteran, transfer, and commuter students (VTC). VTC staff helps students navigate campus offices, resources and processes, as well as providing referrals to off campus community service resources, as needed. Mike is located in Hubbard Hall 109 and can be reached at 419-783-2313 or emailed at mwinslow@defiance.edu.

RESIDENCE LIFE/HOUSING

Location: Hubbard 128
Hours: M – F 8:00 am to 4:30 pm
Phone: extension 2563

The Office of Residence Life and its staff coordinate a comprehensive system of services for residential students. This department is committed to providing an on-campus living environment that supports student learning and growth. Residence Life staff also assist students with everyday issues, including roommate conflict resolution, maintenance requests, housekeeping requests, social programming, and housing selection. A more detailed list of policies and procedures for on-campus living is included in the Residence Life section of this handbook.

SPIRITUAL LIFE

Defiance College is related to the United Church of Christ, and St. John UCC is located next to campus. Ford Chapel, located in Schauffler Hall, provides a setting for worship services and private meditation on campus.

STUDENT LIFE *cont'd*

STUDENT ACTIVITIES

Location: Hubbard 125
Hours: M – F 8:00 am to 4:30 pm
Phone: extension 2388

This office is responsible for scheduling positive co-curricular activities for students on and off campus. The programs enhance the social, educational, and cultural experiences for students at Defiance College. The Office of Student Activities is responsible for large-scale programming such as Friends & Family Weekend, Homecoming, DC Movie days, and Senior Sendoff. Other past events have included concerts, comedians, and hypnotists as well as trips off-campus for hockey games, bowling, and more. The Director of Student Activities advises the Campus Activities Board (CAB), oversees student organizations, and the creation of new organizations. All students are welcome to be active in as many organizations as they desire. Meeting times for various organizations are advertised frequently around campus.

STUDENT BELONGINGNESS

Location: Hubbard 132
Hours: M – F 8:00 am to 4:30 pm
Phone: extension 2563

The Office of Student Belongingness (OSB) was established to foster a community at Defiance College that embraces and celebrates a welcoming and inclusive environment amongst all students, faculty and staff. The Office of Student Belongingness promotes a holistic approach to academic and personal growth through educational and co-curricular programming that supports and encourages a welcoming campus community for all students. The office also oversees the Jacket Care Corner which is the campus food pantry established in 2019.

STUDENT LIFE OFFICE

Location: Hubbard Hall Room 128
Hours: M – F 8:00 am to 4:30 pm
Phone: extension 2437

This office houses the Dean of Students while also providing administrative and management support for the entire Student Life division. The Office of Student Life promotes a student-centered campus environment and supports student learning and development outside the classroom. The Dean of Students is available to all students as an outlet for any concerns they may have during their Defiance College experience. This office also manages student discipline, campus safety, and the dining services program.

SUCCESS SERVICES

Director: Lisa Crumit-Hancock, Assistant Vice President & Registrar
Location: Pilgrim Library
Phone extension: 2332
Website: https://library.defiance.edu/successservices

ALL OF YOUR ACADEMIC SUPPORT IN ONE BUILDING

Success Services at Defiance College encompasses the Pilgrim Library, Academic Support Center (ASC), Writing Studio, Structured Study Program (SSP – Study Tables), DC F1RST, and DC Pathways to Academic Student Success (DC PASS) as well as the First-Year Experience (FYE) program and several other academic retention initiatives.

LIBRARY

Director: Assistant VP & Registrar Lisa Crumit-Hancock
Normal Semester Hours: Monday through Thursday – 8:00 am to 11:00pm; Friday – 8:00 am to 8:00 pm; Saturday – 9:00 am – 1:00 pm; Sunday – 12:00 pm to 11:00pm
Phone: extension 2481
Website: library.defiance.edu

The mission of the Pilgrim Library is to contribute to effective teaching, learning, and research at Defiance College, by promoting information literacy, by providing diverse information resources that support the curriculum, by collaborating with faculty to further the academic success of student, and by actively preserving and presenting Defiance College's rich history for current and past students as well as the larger community.

STAFF: The most valuable resource in the Pilgrim Library is the staff. The library staff offers a wide range of research and reference assistance. This help may be face-to-face, via email, through chat, or by means of scheduled individual or group instruction.

Library staff are available Monday- Friday 8am-11pm. The library staff can be reached through email (library@defiance.edu), or chat via the library's main webpage (https://library.defiance.edu)

JACKET Search: Research is a key component to academic success. Pilgrim Library's JACKET Search (https://library.defiance.edu) provides a one-stop portal to meet those research needs with free access, through OhioLINK, to over 46 million print and 100,000 ebooks, thousands of images, videos, and sounds; 58,000 theses, and unique historical images and manuscripts. Millions of articles from 12,000 electronic journals and 150 databases can also be searched. Some databases provide only citations to journal articles, while others offer full-text articles or links to full-text documents. This tool is available from off-campus but requires a valid Defiance College ID number to gain access.

ACCESS: The Pilgrim Library houses over 65,000 books, some print journals and newspapers, and a small media collection. **A valid Defiance College ID is necessary to check out all materials.**

BORROWING & FEES: We encourage students to utilize library resources responsibly. Most items, with the exception of electronic devices such as digital cameras and laptops, may be checked out for a period of three (3) weeks and be renewed up to six (6) times. Due date and overdue notices are sent via email. **It is the student's responsibility to renew their materials.** After 30 days all items are considered lost, and the student is automatically charged set processing and billing fees; regardless of price or condition of the borrowed materials. **These process and billing fees total $50 per item PLUS the cost of replacement!** Failure to receive overdue notices or bills does not exempt the patron from payment. Nonpayment may result in the withholding of grades, transcripts, and/or diplomas. Outstanding amounts due will be forwarded to the Business Office to be added to tuition accounts on a monthly basis. Once the replacement fees are forwarded, students must contact the Business Office to pay the fines.

INTER-LIBRARY LOAN (ILL): Materials not held by any OhioLINK library may still be available from other sources using interlibrary loan. These items are often available at no charge. Periodical articles not available in the Pilgrim Library can also be requested through interlibrary loan. Use the Interlibrary Loan Request form available on the library web site to request items.

COURSE RESERVES: Faculty members often place selected materials on reserve at the information desk. Designated circulation times are: two hours-library use only, one day, two weeks, or other time periods. Overdue items designated "two hours-library only" will be fined at the rate of $.50 per hour. All others will be fined at the regular library rate. Users of two hour-library only reserve materials must leave a valid Defiance College ID at the desk while using reserve materials.

COMPUTERS: A 21-seat PC lab is located inside and to the right of the main library entrance. A Defiance College login is required to use lab computers. Lab printing options from all workstations are to either a large capacity, high-speed network printer or a color ($.25 per page) printer. There is also wireless printing available from your own device. A scanner is also available for student use. All computers have the normal suite of lab applications found in other campus computer labs.
Classes are occasionally scheduled in this area. When a class is not scheduled, the lab may be used by students. A white board is utilized to announce any reservations of the main floor lab as well as an announcement on @ DCSuccessSrvcs social media platforms. Wireless internet access is available to all registered students on both floors of the library. Additionally, the library provides a laptop loaner service. Students can check out one of ten Windows laptops or one of three MAC laptops for up to 72 hours.

FOOD/DRINK POLICY: Food and drinks are allowed for your studying while in the library. However, be respectful and please clean up after yourself.

ACADEMIC SUPPORT CENTER
Director: Jordan Gehring
Location: Pilgrim Library lower level
Hours: Sun 7-10pm, M-T 9am-10pm, and F 9am-4:30pm
Phone extension: 2495
Website: https//library.defiance.edu/ASC

The primary objective of the Academic Support Center (ASC) is to provide undergraduate students at Defiance College with resources and opportunities to improve their ability to learn and to achieve academic success by assisting them with various types of support when needed. Specifically, ASC focuses on assisting students with STEM related courses, but can provide assistance with other courses offered at DC. ASC provides the following services:

- **Supplemental Instruction for select courses in Math and Sciences**
  Supplemental Instruction (SI) is a free academic assistance program that uses peer-led group study to help students succeed in traditionally difficult courses. SI leaders, who are peer students that have previously completed the targeted course and demonstrated proficiency, facilitate sessions twice a week. The SI sessions allow the leader to review course material, provide group study strategies, and simulate collaborative study techniques specific to a course. Check in the ASC or online each semester for the courses with SI, the list of SI leaders, and the SI study group meeting days/times.
- **Tutoring**
  Individual and group tutoring is available through trained peer tutors for most courses at no cost to students. Students should schedule tutors as soon as possible early in the semester, though requests for tutoring are accepted throughout the semester. Math tutors are available for drop-in or scheduled appointments during specific hours each semester. In addition to face-to-face peer tutoring, ASC also provides online tutoring through the OhioLINK eTutoring platform available to students via the internet using their DC email. For more information, go to: https://library.defiance.edu/ASC/eTutoring

- **STEM Computer Lab**
  The ASC' STEM Computer Lab provides students in STEM majors with laptop workstations set-up with simulation and programming software that can used for success in their Math, Natural and Applied Science, and Computer Science courses and for furthering their knowledge of their field of study.
- **Study Skills Development Workshops**
  Effective study skills are successful strategies for approaching course work and overall learning. ASC recognizes that effective study skills are critical to success in college, especially STEM courses. Each semester a series of free study skill workshops are available for students. Individual study skill consultations are also available by appointment.

WRITING STUDIO
Director: Assistant VP & Registrar Lisa Crumit-Hancock
Location: Pilgrim Library (to the left as you enter the building)
Hours: Sun 7-10pm, M-T 9am-10pm, and F 9am-4:30pm
Website: https://library.defiance.edu/writingstudio

The Writing Studio provides students with assistance on their papers, projects, and reports from peer writing consultants. Writing Consultants provide students with private, individualized help to develop strategies for approaching their assignments through a better understanding of purpose, structure, topic, and audience. Writing Consultants, recommended by faculty after completing the composition coursework at DC, are trained to help writers with any stage of the writing process, but are not proofreaders. The Writing Studio also hosts a series of writing skill workshops each semester to provide opportunities for students to learn some quick strategies for improving their written communication. In addition, the Writing Studio also provides free online writing assistance through the OhioLINK eTutoring platform, which is available to all students via the internet using their DC email. For more information go to: https://library.defiance.edu/ASC/eTutoring.

STRUCTURED STUDY PROGRAM (SSP)
The Structured Study Program or SSP provides arranged and organized study tables for Defiance College students involved in athletics and any students in need of academic structure. SSP creates a resource-rich environment where students can get coursework done free of distractions and where students can access the academic assistance they may need to improve study skills. Sessions are offered throughout the week and must be scheduled with Success Services.

DC F1RST
This program supports first generation college students through a peer mentor program. Students selected each fall for the program are assigned a mentor and attend monthly workshops tied to research-based topics for success. Successful completion of the program awards book vouchers to participants.

DC PASS
DC Pathways to Academic Student Success (DC PASS), a program for conditionally admitted students, uses an asset-minded approach to college academic achievement as well as a financial incentive to motivate students towards this achievement. The program involves bi-weekly meetings with an assigned faculty advisor, attendance at academic workshops, and enrollment in a success skills course in the fall semester. Successful academic achievement each semester results in a book voucher for participants.

CAMPUS SERVICES & RESOURCES

ACADEMIC ADVISING
Defiance College provides close attention to individuals. At the core of this individual concern is the advisory system and access to professors. All students are assigned a faculty advisor in their major discipline upon enrolling at Defiance College. Students declare majors and may request an advisor change in the Registrar's Office. Students are encouraged to work closely with their academic advisors throughout their college careers. Advisors are prepared to counsel students on selection of courses, assist with academic functions such as experiential learning, academic second chance paperwork or course substitutions, and career and graduate school advice.

ADMISSIONS FOR UNDERGRADUATE AND GRADUATE STUDENTS
Location: First Floor, 112 Serrick Campus Center
Hours: M – F 8:00 am to 4:30 pm. Saturdays (September to May by appointment, with evening hours available and posted during this time.)
Phone: extension 2359
The Office of Admissions counsels prospective college students and their families in the college selection process. The Office of Admissions seeks to connect prospective students with various campus personnel and resources according to the students' academic and co-curricular interests. Additionally, the Office receives and processes applications and determines admission for undergraduate and graduate admission as well as international students. Students who do not meet admissions requirements are sent to the Academic Review Committee for a decision. The Admissions Office also receives and processes re-enrollment applications and serves as a liaison between the Registrar's Office and returning students ensuring a smooth transition.
The Office arranges campus visits for prospective students and their families. A meeting with an admissions counselor, campus tours, classroom sessions, meetings with faculty, meeting with a coach, and meals in our dining hall can all be a part of the visit experience. If you would like to invite a prospective student to visit the campus, please contact the Office of Admissions to make arrangements a few days in advance.

ATHLETICS
Office Locations: Karl H. Weaner Community Center and George M. Smart Athletic Center
Phone: extension 2342
More detailed information on the policies and procedures of the Athletic Department are included in the *Student-Athlete Handbook.*

AUDIO-VISUAL SERVICES
Location: Pilgrim Library - Room 104 (inside eSports Lab)
Hours: M – F 8:00 am to 4:30 pm; other times as needed
Phone: extension: 2615
Email: avhelp@defiance.edu
The Defiance College Audio Visual Department (DCAV) provides audio-visual services to all registered students with valid college identification cards. Equipment and services are available at no charge for Defiance College purposes, based on availability. Still, advance notice for the use of equipment is required (Recommended notice of 2 weeks prior to event). The Audio-visual department offers a wide selection of equipment for students to request, such as projectors, projector screens, wireless microphones, speaker systems, DVD players, and much more! Personal usage of equipment, media, or services will be charged at a predetermined rate. A student can contact the audiovisual office by the due date and schedule an extension if the equipment is available. Any individual separated from Defiance College for either disciplinary or financial reasons will not be allowed to use college audio-visual equipment.
For students who are interested in requesting Audio-Visual services, please contact avhelp@defiance.edu and include the equipment you would like to borrow and the date and time of your event.

BOOKSTORE
Location: online at defiance.ecampus.com
Hours: orders can be placed 24 hours a day
Customer service hours are Mon – Fri 9am – 5pm (Central Standard Time)
Phone: 1-877-284-6744
The online bookstore offers a large selection of new, used, rental and eBook inventory. Students save money with competitive internet pricing. Students have the additional option of ordering from the marketplace which matches buyers with individual sellers, saving up to 90% on book costs. Payment can be made by credit card, Paypal or buyback credit. Books can be shipped home or to the campus mail center.
The bookstore, in conjunction with the Business Office, offers students the opportunity to make purchases utilizing financial aid credit. Students with a pending credit on their student account can complete the textbook charge authorization on the Student Account Information page of their MyDC portal to transfer a portion of the credit to the bookstore.

BUCHMAN FITNESS CENTER
Location: George M. Smart Athletic Center
Hours: Mon - Thurs, 5 am - 11 pm; Fri, 5 am-8 pm; Sat, 8 am-6 pm; Sun, 1-11 pm
Phone: 785-2341
The Buchman Fitness Center is a joint venture between Defiance College and the Defiance Area YMCA. The Buchman Fitness Center is an adult-only facility offering state-of-the-art fitness equipment including a complete Nautilus Circuit (12+ machines), a complete room of free-weight equipment, treadmills, elliptical total body machines, elliptical trainer machines, recumbent bikes, upright stationary bikes, Stairmasters, and a multi-purpose room. Students are encouraged to contact the Buchman Fitness Center to schedule the multi-purpose room for exercise classes.
Through the agreement of the joint venture between DC and the YMCA, full-time Defiance College students also have complete access to the YMCA facilities at 1599 Palmer Drive for no additional fee. This includes Nautilus equipment, basketball courts, and two swimming pools. A valid-current college ID will be needed to gain admittance to either the Buchman Fitness Center or the YMCA.

CONFERENCES AND EVENT MANAGEMENT OFFICE
Location: Serrick 228 C
Hours: M – F 8:00 am to 12 Noon; 1:00 pm to 4:30 pm
Phone extensions: Facilities Management ext. 2585; Audiovisual ext. 2615
The Conferences and Event Management Office schedules the use of all college facilities and room reservations, both for on-campus and off-campus organizations. Approved college organizations requiring reserved space should contact the Conferences and Event Management Office by completing the Event Venue Reservation Request Form (found online at www.defiance.edu/offices/pr-marketing/internal-event-request-form.html) as far in advance as possible to ensure their desired dates can be accommodated. Registered students at Defiance College with valid college identification cards are permitted to use approved college facilities and attend college events.
Any individual separated from Defiance College for either disciplinary or financial reasons will not be allowed to use college facilities, attend college events, or be on college property until that individual attains "good standing" status with Defiance College as determined by the Office of Student Life and the Business Office. Individuals who are not in "good standing" with the college, and have been found to be using college facilities, be present on college property, or in attendance at college events, may be charged with trespassing.

CUSTODIAL SERVICES
Location: Physical Plant
Hours: Varied on weekends, M – F 4:30 am to 2:30 pm
Phone: extension 2466
Custodial services are provided by Servicemaster who is responsible for the housekeeping needs of the entire campus, including the residence halls. If you have a residential housekeeping need, please contact your Resident Assistant (RA) or Hall Director (HD), or contact the Custodial Services Office at extension 2466. Students are responsible for the housekeeping within their own rooms.

DINING SERVICES
Location: Dining Hall, Serrick Campus Center
Phone: extension 2488
All students living in campus residence halls are required to participate in the meal plan. Residential students may select from four plans with flex dollars that can be used for guest meals as well as retail dining options in **The Hive**.

Student Board Plan
The College provides four meal plan options: 19 meals per week; 14-meals per week; and 10-meals per week. All meal plans include meal plan dollars ("Munch Money") that give students purchasing power at The Hive and the Serrick Dining Room. Meal plan dollar balances that come as part of the meal plan are carried over from the fall semester to the spring semester, however, do not carry over to the following academic year. Balances also cannot be transferred to another student's account. The deadline for changing meal plans for any given semester is June 15, 2024, for Fall 2024 and November 15, 2024, for Spring 2025 in the Office of Residence Life.
Commuting students may purchase a full meal plan or Munch Money to meet their specific and unique needs.

Munch Money
Munch Money can be purchased and added to any student's card in any amount over $25. Money added to a card will be matched with an additional bonus dollars equal to 10% of the amount purchased. Munch Money may be added to the card by either going to the Defiance College dining website or by stopping in the Dining Service office located in the Main Kitchen in Serrick Hall. Cash, credit card and personal checks are accepted.

Serrick Dining Room
Serrick Dining Room offers a wide range of meal options throughout each day. Each morning starts with hot breakfast made to order, make your own waffles, hot and cold cereal, toast and bagels and fresh baked pastry. Lunch and Dinner features homemade entrees, sides and vegetables, pizza, made to order deli sandwiches and wraps, grilled sandwiches, burgers and fries and a full salad bar. Fresh baked desserts and ice cream finish off your meal. A large selection of hot and cold beverages is offered at each meal period. Serrick Dining Room offers an all you care to eat dining option, so feel free to come back for seconds.

Monday- Friday
Breakfast 7:30 am -10 am
Continental Breakfast 10:00 am – 10:30 am
Lunch 10:30 am – 1:30 pm
Dinner 4:30 pm – 7:00 pm
Saturday & Sunday
Brunch 11:00 am – 1:00 pm
Dinner 6 pm-7:30 pm

Hive (Hubbard Hall - McCann Student Center)
The Hive is the place to meet and eat on campus. This full service location features Slice, Sizzle & Stack our premium grilled burger and fries menu that is sure to satisfy your hunger. 41 North features handcrafted fine beverages that will pick you up. This menu features fine coffees, espresso based drinks, smoothies and specialty premium drinks. Fresh made express grab and go sandwiches and salads are ready for you to enjoy when you are on the run.

Monday – Friday 7:30 am- 10 pm
Saturday & Sunday Closed

Dining Hall Policies
Students are required to present their DC identification card to the dining attendant at each meal. Meal plans and ID's are not transferable therefore each student is required to use his or her own ID. Students are permitted unlimited seconds on all items consumed in the main dining hall except theme night entrees. These policies will be in effect for the entire school year.
Ohio law requires the following minimum dress requirements in a cafeteria environment: shirt or blouse, Bermuda shorts, and shoes or sandals.
Questions, concerns, and ideas regarding dining services can be directed to the Director of Dining Services, Office of Student Life or to the Food Service Committee of the Student Senate.

Sick Trays
If a student requires a sick tray due to illness, they can make arrangements by contacting the Dining Service Office at extension 2488.

Eco to Go- Carry Out Program
In an effort to reduce the carbon footprint of the dining services, Eco to Go, the exclusive and optional carry out program for the dining hall is the only way to take food when you are not staying to eat in the dining room. Disposable and personal food storage containers are not permissible. This exchange program allows students to exchange their food storage container for a clean one when they check in with the dining room attendant. They will be provided with optional disposable eating utensils and may bring their own drink container up to 32oz. Replacement of containers due to loss or misuse will be charged a replacement fee. Contact the Director of Dining Services for more details or to register for this program.

Notice to Food Allergic Individuals
The Dining Services makes every effort to communicate food allergens present in most prepared food options. Be aware that we handle and prepare egg, milk, wheat, shellfish, fish, soy, peanut, tree nut products and other potential allergens in our cafes and kitchens. Before placing your order, inform your server or manager if you or a person in your party has a food allergy. Please direct all questions regarding a food allergy to a manager who will assist you.

Exemptions
A student may apply for food service exemption for medical reasons. A request for exemption must be submitted in writing to the Office of Student Life. Additionally, the student will be required to provide signed documentation from his/her physician stating the specific condition and dietary requirements. The Dean of Students or his/her designee and/or the Director of Dining Services will review all submitted documentation. The Dean of Students or their designee will make a final decision and will be provided in writing to the student.

Refunds
There are no monetary rebates, reimbursements, or allowances for missed meals or days. If prior arrangements are made with the Dining Service, sack lunches may be substituted for missed meals.

Food Service Committee
The Food Service Committee is comprised of members of the Student Senate, the Director of Dining Services, a staff member from the Office of Student Life and any interested members of the College community. The purpose of the committee is to discuss suggestions and ideas concerning the operations, menu and quality of service. The Food Service Committee meets on a regular basis throughout the year. For meeting times and locations, or to share concerns please contact the Office of Student Life at extension 2437.

FINANCIAL AID
Location: Second Floor, Serrick Campus Center
Hours: Monday-Friday 7:30 a.m. to 3:30 p.m.
Phone: extensions: 2376 & 2364
E-mail: financialaid@defiance.edu
Defiance College administers several types of financial aid programs including scholarships,grants, work-study, and loans. The DC financial aid staff is available to answer questions concerning the aid process and student financial aid awards. Students must complete a Free Application for Federal Student Aid (FAFSA) every year to be considered for federal, state, and need-based financial aid. The FAFSA can be completed online at www.studentaid.gov. It is the student's responsibility to complete all necessary financial aid paperwork. All required financial aid paperwork must be completed for aid to be processed; and then applied to a student's bill. To remain eligible to receive financial aid funds, students must be attending class and meet satisfactory academic progress (SAP).

GEORGE M. SMART ATHLETIC CENTER
Location: Adjacent to Weaner Community Center and Alumni Field
Hours: Mon – Thurs, 5 am – 11 pm; Fri, 5 am – 8 pm; Sat, 8 am – 6 pm; Sun, 1 pm – 11 pm
Phone: 419-783-2341
The George M. Smart Athletic Center is a multi-purpose facility which spans 84,000 square feet and serves as the recreational hub of the DC campus, while offering an exceptional indoor training environment for all 18 of the Yellow Jacket varsity athletic programs. The Smart Athletic Center is fully operational to host indoor collegiate and high school track events, boasting an NCAA approved six-lane, 200-meter track with an eight-lane straightaway. The Smart Center track and basketball courts are available to Defiance College Students during non-practice times with a valid-current Defiance College ID.

IDENTIFICATION (ID) CARDS
All students receive a Defiance College identification card upon enrollment at the College. The card is intended to last for the enrollment lifetime. Students are required to carry their identification cards with them at all times and present it to College officials upon request. Lost identification cards must be reported to the Office of Student Life or Campus Safety immediately. Replacement cards cost 25.00. Lost cards and non-working cards can be replaced at the Campus Safety Desk in the Hubbard Hall McCann Center.. Identification cards are necessary for picking up paychecks, using the meal plan, checking out materials from the Library, attending campus events, access to the Buchman Fitness Center and access to your residence hall.

INFORMATION TECHNOLOGY
Location: Pilgrim Library - Room 206
Hours: M – F 8:00 am to 5:00 pm
helpdesk@defiance,edu 419-783-2667 419-670-8085 (Afterhours Emergency On-Call)
Defiance College Information Technology (DC IT) provides technical support for the entire Defiance College campus community, including Moodle, myDC, e-mail, printing, and the internet/Wi-Fi. Information on connecting to the DC network may be found in the networking handbook located on the DC website, www.defiance.edu, in the Information Technology section.

LOST AND FOUND
Lost and Found services are offered by the Office of Student Life in Hubbard Hall (Room 128) and the Circulation Desk in Pilgrim Library. Articles may be turned in or claimed during regular office hours.

MAILROOM
Location: Hubbard Hall
Hours: M – F 8:30 am to 3:00 pm; closed on Saturdays and Sundays
Phone: extensions 2329 and 2576
Residential students are provided individual mailboxes in the lobby of the McCann Center. Each residential student has their own assigned mailbox which operates on a combination lock. Residential students can verify their mailbox number and combination with the Mailroom. Residential students are expected to check their mailbox daily for important correspondence from various campus offices and organizations in addition to US Mail deliveries.
Residential students should have their mail addressed to their mailbox numbers with the following information:

Student's First and Last Name
Defiance College
701 N. Clinton St.
Defiance, OH 43512

Commuting students should not use the College's address to receive mail. If commuting students inadvertently receive mail at the College, they will be notified via e-mail where they can pick up their mail (either the Office of Student Life in Hubbard 128 or the Mailroom).
Any student receiving a package or other special mail will receive a note via campus e-mail requesting that the package be picked up at the Mailroom. Students need to present their College I.D. when picking up a package. There will be no same day pick up of packages before 1:00 pm.

CAMPUS SERVICES & RESOURSES *cont'd*

During academic break periods, mail is held in the Mailroom until students return to campus – during summer break, first class mail will be returned to the sender. Bulk mail and magazines will not be returned to the sender or saved. Students need to make their own arrangements with publishers for forwarding of magazines and periodicals. Students may send outgoing packages via USPS or UPS, but must pay with cash or card at the time of mailing. If a student changes from resident to commuter status, they will forfeit their campus mailbox and will need to change their address with those organizations and individuals from which they usually receive mail. First class mail for former students will be returned to the sender; all other mail, including periodicals and magazines will not be forwarded or saved.

REGISTRAR'S OFFICE
Location: First Floor Pilgrim Library
Hours: M – F 8:30 am to 4:30 pm
Phone: 419-783-2375
E-mail: registrar@defiance.edu
Primary services provided by the Registrar Office include the scheduling of classes, recording of grades, maintenance of transcripts, verification of enrollment, evaluation of transfer credits, degree audit checks, veteran benefit certification, and processing of graduation applications. We are committed to maintaining accurate information while protecting privacy. The Office further supports the academic mission of Defiance College by consistently enforcing its academic policies.

STUDENT ACCOUNTS OFFICE
Location: Defiance Hall 213
Hours: M – F 8:00 am to 4:30 pm
Phone: extension 2339
Email: studentaccounts@defiance.edu
http://www.defiance.edu/business-office
The Student Accounts assists students and families with:

- Student account information
- Tuition payment arrangements
- Federal Perkins Loan repayment
- Student employment
- IRS 1098-T forms

Important student forms such as the credit balance form are available at the above web page under the "Forms" option. Students can authorize the Student Accounts Office to speak about account details with another person by completing the Federal Education Rights and Privacy Act (FERPA) authorization at mydc.defiance.edu under the Parent tab.
All students of Defiance College may access a current billing statement and payment plan enrollment at mydc.defiance.edu under the Student Billing Information page.

OFFICE OF RESIDENCE LIFE

MISSION STATEMENT
The mission of the Defiance College residence life staff is to promote a positive living and learning environment for residential students. The inspiration of this promotion is an active developmental approach taken by staff members toward the residents. Residence life members work with students to develop a sense of community in the halls that allow students to engage with each other, respect each other, and learn from each other to further develop as contributing members of the Defiance College community.
The Office of Residence Life works to foster an exchange of ideas while implementing student developmental and social programs to help students adjust to living on campus. Additionally, undergraduate student staff living in the halls work directly with the Office of Residence Life to address student conduct concerns and issues negatively affecting the overall residential community. Proper administrative follow-up on behavioral conflicts are the responsibility of residence life staff. Staff members are trained to educate students on policies and encourage each student to take responsibility for their own actions and address issues when appropriate.

OFFICE OF RESIDENCE LIFE *cont'd*

RESIDENCE LIFE STAFF

The Office of Residence Life has a strong commitment to creating an environment in the residence halls that will assist students in their growth and development. Effort is made to create an environment that encourages academic excellence, social competence, independence, and a sense of community living. A well-trained staff including Hall Directors, Assistant Hall Directors, and Resident Assistants provide programming, guidance, mentoring and support to the residence hall community. When these activities are combined with the active participation of the residents, the halls become more than just places to sleep; they become living and learning environments.

The following is a list of people and groups who are available to assist students within the residence halls. Residents are encouraged to be actively involved in their residence hall and to get to know these individuals.

DIRECTOR OF RESIDENCE LIFE (DRL)

The Director is a full-time professional whose primary role is to supervise all aspects of residence hall operations at Defiance College. The Director works in collaboration with the Assistant Hall Directors, Community Coordinators, Assistant Director of Housing Operations, and the Resident Assistants to address the needs of the residential population. The Director is responsible for the selection, training and supervision of all residence hall staff; residence hall supervision including developmental programming, overall maintenance, improvement of the residence halls, and adjudicating residence hall policy violations. The Director's office is located in the Office of Residence Life in Hubbard Hall. Director is one of two live-in/on full-time professionals who serve as the primary administration and management of the residence halls to ensure residence life activities and programs promote the academic, personal, social, spiritual and physical development of the students. In addition, serves as an additional presence in the halls during the evening hours. HD's serve as primary respondents to crisis and student conduct issues in the halls.

ASSISTANT DIRECTOR OF HOUSING OPERATIONS (ADHO)

The Housing Operations Coordinator and Student Life Office Manager is a full time professional staff member whose primary role is to assist with coordinating all aspects of housing operations, including occupancy management, contracts, assignments, accuracy of billing, enrollment initiatives, housing policies, opening/closing processes, key management, and all other housing operations, as well as assisting with creating an inclusive environment, and overall well being of the campus community. This position coordinates the use of StarRez housing management system and maintenance compliance with departmental business policies and processes and assists in the administration and operations of the Residence Life Department.

HALL DIRECTOR (HD)

The Hall Director is a staff member who serves as the primary administrator and manager of one or more of the residence halls to ensure residence life activities and programs promote the academic, personal, social, spiritual and physical development of the students. In addition, serves as an additional presence in the halls during the evening hours. HD's serve as primary respondents to crisis and student conduct issues in the halls. The Hall Director co-supervises the Residence Life Staff in conjunction with the Director of Residence Life.

ASSISTANT HALL DIRECTOR (AHD)

The Assistant Hall Director is an undergraduate student leader who works closely with the Assistant Director for Housing Operations, and Director of Residence life in their area in the management and supervision of the residence halls. Assisting in the training and supervision of the RA staff, the AHD serves as an integral member of the residence hall on-call staff. Working alongside the RAs, the AHD assists in the creation, scheduling and completion of residence hall duty responsibilities and programming. In addition, the AHD provides an additional resource for residents in the hall.

RESIDENT ASSISTANT (RA)

Resident Assistants are student leaders specially trained in all aspects of residence hall living with the experience and know-how to answer questions or find the answers. The RA serves as a role model, peer counselor, educator, information provider and supervisor to the residents of his/her/their living area. These individuals will assist residential students in a variety of ways–planning fun and educational activities, mediating roommate disagreements, suggesting campus resources and maintaining a safe, learning environment for their residents. RAs serve "on duty" to provide for student needs during evening hours.

RIGHTS AND RESPONSIBILITIES

Since a residence hall is made up of a group of individuals in a living/learning community, each person is afforded certain rights and responsibilities which must be held in high regard. Mutual respect and consideration, coupled with an awareness of sensitivity to the needs of other individuals, must be the standard for group living. This statement is intended to define minimal expectations of rights and responsibilities for all residents allowing them to enjoy their freedom without placing constraints upon the rights of other residents. These include:

- **The Right:** to read, study, and sleep free from undue interference in or around one's room.
- **The Responsibility:** to control noise and other distractions that inhibit the exercise of study or sleep by another person
- **The Right:** to recreation in and around the residence halls.
- **The Responsibility:** to modify recreation so that it does not interfere with the rights of others or create the potential for damage to the facilities.
- **The Right:** to personal privacy.
- **The Responsibility:** of the College to maintain such an environment and for students to assist in this effort.
- **The Right**: to a physical environment that is clean, healthy, safe and orderly.
- **The Responsibility:** of the College to maintain such an environment and for students to assist in this effort.
- **The Right:** to recourse, according to prescribed judicial procedures, against anyone who unduly infringes on one's rights or property.
- **The Responsibility:** to conduct oneself in a manner that does not infringe on the rights of others; to initiate action should the circumstances warrant.
- **The Right:** to participate in the process of self-governance.
- **The Responsibility:** to be active in the process to insure voicing of one's opinion or ideas.

RESIDENCE HALL ADMINISTRATIVE POLICIES & PROCEDURES

CHECK IN/CHECK OUT

Students living in the residence halls are expected to formally check in and out of the hall when they assume and terminate occupancy or when they change rooms. The procedure includes:

Check In:

1. Obtain a room key.
2. Complete the Room Condition Report and sign all administrative paperwork (e.g. key registration form, emergency contact form, etc.)
3. Move into your room.

Check Out:

1. Let your RA know when you will be moving out and schedule a room inspection.
2. Remove all belongings, return furniture to its proper position and clean your room thoroughly.
4. Return your key.

This procedure is in effect to protect students. Charges are determined by your dates of residence and any pre-existing damage is recorded to prevent billing errors. Students failing to go through the appropriate check in and check-out procedures may be subject to monetary charges. Should it be necessary to remove and dispose of any personal belongings or to return college furniture to a room, a nominal charge will be assessed.

DAMAGES AND BILLING

A resident is liable for damages to the residence hall resulting from vandalism and/or abuse. Residents, as a community, will be held financially responsible for all charges for non-regular custodial or maintenance services incurred in hall/wing and common areas of their residence hall resulting from vandalism and/or abuse if the individual responsible cannot be identified.

OFFICE OF RESIDENCE LIFE *cont'd*

HALL CLOSINGS

Campus residences are closed during the scheduled College vacation periods such as Fall Break, Winter Break and Spring Break. Unless otherwise announced, residence halls close at noon the day following the last full class day before a vacation period. Students must complete a Break Occupancy Agreement online in StarRez if they seek permission to remain in the residence halls during breaks. It is, however, the student's responsibility to find accommodations. Students remaining on campus may be charged a nominal fee per night. All fees for break housing will be announced prior to the break and must be paid in advance. At the end of each semester, the residence halls will close 24 hours after the end of the last final examination period. Only students with special permission or need will be permitted to stay beyond that time. Graduating students are permitted to stay through graduation ceremonies, but must complete a Break Occupancy Agreement to stay past the hall closing and check-out on the day of graduation.

KEYS AND BUILDING ACCESS

Maintaining safety and security on campus and in the halls is a partnership between the College and the residents. Residents are issued keys and student ID cards for the sole purpose of entry to the residence halls and their individual rooms. The College expects in return that students do not loan their key or student ID to anyone. Such conduct is considered a threat to the safety of others and will be dealt with as a conduct issue.

Students should always keep their rooms locked regardless of how long they will be away. Any damage or malfunction of a lock, key, or student ID card should be reported immediately to the Office of Residence Life at extension 2437. A resident who loses their key should fill out a Key Replacement Form and turn it into the Office of Residence Life. The lock will be re-cored and new keys issued for the room. The cost for this service is $50. A resident who loses their student ID card must notify the Office of Student Life or Campus Safety immediately so that the card can be deactivated and a new card can be reissued. The cost for issuing a new card is $25.

LIABILITY DISCLAIMER

Defiance College is not responsible for the loss of valuables of any person or for the loss or damage of any person's property from any cause. See section on Personal Property Insurance.

MINORS/ADULTS IN HOUSING

The Defiance College does not permit students under the age of 16 to live in on campus housing. Students must be at least 16 years of the time campus residency begins in order to be eligible for on-campus housing. Parent or legal guardians of students under the age of 18 are required to co-sign a proxy agreement through StarRez for on campus living. Additionally, students who will be 16 at the start of campus residency must have his/her parent or legal guardian sign the Minor in Campus Residency Acknowledgement Form. Additionally, Defiance College does not provide housing for non-traditional aged students or married/family housing. New students over the age of 25 may request an exemption to live in housing to be granted at the Dean of Students discretion.

RESIDENCY REQUIREMENTS

Defiance College places high value on the growth and development of students as part of the residential liberal arts college experience. Living on campus connects students to the College's culture of engagement in meaningful and powerful ways. This connection to the life of the campus is so important that the College requires all students to reside in on-campus housing. The College has identified some situations where students may be excused from the residency requirement (identified below).

CRITERIA FOR EXEMPTION FROM THE RESIDENCY REQUIREMENT

1. Twenty-two (22) years of age or older PRIOR to the beginning of the academic year
2. Completion of 90 or more credit hours PRIOR to the beginning of the academic year
3. Married students or students with dependent children
4. Military Service Veteran
5. Students living with parents or legal guardians within a 40-mile radius of the college

Defiance College requires all full-time students who do not meet the criteria listed above to reside in college-operated housing for the entire academic year. Residential students requesting to live off campus the following academic year must complete a Commuter Request Form via StarRez prior to the end of the spring semester. Students who have signed a housing license with Defiance College must formally request release from the Dean of Students if their campus housing needs change.

Commuter approval can be revoked if the student's living situation differs from what was approved on the commuter request form. If this occurs, the student will be charged the full price for room and board, regardless of where the student is residing or how long he/she has been off-campus. Any address changes are to be communicated promptly to the Office of Student Life to avoid any misunderstandings.

OFFICE OF RESIDENCE LIFE *cont'd*

RESIDENTIAL FEE
A student enrolling as a resident student will be charged a one-time, non-refundable fee of $184.

ROOM ASSIGNMENTS/SELECTION
Upperclassmen are assigned to rooms during the housing selection process according to set procedures communicated during the spring semester. Those residents who have completed the necessary requirements of scheduling and registering for classes during the upcoming year will be cleared to select their housing assignment for the following year. In order to select a room, current residents must be in good financial standing with the College and have scheduled a minimum of 12 credit hours for the following fall semester. While returning upperclassmen apply for their room assignment in the spring, new students are assigned over the summer. All residential students are officially notified of their room assignment for the academic year in July. We work to provide room assignments to all students that request to live on campus.

ROOM CONSOLIDATION
Most residence hall bedrooms at Defiance College are designed for occupancy of two or more residents. Such arrangements have proven to be convenient and help create the residential living experience desired by the College. Students whose roommates do not arrive for the start of the semester will be encouraged to consolidate with another person without a roommate. This process is called consolidation. All students residing in campus residence halls whose roommate has not moved into the room will be among the first group of students required to consolidate with other residents in the same situation in order to best utilize the living space on campus.
Students required to consolidate rooms may be given a list of other residents in the same situation in an open double room within their residence hall. Students may choose to room with someone more compatible on a different floor. Initially, students who are to be consolidated will be encouraged to work out their own arrangements as to who moves where. This process of consolidation will continue until all rooms are occupied by the maximum occupancy. Any student left residing in an open double may receive a roommate at any time during the semester.
The College and the Office of Residence Life reserves the right to reassign residents to other College residence accommodations in cases of emergency, in the event the College, in its sole discretion, determines the reassignment to be in the best interest of both the College and the student or, if necessary, to best utilize residential facilities efficiently and economically.

ROOM AND/OR ROOMMATE CHANGES
Living with different types of people is an integral part of college life. Sharing living space with a roommate can be a great learning experience and, at times, a challenge. In the event that issues do arise between roommates, the Office of Residence Life encourages the roommates to discuss their concerns with one another to reach a compromise. The Residence Life staff can provide assistance in this process. However, if a room and/or roommate change is desired, contact your RA to initiate the process. There is a two-week room freeze in place at the beginning of the year and changes will be made only if no other reasonable alternative is available. Changes of any kind without proper permission from the Office of Residence Life will result in appropriate and corrective action being taken. Room changes must follow the check-in and check-out procedures.

ROOM FURNISHINGS
Rooms are furnished with a bed, dresser, study desk and chair, closet area or wardrobe for clothing, cable, and window coverings. It is suggested that residents provide their blankets, pillows, linens, towels, desk lamps, and other personal effects. Residence hall furniture must remain in the student's room at all times. Residents may bring personal furnishings such as chairs, bookcases, entertainment centers etc. **The Director of Residence Life may prohibit personal furnishings that are considered too large or potentially dangerous for the residence hall room.** At the time of check out, residents must remove all personal property and return the room to its original condition. Summer storage of personal belongings is currently not available. Failure to check out properly may result in loss of personal property and fee.

ROOM LOCK-OUT
In order to keep the residential rooms safe and secure the residence life staff is charged with monitoring when, and how often, students request an RA to unlock their room door. Each student will be provided (3) lock-out services for the year. When a student reaches their limit they will be charged $10.00 and asked by the Assistant Director of Housing Operations to verify they indeed possess a room key. This policy is meant to ensure that all students have their room keys and maintain high standards of personal safety.

SPECIAL CIRCUMSTANCE HOUSING
Students with special circumstances (e.g. psychological, medical, physical) that necessitate living without a roommate must complete the following: 1) Submit a letter, written by the student in question, describing the special circumstances which would necessitate the student's need for a medical single. This letter must convincingly demonstrate the uniqueness of the student's case. 2) Submit an additional letter written by a family physician or other appropriate clinician describing why the student should be granted a room without a roommate. This letter of referral from your treating professional is required in order to be considered for a Medical Single. Both letters are due to the Office of Counseling and Accessibility Services by July 15th, 2024 for the fall 2024 semester and by November 15th, 2024, for the spring 2025 semester. The Director of Residence Life will consider all petitions and honor approved petitions on a space-available basis.

STORAGE POLICY
Due to limited space, storage is not available for resident students. Personal belongings that are brought with an individual must remain in his/her/their room or be taken out of the residence hall. Residents may leave personal belongings in their room during any scheduled academic calendar breaks (i.e., Winter and Spring breaks) provided they will be returning to the hall the following the break. However, for security reasons, valuable items should be taken home. The College makes a reasonable attempt to prevent personal property loss or damage due to theft and mechanical failure, but cannot assume any responsibility if they occur. Storage is NOT available over summer break.

SUMMER HOUSING
Limited housing, on a first-come, first-served basis, is available for a charge during the summer months. To be eligible to receive summer housing, an individual must be a Defiance College student scheduled full-time for fall or summer classes. Students requesting summer housing must complete a Summer Housing Application via StarRez. Room assignments will be made prior to the end of the spring semester and students will be notified, in writing, of their assignments. Residents must complete their room changes into their summer housing assignments within a 24-hour time period. Students may be removed from summer housing for violating campus policies.

FACILITIES & EQUIPMENT IN THE RESIDENCE HALLS

AIR CONDITIONERS Students in Whitney and McReynolds are permitted one (1) window AC unit per room.

1. Air conditioners must be 5000 BTUs or less
2. 120-volt power supply
3. In good working condition

Students are responsible for installing their own air conditioning units. All air conditioning units must have a board supporting the weight so as not to damage windows. Any damage to windows will be fined at the expense of the resident. Air conditioners must be removed for the winter.

COOKING FACILITIES/KITCHENETTES
Cooking facilities are located in each residence hall. All students using these areas are expected to clean up after themselves. Any dishes or items left out for over a week will be disposed of.

CUSTODIAL SERVICE
The College employs a custodial service for the cleaning of the common areas of the hall only. Students are held responsible for the cleanliness of their individual rooms. To report concerns about cleaning routines or the general cleanliness of the residence halls, please feel free to email clean@defiance.edu.

LAUNDRY
Laundry facilities are available 24 hours a day, seven days a week in Whitney Hall, McReynolds Hall, the Jacket Suites, Grand Avenue Apartments, 20 College Place, 901 College Dr, 903 College Drive, 201 Grand Ave. and 623 N.Clinton. St. This equipment is provided only for the use of each building or apartment's specific residents. If a machine is malfunctioning, students should follow instructions posted on the machines.

LOFTS
A loft system is a bed frame that allows the bed to be at a "top bunk" setting without the bottom bunk present. This elevates the bed in the room to allow for the most possible floor space. Currently Whitney Hall, Jacket Suites and Grand Avenue have loftable beds present in their rooms and apartments. McReynolds has beds that can be bunked but not lofted. Homemade loft systems are not permitted at Defiance College.

LOUNGES/LOBBIES
Residence hall lounges are for the use of all students and their guests. Therefore, the furnishings in such lounges are not permitted for use in individual student's rooms. Removal of lounge furnishings from the appropriate place will result in disciplinary action and the student may be held financially responsible for any damages.
The main lobby of each residence hall is open to 24-hour visitation seven days a week. Residents and their guests are responsible for their actions in all campus residences and facilities and should govern themselves in a manner which will not infringe upon the rights of others. Individuals and groups are expected to clean up any trash in the lobby and return any furnishing to its appropriate place.

MAINTENANCE SERVICE
Maintenance problems in campus residences and facilities should be reported to the Maintenance Office by emailing physicalplant@defiance.edu. This will facilitate prompt solutions on all maintenance problems. Maintenance work must be done during work hours. Therefore, maintenance personnel may need to enter a room, whether or not a student is present, in order to make repairs.

NETWORK ACCESS SERVICE
All residence hall rooms are wired to connect to the Defiance College campus computer network. Students may choose to use an Ethernet cord or use the wireless access to connect to the internet. Internet routers are prohibited in the residence hall. Students that use the internet for gaming are encouraged to connect using an Ethernet cord for better connectivity. Please contact Information Technology at helpdesk@defiance.edu if you have any questions or if you are experiencing any difficulties with this service.

RESIDENCE HALL JUDICIAL & SAFETY POLICIES

In addition to the Residence Hall regulations, it is an expectation that all students know and abide by the Student Code of Conduct and all policies indicated in this Student Handbook. The Student Code of Conduct is included in a later section of this student handbook.

ALCOHOL
The use of alcohol which jeopardizes or endangers the welfare of oneself or others, or contributes to other irresponsible or offensive action or behavior, is a violation of the College regulations. Behavior that violates Defiance College values include the use, possession, or distribution of alcoholic beverages except as expressly permitted by law and the College's Alcohol Policy. This includes possession/consumption by those under the age of 21; providing alcohol to those under the age of 21; possession of a common source container (keg or party ball), either empty or full unless they are part of a President-approved event; driving under the influence; and public intoxication by persons of any age. More detailed information on the College's alcohol policy may be found in the later section of this handbook entitled: "Alcohol Policy."

APPLIANCES
The use of personal electrical appliances is limited because of sanitation, safety, and electrical concerns. The following appliances are prohibited in residence hall rooms: air conditioners (special approval only), toaster ovens, George Foreman grills, air fryers, hot plates, commercial food preparation apparatus, space heaters, sun-lamps, halogen lamps/lights/ light bulbs, and electric blankets. Small microwaves and refrigerators of the proper size are allowed (not in excess of 4.5 cubic feet). Microwave ovens are restricted to a maximum electrical capacity of 900 watts. All approved appliances must bear the UL (Underwriters Lab) seal of approval. All other appliances are subject to the discretionary judgment of the Director of Residence Life. When additional electrical outlets are needed in a student room, **FUSED SURGE PROTECTOR STRIPS MUST BE USED INSTEAD OF STANDARD ELECTRICAL EXTENSION CORDS**. Please consult the full list at the Residence Life website.

CONTROLLED SUBSTANCES/DRUGS

The possession or consumption of illegal drugs, marijuana and medical marijuana, (or the possession or consumption of therapeutic drugs without a legal prescription) is strictly prohibited anywhere on campus, including all residence halls and residence hall rooms. Drug paraphernalia, even if only for decorative purposes, is not allowed in individual students' rooms. The presence of drug paraphernalia in and around the residence halls or a student's room is considered a violation of the Student Code of Conduct. Although it is legal in Ohio to use or possess marijuana for individuals for the age of 21, this use and possession is still prohibited on campus as it is prohibited by federal laws and regulations. For further information, please refer to the College's Substance Abuse Policy in the Policy Section of this Handbook.

EMERGENCIES

In case of emergency contact Campus Safety, Resident Assistant, Assistant Director of Housing Operations, Hall Director, Director of Residence Life or dial 9-1-1 from a campus phone immediately.

ENVIRONMENTAL SAFETY

Residents must adhere to federal, state and College regulations regarding environmental safety. Residents are responsible for the proper disposal of personal, room, and/or suite waste into appropriate waste containers. Intentionally, negligently, or recklessly exposing someone to hazardous waste as determined by the law or College policy is strictly prohibited. Violations of the environmental safety policy include, but are not limited to the following:

1. Inappropriate use, storage, and/or disposal of chemicals, paints, etc.
2. Inappropriate disposal of sharps (e.g., needles, syringes, broken glass, fluorescent bulbs)
3. Inappropriate disposal of or exposure to blood borne pathogens, bodily fluids, biological waste, etc. (e.g., public urination, defecation or regurgitation)

Residents are solely responsible for bagging trash that accumulates in their room or apartment and disposing of trash by depositing it in designated trash collection areas in dumpsters OUTSIDE the building. Personal trash left in common areas (hallways, bathrooms, etc.) will be fined at the expense of the violator.

EXTERIOR DOORS

It is important to note that the safety of all residents is compromised when doors are propped open or when residents permit unknown individuals into the residence halls through doors that are reserved for use by residents only. All external doors are locked 24 hours a day / 7 days a week and only opened to students scanning a residential student ID in the building in which they live.

FAILURE TO COMPLY

Residents are expected to cooperate with all College officials including Residence Life Staff Members at all times. Failure to comply includes, but is not limited to, the following:

1. Failure to follow the directions of the College officials, including but not limited to Residence Life Staff acting in performance of their duties
2. Failure to respond to a request to see identification
3. Failure to complete judicial sanctions
4. Failure to respond to meeting requests in the conduct system

FIREARMS, WEAPONS, FLAMMABLE LIQUIDS AND FIREWORKS

Student possession, storage, or use of unauthorized firearms, explosives (including fireworks), flammable materials (including lighter fluid), dangerous chemicals or other weapons (including but not limited to hunting knives, bows and arrows, martial arts weaponry, pellet/ paintball guns, Orbeez guns, and slingshots is prohibited in the residence halls and on campus property.

FIRE SAFETY

Due to fire safety, residents are not permitted to burn candles, incense or create any "open flame" situation at any time within the residence halls. Defiance College takes seriously its commitment to prevent fires and the misuse or abuse of fire protection equipment. Students are expected to maintain responsibility for their floor and living units when it comes to this topic. Residents should be familiar with their residential unit and aware of the nearest exit and alternate exits. Students who negligently or intentionally set off a fire alarm will be fined $100 and may face judicial action as well. Students who tamper with a fire alarm or set off an alarm due to smoking or vaping will be charged a $250 fine for the first office, $500 for the second offense and may be removed from housing.

Alarm procedures: when a fire alarm sounds, the following should be observed:

- Close windows, turn off lights and electrical equipment and close and lock door if time allows.
- Walk; do not run, to the nearest exit. If the closest exit is blocked by fire or smoke, find an alternative exit. If requested, accompany and assist persons with disabilities or injuries who appear to need assistance.
- After exiting, get away from the building and follow directions from the Residence Life staff, Campus Safety staff and/or Fire Department officials.
- Do not re-enter the building until the authorization is given by the Fire Department.

Failure to follow fire safety guidelines, including transmittal of a false fire alarm, tampering with smoke/heat detection devices, fire extinguishing equipment, or failure to evacuate during a fire alarm is prohibited. Violators may be subject to fines, campus judicial action, and/ or prosecution.

GUESTS AND VISITATION

Guests visiting the residence halls are required to observe all College and residence hall policies while present in the halls. Host residents are responsible for informing their guests of all policies. The host resident is also responsible for the guest's behavior and safety and must escort their guest at all times while he/she/they are in the residence halls.

All residence halls at Defiance College are secured with 24-hour card access entries. Non-residents are unable to enter a residence hall unless they are accompanied by a resident of the building. Residents only have card-access entry capability for their assigned residence hall.. If residents wish to visit another building, they must be accompanied by a resident of that particular building.

Individuals visiting a residence hall are identified in two possible categories: "visitors" and "overnight guests." Visitors are considered to be any individual visiting a residence hall on campus in which they do not live. Overnight guests are essentially the same as "visitors," with the understanding that they wish to stay with their host past midnight on a given night.

In order to preserve the integrity of the security of the residence halls, all residents are required to abide by the following policies for visitors and overnight guests:

Escort Policy (in effect at all times) - All visitors and overnight guests must be escorted by their host resident or another resident of the building at all times. Visitors or overnight guests found wandering unescorted in a residence hall will be documented and may be escorted out of the building immediately.

Overnight Guests – Overnight guests must be approved by the roommate(s) of the host.

Restrooms (in effect at all times) - Visitors (including other students) must use gender appropriate bathroom facilities located in other parts of the building. Students and guests are prohibited from taking showers together in community bathrooms.

Frequency of visits - The College reserves the right to limit the frequency/number of visits by members and non-members of the residence hall community should the need arise.

Loss of Privileges – Students who abuse these visitor and overnight guest policies may lose the ability to host visitors and/or overnight guests. Roommates are encouraged to communicate openly about expectations regarding visitors and overnight guests. Conflicts over visitors and overnight guests may also be reported to Residence Life staff.

Visitation for Minors (individuals under the age of 18)
Siblings: Sibling guests of DC residential students must be escorted at all times during their visit. Written parental permission must accompany all siblings who plan to stay overnight with their resident sibling.
Non-relatives: Visitation is restricted to the main lobby of each respective residence hall at all times unless accompanied by parent or guardian.

NOISE
All residential students are afforded the right to pursue serious study and reflection; an academic environment must provide rest, relaxation, and the availability of proper sleep and a sense of quiet in the residence halls. This should be the case on campus at all times; however, at certain times a special sensitivity to quiet hours is expected.

Quiet Hours: will begin at 10:00 pm on weekdays and 1:00 am,for weekends and holidays. Quiet hours end at 9:00 am each morning.

Courtesy Hours: There are 24-hour courtesy hours in the residence halls. Upon request, residents must reduce the noise coming from their room and keep it from disturbing others any time of the day or night.

Extended Quiet Hours: During and a week prior to the final exam period, quiet hours must be observed 24 hours a day. This information will be posted in the residence halls.

Individuals or groups may not play amplified musical instruments or other equipment that disturb others in the residence halls. Large television and stereo systems may present a problem if noise levels are not low. Students who wish to play instruments at levels that may disturb others should seek space in other areas on campus. The College has several music rooms with pianos located in Schauffler Hall.
The sound level within a room must be such that it is inaudible to adjoining rooms and hallways. Residents are also expected to observe reasonable quiet in hallways, stairwells, lounges and restrooms during scheduled quiet hours. Quiet hour violations will be determined by the residence life staff.

PETS
Pets are prohibited in the residence halls, apartments and on-campus houses.. The only exceptions are Emotional support animals, service animals and fish in small aquariums of 10 gallons or less. All service and emotional support animals need to be approved through the Office of Accessibility Services. For safety reasons, no piranha or other aquatic animals such as turtles (of any size), frogs, snakes, lizards or tropical fish are permitted to be in the halls. All other animals, including animals used for academic experiments, are prohibited in the residence halls, even for short amounts of time. If such animals are found and not disposed of immediately, the student may be dismissed from living on campus. The Director of Residence Life reserves the right to remove any animal (even fish) if it causes a disturbance to the living community or roommate wishes.

REMAINING OCCUPANTS OF A ROOM
When vacancies occur, the College reserves the right to show rooms and assigns new occupants to fill those vacancies. In order to accommodate a potential new roommate, the resident of a partially filled double is required to keep clear and make one set of furnishings available for use and to keep the rest of the room reasonably clear and ready for occupancy. In a partially filled room or suite, Residence Life may:

1. Allow the resident to find a suitable roommate to fill the vacancy
2. Assign a new resident to fill the vacancy without prior consultation
3. Allow the existing resident to pay the appropriate single rate only through the current contract period
4. Reassign the remaining occupant(s) to different accommodations

When a new roommate or suitemate is assigned, the current occupant(s) is/are expected to welcome this resident and treat this person with respect as outlined in the Resident's Rights and Responsibilities. Failure to respect the resident's rights and responsibilities by any current occupant of a room is considered a policy violation and subject to judicial referral. Other actions violating this policy include, but are not limited to, the following:

1. Expressing not wanting anyone living with them
2. Expressing not wanting the specific person assigned living with them
3. Describing the new roommate's experience will be difficult in the assigned space
4. Any other disparaging comments made to or about the new resident or assignment process

RESIDENTIAL SECURITY

All residence hall entrance doors are kept locked 24 hours a day and access is controlled through student ID cards. **Student rooms should be kept dead bolted at all times when the room is left unoccupied**. In the event of a theft, please notify your Resident Assistant and/or Resident Life Staff to document the situation and what was stolen. Students are encouraged to secure insurance either through the College or their parents'/guardians' insurance company (see section on theft protection and personal property insurance below). The College accepts no responsibility for theft or damage to the personal property of a student.

ROOM DECORATIONS AND MODIFICATIONS

Residents may choose to decorate or personalize their living space to make it more comfortable and appealing. In order to keep repair costs to a minimum, avoid structural damage to rooms, maintain a safe living environment, and keep in accordance with fire and safety standards, the following guidelines are to be used:

1. Combustible materials are prohibited; all materials must be non-flammable. Items such as extremely large posters, flags, fishnets, beads, parachutes, holiday lights, or inflatable furniture may NOT be present in residents' rooms.
2. The use of screws, tacks, contact paper, glue, gel window clings, tape or decals on ceilings, walls, floors, doors or furnishings results in damage to existing surfaces and are therefore prohibited. Picture hanging sticky strips are the only permitted adhesive for hanging posters, decorations, etc. LED strip lights should be hung with thumb tacks. Students are required to remove all LED lights at the end of the year. A fine will be assessed for any damage to the wall/ceiling or for failing to remove the lights
3. Residents will be held financially responsible for any decorations that alter, ruin, or otherwise damage College property.
4. The Maintenance department is responsible for the painting of all rooms. The use of wallpaper and contact paper is prohibited in all residential areas. The Maintenance department repaints student rooms as necessary during the summer months. As such, it is an expectation that students refrain from painting or otherwise altering the walls or ceiling in their room.
5. The painting of murals, pictures, messages or any other form of artwork on the walls, doors, floors and ceilings of rooms is strictly prohibited. Violation of this policy will result in an automatic charge to the student(s) to have the room returned to its original state. In severe cases, the College will hire a private contractor/painter and the cost will be assessed to the student.
6. Only dartboards that use plastic safety tips are permitted.
7. All door and window decorations viewable to the outside are expected to be in good taste. Door and window decorations that are deemed inappropriate and counter to the College mission state ment will be removed.
8. Alcohol, alcohol containers and/or drug paraphernalia used as decoration in and around the resi dence halls or a student's room is considered a violation of the Student Code of Conduct.

ROOM ENTRY/INSPECTION/SEARCH

Defiance College seeks to allow student privacy within their residence hall rooms. When College personnel have reasonable cause to believe that a room is being used for a purpose that is illegal or in violation of College rules or regulations, or there is reason to believe a student is in imminent danger, student rooms and personal belongings may be entered/ searched by College officials. The following measures will be taken when an entry/search is conducted:

1. Room entries/searches by residence hall and/or college staff members are to be cleared with the Director of Residence Life when time permits.
2. Two staff members will be present during any room entry/search when the occupants of the room are not present.
3. Rooms will not be entered without knocking. Master keys will be used to gain entry when admit tance is denied, or when it is necessary to enter the room in which the occupant is absent.
4. A Communication Information Form (CIF) describing the reason for the entry/search and recom- mended follow-up action will be filed in the Office of Residence Life after the search is completed.
5. The College reserves the right to inspect room furnishings (refrigerators, dressers, closets, etc.) and to confiscate any illegal items or contraband that violates the policies in this Handbook.
6. When a room has been entered in the absence of the resident, the entering residence hall staff member will leave notification of the entry.

Residence hall staff will make a normal inspection of each room whenever the halls are closed for vacation periods for purposes of safety and sanitation. It may be necessary for the college personnel to enter rooms for maintenance procedures or inspections. When the necessity arises to enter a student's room under these situations, the person entering the room will knock and ask permission to enter. Maintenance personnel will use a master key to enter a vacant room in order to take care of the repairs.

SAFETY

Due to the potential for personal injury and/or damages to College property, it is an expectation that all athletic and physical recreational activity (throwing or kicking balls, tackling or wrestling, Frisbees, skateboards, etc.) occur outside and away from the residence halls. Damages to College property (even if by accident) due to these activities may result in financial restitution for the damaged property. Violation of this policy may result in a discipline hearing.

1. Creating an unsafe situation in the residence facility
2. Contributing to or participating in the unauthorized entry of individuals into a student room or building facility, including dining facilities, by transferring or duplicating a key or ID card
3. Removal of building window screens
4. Leaving a secured door or window propped open
5. Propelling any object out of or towards a building or at an individual
6. Climbing into or out of windows or going on the roof areas of a residence facility
7. Instigating and/or participating in water or shaving cream fights
8. Playing sports in the hallway
9. Wearing rollerblades or skateboarding inside a residence facility
10. Grills that utilize charcoal, lighter fluid or propane gas are prohibited in the residence halls. Use of a grill can take place in the Quad area between Whitney and McReynolds Hall with prior permission from the Office of Residence Life

SMOKING & TOBACCO PRODUCTS

The use of tobacco products, e-cigarettes or vapor devices is prohibited in all campus buildings and campus-owned vehicles. E-cigarette and vaping devices are not permitted in on-campus housing facilities. Smoking is also prohibited on all outdoor areas of campus, except parking lots. Smoking of marijuana or THC products is never permitted on campus. Those who choose to smoke on Defiance College property must do so in parking lots and dispose of all trash appropriately. Please consult the Smoking and Tobacco Policy Statement in the Community Standards section of this handbook.

SOLICITATION/SELLING

Solicitation and business activity by anyone living in any housing owned by the college to operate a private business or otherwise engage in commercial activities from the premises is not permitted.

Defiance College affiliates wishing to participate in fundraising projects in the residence halls must secure written permission from the Dean of Students prior to any fundraising efforts. Solicitation by non-affiliate persons or groups is not permitted in the residence halls. Residents should immediately contact the Office of Residence Life at extension 2437 to report any solicitation by non-affiliates of Defiance College. An affiliate is defined as a recognized organizational group or department on the campus of Defiance College.

TORNADO/SEVERE WEATHER

If cloudy skies become stormy or rough in appearance, tune in to local radio or TV broadcasts for possible advisories from the National Weather Service. Remain alert for a worsening sky and the approach of storms, especially from the area generally southwest of Defiance. The city of Defiance is also equipped with emergency weather sirens to be sounded by local emergency planning officials in the event of a tornado or severe weather. (Sirens are tested the first Thursday of every month at 10:00 am.)

1. Stay inside and be alert for falling objects.
2. Stay away from windows, mirrors, glass, and unsecured objects.
3. Proceed to a below ground level or central hallway or small interior room with no windows.
4. Do not use elevators. Do not seek refuge in gyms, labs, classrooms, exterior rooms with windows, stairwells, non-masonry buildings, utility areas, mobile units and mobile vehicles.
5. Do not seek refuge outside. However, if there is no other choice, plan to lie flat in a ditch or culvert.
6. If requested, assist persons with disabilities or injuries to the safest area on the same floor.
7. When inside your refuge, sit on the floor. If a tornado strikes, duck your head between your knees and cover the back of your head with your hands.
8. Leave your refuge with caution. Multiple tornadoes can occur in one storm.

STUDENT CLUBS & ORGANIZATIONS

Defiance College encourages students to organize and participate in groups whose purpose centers on the interests and goals of the individuals involved. Experiences in the areas of leadership, interpersonal relationships, and decision-making related to the operations of the organization can provide vital lessons and, as such, are encouraged. In order to plan and coordinate group activities and keep students informed regarding possible organization activities, the College requires that student organizations annually register with the Office of Student Activities (Hubbard 125).

Forming a New Organization:

All student clubs and organizations must originate with student interest. To effectively organize a new student group, consider the following questions:

1. What is the purpose of your organization? Is that purpose in conflict with the Mission of Defiance College?
2. What will be the goals of your organization?
3. How do you plan to accomplish these goals?
4. What is unique about your group?
5. Are there other students you know who would like to join?
6. What type of commitment will members need to make to the organization?
7. How will you identify and recruit members for the organization?
8. Who will advise the group?

Answering these questions will help prepare your group to begin the registration process. If your organization is unclear about any of these items or would like assistance, please don't hesitate to contact The Office of Student Activities at (419) 783-2388, or dpeterson@defiance.edu.

Guidelines for Registration

In order to be recognized by Defiance College and be eligible for the appropriate benefits, student organizations must register with the Office of Student Activities. Registration signifies the organization's intent and agreement to comply with College Policies and Procedures.

A New Student Organization must meet these guidelines and submit the following:

- "New Student Organization Application" form
- Constitution/Bylaws
- List of members (Minimum of 7 students)
- Name of advisor (a member of the faculty or staff of the College). If you are unable to find an appropriate advisor, the Office of Student Activities & Leadership can assist in the search for one.
- Each new student organization is required to have at least seven members who are registered students attending Defiance College.
- If applicable, a new student account for handling funds.
- To be a student leader/officer of a recognized student organization, you must be registered for at least three (3) credit hours at Defiance College.
- The "New Student Organization Application" form is available in the Office of Student Activities (Hubbard 125) or via email at dpeterson@defiance.edu.

Existing Student Organization: Registration Update each Semester

Previously recognized student organizations must renew their registration each semester by completing an "Annual Student Organization Renewal" before the mid-term of each semester. These documents will be kept on file in the Office of Student Activities & Leadership. Organizations that do not complete the Registration renewal will be considered inactive and will not be able to apply for funding, reserve rooms, or have the privileges listed below. This registration form is available in the Office of Student Activities or via email at dpeterson@defiance.edu.

Privileges Available to Recognized Student Organizations

1. Use of designated bulletin boards on campus.
2. Ability to post notices/announcements on Email, Social Media, and other campus media outlets.
3. The ability to submit budget proposals to apply for funds for College financial support of events.
4. The ability to sponsor and promote projects and activities on campus with Student Activities approval and within institution's limitations.
5. Use of college car/van for club functions (advisors must reserve and drive college vehicles). Costs will be charged back to organizations at the current rate per mile. To reserve a vehicle: contact maintenance (419) 783-2503. Groups should plan ahead to assure availability.
6. Use of College facilities, meeting rooms, lobby tables, etc.

A description of various student organizations is included below:

BLACK ACTION STUDENT ASSOCIATION (BASA)
BASA serves as an organization with a focus on the history, creativity and culture of black people and the black experience. BASA serves as a "family unit" with respect to personal, social, and intellectual growth for its members and others who participate in the campus community. Membership in BASA is open to all of the Defiance College community. Students interested in the events or activities sponsored by BASA are encouraged to contact the Office of Office of Student Belongingness at 419-783-2563.

CAMPUS ACTIVITIES BOARD (CAB)
The purpose of the Campus Activities Board (CAB) is to provide a wide range of programs and activities for the college community. CAB's programs are fun, diverse, and are almost all free! CAB also strives to collaborate with other campus organizations in its planning of activities. All students interested in planning, coordinating, and creating campus activities are encouraged to volunteer for membership on the board; contact the Office of Student Activities & Leadership at extension 2388.

CAROLYN M. SMALL HONORS PROGRAM
The Carolyn M. Small Honors Program provides opportunities for all Defiance College students regardless of their major, to participate in an honors curriculum, to present at the annual Academic Colloquium and at off-campus conferences, and to engage in experiences on and off campus.

CATHOLICS ON CAMPUS
Catholics on Campus often coordinates on-campus services for various holy days and feast days for the convenience of all students, faculty, and staff and other interested parties. Students are also invited to attend church services and fellowship monthly. Students of any faith community are welcome. For more information, contact Kris Knight (ext 2445) or email kknight@defiance.edu.

CHESS CLUB
A social club made up of students, faculty and staff that enjoy the game of chess. No pressure or expectations of performance to belong. While this group is primarily an online chess club, we do host some events here and there including tournaments for members. All levels of player are welcome from the grand master, to the person that would like to learn the game. Just reach out to the advisor, or any current member to learn how to join. Advisor: Kevin Tong, ktong@defiance.edu

COMMUTER STUDENT ASSOCIATION
The Commuter Student Association is a group on campus made up of non-residential students as a way to provide a voice for those who are not on campus 24/7. They work towards making events on campus more accessible and welcoming for those who travel to campus and want to be more involved but are unable to, while providing a support system for commuters to have their voices heard as a smaller percentage of the campus population. Interested students may contact the CSA advisor, Mike Winslow, at (419) 783-2313 or mwinslow@defiance.edu.

CRIMINAL JUSTICE SOCIETY
The Criminal Justice Society is made up of Criminal Justice, Forensic Science, and Digital Forensic Science majors. The group encourages a focus on strong academic work and practical experience in these fields. Membership in the Criminal Justice Society requires students to remain in good academic standing with the school. Monthly meetings may include guest speakers and information for those who wish to attend the Ohio Council of Criminal Justice Education State Job Fair, held in the fall. A spring trip to a large metropolitan area includes tours relative to each study area, and service learning projects are conducted during the year. Members are also encouraged to attend and present research at the annual Ohio Council of Criminal Justice Education Research Conference. For more information, please contact Dr. Sheldon Goodrum at ext,2522

DC PRIDE
This student organization provides programming for the campus intended to broaden and deepen our understanding of sexual and gender identity. DC Pride advocates for and provides support to lesbian, gay, bisexual, transgender, queer, questioning students, faculty and staff, and their allies and is open to all members of the Defiance College Community. DC Pride sponsors events on campus and collaborates with other student organizations and departments on campus. Students interested in DC Pride and its programs and events are encouraged to contact their adviser,, r Dr. Kathryn Phillips.).

DUDE BE NICE
The purpose of Dude Be Nice is to foster acceptance and build an inclusive community through positive interactions on campus and with the community. Members strive to create a fun space where we can all come together and celebrate being part of one community on campus.For students interested, please contact the advisor Lisa Beringer at lberinger@defiance.edu or (419)783-2451.

FELLOWSHIP OF CHRISTIAN ATHLETES (FCA)
The Fellowship of Christian Athletes (FCA) organization is focused on student athletes here on campus and their relationship with Jesus Christ. Although it is student-athlete focused, the group is open to all students. For more information, contact Garett Mansfield (ext. 2566) or email gmansfield@defiance.edu..

LA RAZA
La Raza is a co-educational group geared toward the goals of Latino and Latinx students on campus. The organization welcomes all students from a spectrum of cultures. Students interested in the events or activities sponsored by La Raza are encouraged to contact the Office of Student Belongingness at 419-783-2563.

MUSIC PROGRAMS

DC COLLEGE CHOIR
College Choir is a choral ensemble open to all students at Defiance College. Repertoire consists of music from all stylistic periods, including contemporary music, and consists of small-form choral music performed a cappella and/or with chamber instruments. Frequent performances on and off-campus, including tours, are expected of this ensemble.

DEFIANCE COLLEGE COMMUNITY ORCHESTRA
The DCCO is a full orchestra open to all strings, winds, brass, and percussion. This ensemble combines the talents of college students, community members, and local music students to perform a variety of classic and contemporary orchestral literature. This ensemble offers musical growth and development, as well as performance opportunities for all involved

JAZZ BAND
The Jazz Band is open to students with an interest in jazz music and performance technique. This group meets once weekly and works on music of various styles including swing, funk, blues, rock and latin. The flexible nature of this ensemble allows for a traditional big band set-up or various combos based on student interest/instrumentation.

ORIENTATION LEADERS
An energetic group of students selected to assist incoming students with their transition to the campus and life as a college student. Applications are made available during the spring semester. Training is required and conducted throughout the spring semester and before the Orientation sessions begin. Contact the Office of Admissions for more information.

NATIONAL ALLIANCE ON MENTAL ILLNESS (NAMI)
NAMI, the National Alliance on Mental Illness, is the nation's largest grassroots mental health organization dedicated to building better lives for the millions of Americans affected by mental illness. NAMI advocates for access to services, treatment, supports and research and is steadfast in its commitment to raising awareness and building a community of hope for all those in need. NAMI on Campus at Defiance College endeavors to sponsor and conduct programs and activities that further the purposes and objectives of NAMI and shall use its best efforts to ensure that such programs and activities are consistent with NAMI's stated values and mission. For more information, contact counseling@defiance.edu

PHI ALPHA: National Social Work Honor Society
Omicron Mu chapter of Phi Alpha National Social Work Honor Society. Requirements for membership: Junior or senior status with a 3.0 overall GPA and a Social Work GPA within the 35% of all majors in the program.

PHI ALPHA THETA
Phi Alpha Theta is an honor society for history majors at Defiance College. Students must have a 3.1 GPA or higher and courses in history, and a 3.0 GPA or higher in all other courses in order to participate. For more information, contact Professor Steve Bare.

PICKLEBALL CLUB
A group of students who have united to promote a healthy and active community through the sport of pickleball. They aim to provide an inclusive environment for all students, staff, and faculty to come together, engage in friendly competition, and foster camaraderie. For students who are interested, please contact Dana Peterson, the Director of Student Activities, at dpeterson@defiance.edu or (419)783-2388.

SERVICE LEADERS
The Defiance College Service Leadership Program empowers students to become civically engaged leaders through hands-on service in the local and regional community. Participants attend monthly meetings, complete 100 service hours annually, and gain valuable leadership and career skills. Up to 25 incoming students each year receive a $1,500 renewable scholarship for their commitment to service. To get involved or learn more, contact Bridgette Winslow at 419-783-2395 or bwinslow@defiance.edu

SOCIAL WORK ORGANIZATION (SWO)
The Social Work Organization was created for the benefit of Defiance College social work students and those with allied majors and an interest in exploring social work as a career. The organization annually co-sponsors a fundraiser for the local homeless shelter, an urban trip to a major metropolitan city, various speakers and workshops on relevant social issues, as well as other social and professional activities. For more information contact Tess Salisbury at extension 2556.

STUDENT-ATHLETE LEADERSHIP TEAM (SALT)
Defiance College is dedicated to athletic, social, and academic advancement of all student-athletes. The mission of the Defiance College Student-Athlete Leadership Team (SALT) is to enhance the total student-athlete experience by promoting opportunities, supporting fellow student-athletes, and fostering a positive student-athlete image to the campus and community. SALT supports and upholds the core values of Defiance College to know, to lead, to serve, to understand.

STUDENT VETERANS OF AMERICA / S.V.A.
The purpose of the Defiance College Chapter of Student Veterans of America is to guide Veterans, current military members, dependents, and advocates throughout their academic career. Membership in this organization is open to all Defiance College Students with the goal of creating a spirit of understanding and cooperation between Student Veterans and the Defiance College Community as a whole. S.V.A. also works to promote causes that advocate for and help Veterans and active duty service members locally, nationally, and worldwide. For more information contact S.V.A. advisor Mike Winslow at (419) 783-2313 or jmwinslow@defiance.edu

TAU MU: DEFIANCE COLLEGE SOCIAL WORK HONOR SOCIETY
Named in honor of a deceased alumnus, Teclehaimanot Menghsteab, who died while assisting Eritrean refugees escape their civil war. Requirements: Graduating Seniors with a 3.25 overall GPA and 3.5 GPA within the major.

THE DEFENDER
Online campus newspaper with paid opportunities for traditional and social media reporting, feature articles on campus events, sports, and entertainment, photography and video, editorials, and more. Interested students can contact Abigail Bowers (ext. 2348) or email abowers@defiance.edu. Students with all levels of experience are encouraged to participate. Visit The Defender at defender.defiance.edu.

STUDENT CODE OF CONDUCT

INTRODUCTION

As a community of learners, Defiance College strives to inspire a commitment to know the truth, to understand our world and its diverse cultures, to lead within our professions, and to serve our communities as responsible citizens. The Defiance College Student Code of Conduct creates a set of community standards intended to ensure that students and their organizations, as members of our community, conduct themselves in accordance with this covenant. This code thus creates a set of expectations of student conduct, ensures a fair process for determining responsibility when student behavior may have deviated from those expectations, and provides appropriate sanctions when a student or student organization has violated the code.

Core Values of Student Conduct at Defiance College

- ***Integrity***: Defiance College students exemplify honesty, honor and a respect for the truth in all of their dealings.
- ***Community***: Defiance College students build and enhance their community.
- ***Social Justice***: Defiance College students are just and equitable in their treatment of all members of the community and act to discourage and/or intervene to prevent unjust and inequitable behaviors.
- ***Respect***: Defiance College students show positive regard for each other, for property and for the community.
- ***Responsibility***: Defiance College students are given and accept a high level of responsibility to self, to others and to the community.

Defiance College students are responsible for knowing the information, policies and procedures outlined in this document. The College reserves the right to make changes to this code as necessary and once those changes are posted online, they are in effect. Students are encouraged to check online http://www.defiance.edu/student-life/index.html for the updated versions of all policies and procedures.

SECTION 1: PHILOSOPHY STATEMENT

The Defiance College community is committed to fostering a campus environment that is conducive to academic inquiry, a productive campus life and thoughtful study and discourse. The student conduct program within the Office of Student Life is committed to an educational and developmental process that balances the interests of individual students with the interests of the Defiance College community.

A community exists on the basis of shared values and principles. At Defiance College, student members of the community are expected to uphold and abide by certain standards of conduct that form the basis of the Code of Student Conduct. These standards are embodied within a set of core values that include integrity, social justice, respect, community, and responsibility.

Each member of the Defiance College community bears responsibility for their conduct and to assume reasonable responsibility for the behavior of others. When members of the community fail to exemplify these five values by engaging in violation of the rules below, campus conduct proceedings are used to assert and uphold the Code of Student Conduct.

The student conduct process at the Defiance College is not intended to punish students; rather, it exists to protect the interests of the community and to challenge those whose behavior is not in accordance with our policies. Sanctions are intended to challenge students' moral and ethical decision-making and to help them bring their behavior into accord with our community expectations. When a student is unable to conform their behavior to community expectations, the student conduct process may determine that the student should no longer share in the privilege of participating in this community.

Students should be aware that the student conduct process is quite different from criminal and civil court proceedings. Procedures and rights in student conduct procedures are conducted with fairness to all, but do not include the same protections of due process afforded by the courts. Due process, as defined within these procedures, assures written notice and a hearing before an objective decision-maker. No student will be found in violation of Defiance College policy without information showing that it is more likely than not that a policy violation occurred and any sanctions will be proportionate to the severity of the violation and to the cumulative conduct history of the student.

SECTION 2: JURISDICTION

Students at Defiance College are provided a copy of the Code of Student Conduct annually in the form of a link on the Defiance College website. Hard copies are available upon request from the Office of Student Life. Students are responsible for having read and abiding by the provisions of the Code of Student Conduct.

The Code of Student Conduct and the student conduct process apply to the conduct of individual students, both undergraduate and graduate, and all Defiance College-affiliated student organizations.

For the purposes of student conduct, the College considers an individual to be a student when an offer of admission has been extended and thereafter as long as the student has a continuing educational interest in the Defiance College. The College retains conduct jurisdiction over students who choose to take a leave of absence, withdraw or have graduated for any misconduct that occurred prior to the leave, withdrawal or graduation. If sanctioned, a hold may be placed on the student's ability to re-enroll, obtain official transcripts and/or graduate, and all sanctions must be satisfied prior to re-enrollment eligibility. In the event of serious misconduct committed while still enrolled but reported after the accused student has graduated, the College may invoke these procedures and should the former student be found responsible, the College may revoke that student's degree.

The *Code of Student Conduct* applies to behaviors that take place on the campus, at College-sponsored events and may also apply off-campus when the Dean of Students or designee determines that the off-campus conduct affects a substantial College interest. A substantial College interest is defined to include:

- Any situation where it appears that the student's conduct may present a danger or threat to the health or safety of him/herself or others; and/or
- Any action that constitutes a criminal offense as defined by law. This includes, but is not limited to, single or repeat violations.
- Any situation that significantly impinges upon the rights, property or achievements of self or others or significantly breaches the peace and/or causes social disorder; and/or
- Any situation that is detrimental to the educational mission and/or interests of the College;

The *Code of Student Conduct* may be applied to behavior conducted online, via email, social media apps, group texting apps or other electronic medium. Students should also be aware that online postings such as blogs, web postings, chats and social networking sites are in the public sphere and are not private. These postings can subject a student to allegations of conduct violations if evidence of policy violations is posted online. The College does not regularly search for this information but may take action if and when such information is brought to the attention of College officials.

The *Code of Student Conduct* applies to guests of community members whose hosts may be held accountable for the misconduct of their guests. The Code may also be applied to resident non-students, campers and high school bridge/extension/partner/dual-credit and continuing education programs by contractual agreements. Visitors to and guests of Defiance College may seek resolution of violations of the *Code of Student Conduct* committed against them by members of the College community.

There is no time limit on reporting violations of the *Code of Student Conduct*; however, the longer someone waits to report an offense, the harder it becomes for College officials to obtain information and witness statements and to make determinations regarding alleged violations.

Though anonymous complaints are permitted, doing so may limit the College's ability to investigate and respond to a complaint.

A responding student facing an alleged violation of the *Code of Student Conduct* is not permitted to withdraw from the College until all allegations are resolved.

When conduct described in this policy implicates the College's Equal Opportunity, Discrimination, Harassment and Sexual Misconduct Policy (i.e Title IX policy), the College reserve the right to address the alleged conduct exclusively under the Equal Opportunity, Discrimination, Harassment and Sexual Misconduct Policy.

Defiance College email is the College's primary means of communication with students. Students are responsible for all communication delivered to their College email address.

SECTION 3: VIOLATIONS OF THE LAW

Alleged violations of federal, state and local laws may be investigated and addressed under the Code of Student Conduct. When an offense occurs over which the College has jurisdiction, the College conduct process will usually go forward notwithstanding any criminal complaint that may arise from the same incident.

The College reserves the right to exercise its authority of interim suspension upon notification that a student is facing criminal investigation and/or complaint (additional grounds for interim suspension are outlined later). Interim suspensions are imposed until a hearing can be held, typically within two weeks. This hearing may resolve the allegation, or may be held to determine if the interim suspension should be continued. The interim suspension may be continued if a danger to the community is posed and the College may be delayed or prevented from conducting its own investigation and resolving the allegation by the pendency of the criminal process. In such cases, the College will only delay its hearing until such time as it can conduct an internal investigation or obtain sufficient information independently or from law enforcement upon which to proceed.

This delay will be no longer than two weeks from notice of the incident unless a longer delay is requested in writing by the complaining victim to allow the criminal investigation to proceed before the College process.
Students accused of crimes may request to take a leave from the College until the criminal charges are resolved. In such situations, the College procedure for voluntary leaves of absence is subject to the following conditions:

- The responding student must comply with all campus investigative efforts that will not prejudice their defense in the criminal trial; and
- The responding student must comply with all interim actions and/or restrictions imposed during the leave of absence; and
- The responding student must agree that, in order to be reinstated to active student status, they must first be subject to, and fully cooperate with, the campus conduct process and must comply with all sanctions that are imposed.

SECTION 4: STANDARDS OF CONDUCT

A. Core Values and Behavioral Expectations

The College considers the behavior described in the following sub-sections as inappropriate for the Defiance College community and in opposition to the core values set forth in this document. These expectations and rules apply to all students, whether undergraduate, graduate, or continuing education. The College encourages community members to report to College officials all incidents that involve the following actions. Any student found to have committed or to have attempted to commit the following misconduct is subject to the sanctions outlined in Section 7: Conduct Procedures.

Integrity: Defiance College students exemplify honesty, honor and a respect for the truth in all of their dealings. Behavior that violates this value includes, but is not limited to:

1) **Falsification.** Knowingly furnishing or possessing false, falsified or forged materials, documents, accounts, records, identification or financial instruments or creating false materials for the purposes of impersonating another;
2) **Dishonesty.** Knowingly furnishing false academic or personal information to, or withholding information from College Officials. Acts of academic dishonesty are defined in the Undergraduate Catalog. All matters of academic dishonesty shall be referred to the Chief Academic Officer.
3) **Unauthorized Access.** Unauthorized access to any College building or unauthorized possession, duplication or use of means of access to any college building or failing to timely report a lost College identification card or key;
4) **Collusion.** Action or inaction with another or others to violate the *Code of Student Conduct*;
5) **Trust.** Violations of positions of trust within the community;
6) **Election Tampering.** Tampering with the election of any College-recognized student organization (minor election code violations are addressed by Student Senate);
7) **Taking of Property.** Intentional and unauthorized taking or attempting to take of College property or the personal property of another, including goods, services and other valuables;
8) **Stolen Property.** . Knowingly taking or maintaining possession of stolen property or attempting to do so;

Community: Defiance College students build and enhance their community. Behavior that violates this value includes, but is not limited to:

9) **Disruptive Behavior.** Substantial disruption of College operations including obstruction of teaching, research, administration, other College activities, and/or other authorized non-College activities which occur on campus;
10) **Rioting.** Causing, inciting or participating in any disturbance that presents a clear and present danger to self or others, causes physical harm to others, or damage and/or destruction of property;
11) **Unauthorized Entry.** Misuse of access privileges to College premises or unauthorized entry to or use of buildings, including trespassing, propping or unauthorized use of alarmed doors for entry into or exit from a College building;
12) **Trademark.** Unauthorized use (including misuse) of College or organizational names or logos; including listing a residence hall address, College mail or email address or College website in conjunction with any business enterprise, or in any way that suggests that the College endorses or sponsors the business;

13) **Damage and Destruction.** Intentional, reckless and/or unauthorized damage to or destruction of College property or the personal property of another;

14) **IT and Acceptable Use.** Violating the College Computer Policy, found later in Community Standards section and online at http://www.defiance.edu/student-life/computer-services/index.html.

15) **Gambling.** Gambling as prohibited by the laws of the State of Ohio (Gambling may include raffles, lotteries, sports pools and online betting activities. For more information, see Community Standards);

16) **Weapons.** . Possession, use, or distribution of explosives (including fireworks and ammunition), guns (including air, BB, paintball, facsimile weapons and pellet guns), or other weapons or dangerous objects such as arrows, axes, machetes, nunchucks, throwing stars, or knives, including the storage of any item that falls within the category of a weapon in a vehicle parked on College property is prohibited. Per state law, Ohio conceal carry license holders may store their weapon in a locked compartment in a locked vehicle on campus.

17) **Smoking and Tobacco.** Smoking or tobacco use is prohibited in all campus buildings, campus-owned vehicles, and outdoor areas of campus except parking lots. This includes the use of chewing tobacco, e-cigarettes and vapor devices.

18) **Fire Safety.** Violation of local, state, federal or campus fire policies including, but not limited to:
   a) Intentionally or recklessly causing a fire which damages College or personal property or which causes injury.
   b) Failure to evacuate a College-controlled building during a fire alarm;
   c) Improper use of College fire safety equipment; or
   d) Tampering with or improperly engaging a fire alarm or fire detection/control equipment while on Defiance College property. Such action may result in a local fine in addition to College sanctions;

19) **Ineligible Pledging or Association.** Pledging or associating with a student organization without having met eligibility requirements established by the College.

20) **Animals.** Animals, with the exception of animals that provide assistance (e.g. seeing-eye dogs), and pets as outlined in the Residence Life Handbook, are not permitted on campus except as permitted by law.

21) **Wheeled Devices.** Skateboards, roller blades, roller skates, Hoverboards, bicycles and similar wheeled devices are not permitted inside College buildings, residence halls or on tennis courts. Additionally, skateboards and other wheeled items may not be ridden on railings, curbs, benches, or any such fixtures that may be damaged by these activities and individuals may be liable for damage to College property caused by these activities.

Social Justice: Students recognize that respecting the dignity of every person is essential for creating and sustaining a flourishing community. They understand and appreciate how their decisions and actions impact others and are just and equitable in their treatment of all members of the community. They act to discourage and challenge those whose actions may be harmful to and/or diminish the worth of others. Conduct that violates this value includes, but is not limited to:

22) **Discrimination.** Any act or failure to act that is based upon an individual or group's actual or perceived status (sex, gender, gender identity/expression, race, age, national or ethnic origin, disability, genetic information, veteran status, marital status, religion, sexual orientation, or other protected status) that is sufficiently severe that it limits or denies the ability to participate in or benefit from the College's educational program or activities. All matters of discrimination will be referred to the Title IX Coordinator.

23) **Harassment.** Any unwelcome conduct based on actual or perceived status including: sex, gender, gender identity/expression, race, age, national or ethnic origin, disability, genetic information, veteran status, marital status, religion, sexual orientation, or other protected status. Any unwelcome conduct should be reported to campus officials, who will act to remedy and resolve reported incidents on behalf of the victim and community. All matters of harassment will be referred to the Title IX Coordinator.
   a) Hostile Environment. Sanctions can and will be imposed for the creation of a hostile environment only when harassment is sufficiently severe, pervasive (or persistent) and objectively offensive that it unreasonably interferes with, limits or denies the ability to participate in or benefit from the College's educational or employment program or activities.

24) **Retaliation.** Any adverse action towards any person for reporting an alleged violation of this policy or for cooperating with or otherwise participating in any College investigation. Retaliation includes, but is not limited to, verbal or implied threats, physical or psychological abuse, intimidation, harassment (verbal or written), or any other action intended to create a hostile environment for the intended target of the retaliation. In addition, isolation may constitute retaliation under this policy if the target of the isolation is deprived of an educational opportunity or benefit as a result of that isolation.

25) **Bystanding.**

a) Complicity with or failure of any student to appropriately address known or obvious violations of the *Code of Student Conduct* or law;

b) Complicity with or failure of any organized group to appropriately address known or obvi ous violations of the *Code of Student Conduct* or law by its members.

26) **Abuse of Conduct Process.** Abuse or interference with, or failure to comply in, College processes including conduct and academic dishonesty hearings including, but not limited to:

a) Falsification, distortion, or misrepresentation of information;

b) Failure to provide, destroying or concealing information during an investigation of an alleged policy violation;

c) Attempting to discourage an individual's proper participation in, or use of, the campus conduct system;

d) Harassment (verbal or physical) and/or intimidation of a member of a campus conduct body prior to, during, and/or following a campus conduct proceeding;

e) Failure to comply with the sanction(s) imposed by the campus conduct system;

f) Influencing, or attempting to influence, another person to commit an abuse of the campus conduct system.

Respect: Defiance College students show positive regard for each other and for the community. Behavior that violates this value includes, but is not limited to:

27) **Harm to Persons.** Intentionally or recklessly causing physical harm or endangering the health or safety of any person.

28) **Threatening Behaviors:**

a) **Threat.** Written or verbal conduct that causes a reasonable expectation of injury to the health or safety of any person or damage to any property.

b) **Intimidation.** Intimidation defined as implied threats or acts that cause a reasonable fear of harm in another.

29) **Bullying and Cyberbullying.** Bullying and cyberbullying are repeated and/or severe aggressive behaviors that intimidate or intentionally harm or control another person physically or emotionally, and are not protected by freedom of expression.

30) **Hazing.** Effective October 7, 2021, Hazing, as set forth in Ohio Revised Code section 2903.31, as amended, means: Intentionally, knowingly, or recklessly, for the purposes of initiating, admitting or affiliating a student into or with an organization, or for the purpose of continuing or enhancing a student's membership or status in an organization, causing, coercing or forcing a student to do any of the following, regardless of whether such conduct occurs on or off campus:

- Violate Federal or State criminal law.
- Consume any food, liquid, alcoholic liquid, drug or other substance which subjects the student to a risk of emotional or physical harm.
- Endure brutality of a physical nature, including whipping, beating, branding, calisthenics or exposure to the elements.
- Endure brutality of a mental nature, including actively adversely affecting the mental health or dignity of the individual, sleep deprivation, exclusion from social contact or conduct that could result in extreme embarrassment.
- Endure brutality of a sexual nature.
- Endure any other activity that creates a reasonable likelihood of bodily injury to the student.

31) **Intimate Partner/Relationship Violence.** Violence or abuse by a person in an intimate relationship with another; All matters of Intimate Partner/Relationship violence are referred to the Title IX Coordinator.
32) **Stalking.** Stalking is a course of conduct directed at a specific person that is unwelcome and would cause a reasonable person to feel fear;
33) **Sexual Misconduct**. Includes, but is not limited to, sexual harassment, non-consensual sexual contact, non-consensual sexual intercourse, and/or sexual exploitation (See *Community Standards* Equal Opportunity, Harassment, Discrimination and Sexual Misconduct policy for further information). All matters of Sexual Misconduct are referred to the Title IX Coordinator.
34) **Public Exposure.** Includes deliberately and publicly exposing one's intimate body parts, public urination, defecation, and public sex acts.

Responsibility: College students are given and accept a high level of responsibility to self, to others and to the community. Behavior that violates this value includes, but is not limited to:

35) **Alcohol.** Use, possession, or distribution of alcoholic beverages or paraphernalia except as ex pressly permitted by law and the College's Alcohol Policy (See *Community Standards* for further information);
36) **Drugs.** Use, possession or distribution of illegal drugs and other controlled substances and the use or possession of drug paraphernalia except as expressly permitted by law and the College's Drug Policy (See *Community Standards* for further information);
37) **Prescription Medications**. Abuse, misuse, sale, or distribution of prescription or over-the-counter medications;
38) **Failure to Comply.** Failure to comply with the reasonable directives of Defiance College officials, security or law enforcement officers during the performance of their duties and/or failure to identify oneself to these persons when requested to do so;
39) **Financial Responsibilities.** Failure to promptly meet financial responsibilities to the institution, including, but not limited to; knowingly passing a worthless check or money order in payment to the institution or to an official of the institution acting in an official capacity.
40) **Arrest.** Failure of any student to accurately report an off-campus arrest by any law enforcement agency for any crime (including non-custodial or field arrests) to the Office of Student Life within seventy-two (72) hours of release.
41) **Other Policies.** Violating other published College policies or rules, including all Residence Hall policies;
42) **Health and Safety.** Creation of health and/or safety hazards (dangerous pranks, hanging out of or climbing from/on/in windows, balconies, roofs, etc.)
43) **Violations of Law.** Evidence of violation of local, state or federal laws, when substantiated through the College's conduct process.

SECTION 5: OVERVIEW OF THE CONDUCT PROCESS

This overview gives a general idea of how the College's campus conduct proceedings work, but it should be noted that not all situations are of the same severity or complexity. Thus, these procedures are flexible, and are not exactly the same in every situation, though consistency in similar situations is a priority. The campus conduct process and all applicable timelines commence with notice to an administrator of a potential violation of College rules.

NOTICE. Once notice is received from any source (victim, RA, 3rd party, online, etc.), the College may proceed with a preliminary investigation and/or may schedule an initial educational meeting/conference with the responding student to explain the conduct process to the responding student and gather information. All matters of Academic Dishonesty are referred to the Chief Academic Officer. All matters of discrimination, harassment and sexual misconduct are referred to the Title IX Coordinator and follow an investigator only model.

A. STEP 1: Preliminary Inquiry and/or Educational Conference

The College conducts a preliminary inquiry into the nature of the incident, complaint or notice, the evidence available, and the parties involved. The preliminary inquiry may lead to:

1) A determination that there is insufficient evidence to pursue the investigation, because the behavior alleged, even if proven, would not violate the Code of Student Conduct, (e.g.: for reasons such as mistaken identity or allegations of behavior that falls outside the code);
2) A more comprehensive investigation, when it is clear more information must be gathered;
3) A formal complaint of a violation and/or an educational conference with the responding student.

When an initial educational meeting/conference is held, the possible outcomes include:

- A decision not to pursue the allegation based on a lack of or insufficient evidence. The matter should be closed and records should so indicate;
- A decision on the allegation, also known as an "informal" or "administrative" resolution to an uncontested allegation (see immediately below);
- A decision to proceed with additional investigation and/or referral for a "formal" resolution.

If a decision on the allegation is made and the finding is that the responding student is not responsible for violating the Code, the process will end. If the College's finding is that the responding student is in violation, and the responding student accepts this finding within three days, the College considers this an "uncontested allegation." The administrator conducting the initial educational conference will then determine the sanction(s) for the misconduct, which the responding student may accept or reject. If accepted, the process ends.

If a student accepts the findings, but rejects the sanction, the College will conduct a sanction-only hearing, conducted by the Campus Judicial Committee (CJC) which recommends a sanction to the Dean of Students. The sanction is then reviewed and finalized by the Dean of Students and is subject to appeal (see *Appeal Review Procedures* in Section 7(P) below) by any party to the misconduct. Once the appeal is decided, the process ends.

If the administrator conducting the educational conference determines that it is more likely than not that the responding student is in violation, and the responding student rejects that finding in whole or in part, then it is considered a contested allegation and the process moves to Step 2.

B. STEP 2: Formal Hearing

In a contested allegation, additional investigation may then be commenced and/or a hearing may be held when there is reasonable cause to believe that a rule or rules have been violated. A formal notice of the complaint will be issued, and a hearing will be held before the Campus Judicial Committee (CJC). If the finding is that the responding student is not responsible, the process ends. Applicable appeals options are described below.

C. STEP 3: Review and Finalize Sanction(s).

If the student is found in violation(s), sanctions will be recommended by the CJC to the Dean of Students who will review and finalize the sanctions, subject to the College appeals process by any party to the complaint.

Section 6: Student Conduct Authority

A. Authority

Ultimate authority for student discipline is vested in the Board of Trustees of the College. The Board of Trustees has delegated authority for student discipline to the President. The senior student affairs officer is the person designated by the President to be responsible for the administration of the Student Code of Conduct. Discipline authority may be delegated to College officials and committees as set forth in this Code, in accordance with other policies, rules, or regulations, and as deemed appropriate by the President.

B. Gatekeeping

No complaint will be forwarded for a hearing unless there is reasonable cause to believe a policy has been violated. Reasonable cause is defined as some credible information to support each element of the offense, even if that information is merely a credible witness or a victim's statement. A complaint wholly unsupported by any credible information will not be forwarded for a hearing.

C. Conflict Resolution Options

The Dean of Students has discretion to refer a complaint for mediation or other forms of appropriate conflict resolution. All parties must agree to conflict resolution and to be bound by the decision with no review/appeal. Any unsuccessful conflict resolution can be forwarded for formal processing and hearing; however, at no time will complaints of physical sexual misconduct or violence be mediated as the sole institutional response. The Dean of Students may also suggest that complaints that do not involve a violation of the *Code of Student Conduct* be referred for mediation or other appropriate conflict resolution.

D. Composition of the Campus Judicial Committee/Hearing Panel

The Dean of Students will be responsible for assembling the Campus Judicial Committee (CJC) according to the following guidelines:

1) The membership of the panel is selected from a pool of at least 9 students, 3 faculty, and 3 staff/ administrative members appointed and trained annually by the Dean of Students.
2) For each complaint, a panel will be chosen from the available pool, and is usually comprised of three students, one faculty member, and one staff member or administrator. Availability may determine a different composition for the Panel. The Dean of Students appoints the non-voting chair of the Hearing Panel, who assures that College procedures are followed throughout the hearing. Training is provided to the CJC Pool members on an annual basis.

E. Administrative Hearing Officers

Administrative Hearing Officers (AHO) are chosen from a pool of annually trained administrators or staff members selected by the Dean of Students.

F. CJC Hearing Panel Pool and the Appeals Panel

Three-member Appeals Panels are drawn from the CJC pool, with the only requirement being that they did not serve on the Panel for the initial hearing. Appeals Panels review appeal requests submitted by the Dean of Students. If an all faculty/staff panel is used to hear a sensitive issue, the Appeals Panel will also be comprised of only faculty/staff members.

To serve in the CJC hearing panel pool, students must:

1) Be in academic good standing and have completed 15 hours of academic credit with a cumulative GPA of at least 2.0.
2) Be in good standing with the conduct process throughout the semester in which they serve. Good standing is defined as having no record of misconduct during the semester(s) in which a student wishes to serve on the panel. A serious history of misconduct could disqualify a student for service.
3) Be recommended by a faculty member or administrator from within the Defiance College community.

The Dean of Students will have final authority to approve all those serving on the panel. The non-voting advisor to the panel is the Dean of Students (or designee) with responsibility for training the panel, conducting preliminary investigations, and ensuring a fair process for the party bringing the complaint and responding student. In the event of a resignation from the panel, the Dean of Students (or designee) will solicit a replacement from the group from which the representative came. Decisions made, and sanctions imposed, by the panel or an AHO will be final and implemented, pending the normal appeal process. At the discretion of the Dean of Students (or designee), implementation of sanctions may be stayed pending review.

G. Interpretation and Revision

The Dean of Students will develop procedural rules for the administration of hearings that are consistent with provisions of the Code of Student Conduct. Material deviation from these rules will, generally, only be made as necessary and will include reasonable advance notice to the parties involved, either by posting online and/or in the form of written communication. The Dean of Students may vary procedures with notice upon determining that changes to law or regulation require policy or procedural alterations not reflected in this Code. The Dean of Students or designee may make minor modifications to procedure that do not materially jeopardize the fairness owed to any party. Any question of interpretation of the Code of Student Conduct will be referred to the Dean of Students, whose interpretation is final. The Code of Student Conduct will be updated annually under the direction of the Dean of Students with a comprehensive revision process being conducted every 3-5 years.

SECTION 7: FORMAL CONDUCT PROCEDURES

A. College as Convener

The College is the convener of every action under this code. Within that action, there are several roles. The responding student is the person who is alleged to have violated the Code. The party bringing the complaint, who may be a student, employee, visitor, or guest, may choose to be present and participate in the process as fully as the responding student. There are witnesses, who may offer information regarding the allegation. There is an investigator(s) whose role is to present the allegations and share the evidence that the College has obtained regarding the allegations.

B. Group Violations

The Code of Student Organization Conduct and the student conduct process apply to the conduct of Recognized Student Organizations (RSOs). . RSO's that have lost Defiance College recognition may still be subject to provisions in this code. Individual students who are members of a RSO are still subject as individuals to the Code of Student Conduct and may be held individually accountable for behaviors also attributed to the RSO. Individuals who are members of a RSO may, through their actions, subject the RSO to disciplinary action under this Code, whether or not those individuals are also adjudicated under the Code of Student Conduct. Athletic Teams are considered RSO's for purposes of this policy.

The Code of Student Organization Conduct applies to behaviors that take place on the campus, at Defiance College or RSO-sponsored events whether on or off-campus, and may also apply to other off-campus behaviors when the Dean of Students or designee determines that the off-campus conduct affects the college interest. A college interest is defined to include:

- Any situation where it appears that the RSO's conduct may present a danger or threat to the health or safety of individuals or others; and/or
- Any action that constitutes a criminal offense as defined by law. This includes, but is not limited to, single or repeat violations.
- Any situation that significantly impinges upon the rights, property or achievements of self or others or significantly breaches the peace and/or causes social disorder; and/or
- Any situation that is detrimental to the educational mission and/or interests of the College;

See *Student Organization Code of Conduct and Procedures* section in this handbook for further details.

C. Amnesty:

1) For Victims

The College provides amnesty to victims who may be hesitant to report to College officials because they fear that they themselves may be accused of minor policy violations, such as underage drinking, at the time of the incident. Educational options will be explored, but no conduct proceedings or conduct record will result.

2) For Those Who Offer Assistance

To encourage students to offer help and assistance to others, Defiance College pursues a policy of amnesty for minor violations when students offer help to others in need. At the discretion of the Dean of Students, amnesty may also be extended on a case-by-case basis to the person receiving assistance. Educational options will be explored, but no conduct proceedings or conduct record will result.

3) For Those Who Report Serious Violations

Students who are engaged in minor violations but who choose to bring related serious violations by others to the attention of the College are offered amnesty for their minor violations. Educational options will be explored, but no conduct proceedings or record will result. Abuse of amnesty requests can result in a decision by the Dean of Students not to extend amnesty to the same person repeatedly.

4) Safe Harbor

The College has a Safe Harbor rule for students. The College believes that students who have a drug and/or addiction problem deserve help. If any College student brings their own use, addiction, or dependency to the attention of College officials outside the threat of drug tests or conduct sanctions and seeks assistance, a conduct complaint will not be pursued. A written action plan may be used to track cooperation with the Safe Harbor program by the student. Failure to follow the action plan will nullify the Safe Harbor protection and campus conduct processes will be initiated.

D. Notice of Alleged Violation

Any member of the College community, visitor or guest may allege a policy violation(s) by any student for misconduct under this Code by submitting a Communication Information Form at https://www.defiance.edu/communication-information.html

Notice may also be given in person, by phone, via email or in writing to the Office of Student Life or member of the Title IX team as appropriate. Additionally, administrators may act on notice of a potential violation whether a formal allegation is made or not. All allegations can be submitted by a victim or a third party, and should be submitted as soon as possible after the offending event occurs. The College has the right to pursue an allegation or notice of misconduct on its own behalf and to serve as convener of the subsequent campus conduct process.

The Dean of Students (or designee) will assume responsibility for the investigation of the alleged violation as described in the sub-section below.

E. Investigation

Investigation is referenced in both steps 1 and 2 above, with detailed investigation procedures described in this sub-section. The Dean of Students will appoint an investigator(s) for allegations under this Code. (Any complaint that falls under Title IX (e.g. sexual misconduct) or involves any other form of discrimination or harassment will be overseen by the Title IX Coordinator). The investigator(s) will take the following steps, if not already completed by the Dean of Students or designee:

1) Initiate any necessary remedial actions on behalf of the victim (if any);
2) Determine the identity and contact information of the party bringing the complaint,
3) Conduct an immediate preliminary investigation to identify an initial list of all policies that may have been violated, to review the history of the parties, the context of the incident(s), any potential patterns and the nature of the complaint;
    a) If the victim is reluctant to pursue the complaint, determine whether the complaint should still be pursued and whether sufficient independent evidence could support the complaint without the participation of the victim;
    b) Notify the victim of whether the College intends to pursue the complaint regardless of their involvement, and inform the victim of their rights in the process and option to become involved if they so choose;
    c) Preliminary investigation usually takes between 1-3 business days to complete;
4) If indicated by the preliminary investigation and authorized by the Dean of Students, conduct a comprehensive investigation to determine if there is reasonable cause to believe that the responding student violated Defiance policy, and to determine what specific policy violations should serve as the basis for the complaint;
    a) If there is insufficient evidence through the investigation to support reasonable cause, the allegations will be closed with no further action;
    b) A comprehensive investigation usually takes 10-14 days
5) Meet with the reporting party bringing the complaint to finalize their statement, which will be drawn up by the investigator or designee as a result of this meeting;
6) Commence a thorough, reliable and impartial investigation by developing a strategic investigation plan, including a witness list, evidence list, intended timeframe, and order of interviews for all witnesses and the responding student, who may be given notice of the interview prior to or at the time of the interview;
    a) Prepare the notice of alleged policy violation(s) on the basis of the reasonable cause determination, which may be delivered prior to, during or after the responding student is interviewed, at the discretion of the investigator(s);
7) Obtain all documentary evidence and information that is available;
8) Obtain all physical evidence that is available;
9) Complete the investigation promptly by analyzing all available evidence without unreasonable deviation from the intended timeline of ten (10) business days;
10) Make a finding, based on a preponderance of the evidence (whether a policy violation is more likely than not);
11) Present the investigation report and findings to the responding student, who may:
    a) accept the findings,
    b) accept the findings in part and reject them in part,
    c) or may reject all findings;
12) Share the findings and update the reporting party on the status of the investigation and the outcome.

Additional Details of the Investigation Process

a. Remote processes

Parties and witnesses may be interviewed remotely by phone, video conferencing, or similar technologies if the Investigator(s) and/or Administrative Hearing Officer (AHO) determine that timeliness, efficiency or other causes dictate a need for remote interviewing. Witnesses may also provide written statements in lieu of interviews, or respond to questions in writing, if deemed appropriate by the Investigator(s) or AHO, though this approach is not ideal. When remote technologies are used, the College makes reasonable efforts to ensure privacy, and ensures that any technology does not work to the detriment of any party or subject them to unfairness.

c. Recording

No unauthorized audio or video recording of any kind is permitted during the resolution process including investigative interviews. If Investigator(s) elect to audio and/or video record interviews, all involved parties must be made aware of audio and/or video recording.

F. Findings

The following options (1-3) describe how to proceed depending on whether the responding student is found responsible and whether the Responding Student accepts or rejects the findings and/or the sanctions either in whole or in part.

1) The Responding Student is Found "Not Responsible"

Where the responding student is found not responsible for the alleged violation(s), the investigation will be closed. The reporting party, if any, may request that the Dean of Students review the investigation file to possibly re-open the investigation or convene a hearing.

The decision to re-open an investigation or convene a hearing rests solely in the discretion of the Dean of Students in these cases, and is granted only on the basis of extraordinary cause.

2) The Responding Student Accepts a Finding of "Responsible"…

a) The Responding Student Accepts a Finding of "Responsible" and <u>Accepts</u> the Recommended Sanctions.

Should the responding student accept the finding that they violated Defiance College policy, the Investigator will recommend appropriate sanctions for the violation, having consulted with the Dean of Students, as appropriate. If the responding student accepts these recommended sanctions, the sanctions are implemented by the Dean of Students. This outcome is not subject to appeal.

b) The Responding Student Accepts a Finding of "Responsible" and <u>Rejects</u> the Sanctions Recommended.

If the responding student accepts the "responsible" findings, but rejects the recommended sanctions, there will be an administrative conference on the sanction, only. Administrative conference procedures are detailed below.

3) Responding Student Rejects the Findings Completely or In-part

a) Responding Student Rejects the Findings Completely

Where the responding student rejects the finding that they violated College policy, a formal hearing will be convened within seven business days, barring exigent circumstances. At the hearing, the investigator(s) will present their report to the CJC hearing panel, the panel will hear from the parties, and any necessary witnesses. The investigation report will be considered by the panel, which renders an independent and objective finding. Full CJC procedures are detailed below.

If the CJC finds the responding student not responsible for all violations, the Dean of Students will timely inform the parties of this determination and the rationale for the decision in writing. This determination is subject to appeal by any party to the complaint. Appeal review procedures are outlined below.

If the CJC finds a violation, it will recommend a sanction/responsive action to the Dean of Students, who will render a decision within 2 days of the hearing and timely notify the parties in writing. An appeal of sanction(s) may be filed by any party to the complaint as detailed below

b) Responding Student Accepts the Findings in Part and Rejects in Part

Where the responding student rejects in part the finding that they violated College policy, there will be a CJC hearing solely on the disputed allegations within seven days, barring exigent circumstances. For all findings holding a responding student responsible for a violation, the College will follow the sanctioning process detailed in sub-sections K(8) and K(9), below. If the CJC finds the responding student "Not Responsible" on any of the contested allegations, the process will move to the Sanctioning Phase on only the uncontested allegations, as detailed in sub-sections K(8) and K(9), below.

G. Special Provisions for Complaints of a Sensitive Nature

All hearings under this sub-section will be conducted by a three-member faculty/staff panel drawn from the panel pool.

H. Notice of Hearing

Once a determination is made that reasonable cause exists for the Dean of Students (or designee) to refer a complaint for a hearing, notice will be given to the responding student. Notice will be in writing and may be delivered by one or more of the following methods: in person by the Dean of Students (or designee); mailed to the local or permanent address of the student as indicated in official College records; or emailed to the student's College-issued email account. Once mailed, emailed and/or received in-person, such notice will be presumptively delivered. The letter of notice will:

1) Include the alleged violation and notification of where to locate the *Code of Student Conduct* and College procedures for resolution of the complaint; and
2) Direct the responding student to meet the Dean of Students (or designee) within a specified period of time to respond to the complaint. This time period will generally be no less than two days from the date of delivery of the summons letter.

A meeting with the Dean of Students (or designee) may be arranged to explain the nature of the complaint and the conduct process. At this meeting, the responding student may indicate, either verbally or in writing, to the Den of Students (or designee), whether they admit to or deny the allegations of the complaint.

I. Interim Action

Under the Code of Student Conduct, the Dean of Students or designee may impose restrictions and/or separate a student from the community pending the scheduling of a campus hearing on alleged violation(s) of the Code of Student Conduct when a student represents a threat of serious harm to others, is facing allegations of serious criminal activity, to preserve the integrity of an investigation, to preserve College property and/or to prevent disruption of, or interference with, the normal operations of the College. Interim actions can include separation from the institution or restrictions on participation in the community for no more than ten (10) business days pending the scheduling of a campus hearing on alleged violation(s) of the Code of Student Conduct.

During an interim suspension, a student may be denied access to College housing and/or the College campus/facilities/events. As determined appropriate by the Dean of Students, this restriction may include classes and/or all other College activities or privileges for which the student might otherwise be eligible. At the discretion of the Dean of Students and with the approval of, and in collaboration with, the appropriate faculty, alternative coursework options may be pursued to ensure as minimal an impact as possible on the responding student.

J. Hearing Options & Preparation

The following sub-sections describe the College's conduct hearing processes. Except in a complaint involving failure to comply with the summons of the Dean of Students (or designee), no student may be found to have violated the Code of Student Conduct solely as a result of the student's failure to appear for a hearing. In all such instances, conduct hearings will proceed as scheduled and the information in support of the complaint will be presented to, and considered by, the Dean of Students, AHO or CJC presiding over the hearing.

Where the responding student admits to violating the Code of Student Conduct, the Dean of Students (or designee) may invoke administrative hearing procedures to determine and administer appropriate sanctions without a formal hearing. This process is also known as an administrative conference. In an administrative conference, complaints will be heard and determinations will be made by the Dean of Students or designee.

Where the responding student denies violating the Code of Student Conduct, a formal hearing will be conducted. This process is known as a CJC (panel) hearing. At the discretion of the Dean of Students (or designee), a request by one or more of the parties to the complaint for an administrative conference may be considered. Students who deny a violation for which a CJC hearing will be held will be given a minimum of 3 days to prepare unless all parties wish to proceed more quickly. Preparation for a formal hearing is summarized in the following guidelines:

1) Notice of the time, date and location of the hearing will be in writing and may be delivered by one or more of the following methods: in person by the Dean of Students (or designee); mailed to the local or permanent address of the student as indicated in official College records; or emailed to the student's College-issued email account. Once mailed, emailed and/or received in-person, such notice will be presumptively delivered.
2) If there is an alleged victim of the conduct in question, the alleged victim may serve as the party bringing the complaint or may elect to have the College administration serve as the party bringing the complaint forward. Where there is no alleged victim, the College administration will serve as the party bringing the complaint forward.

3) If a responding student fails to respond to notice from the Dean of Students (or designee), the Dean of Students (or designee) may initiate a complaint against the student for failure to comply with the directives of a College official and give notice of this offense. Unless the student responds to this notice within two days by answering the original notice, an administrative conference may be scheduled and held on the student's behalf. As a result, the student may be administratively withdrawn from attending classes or a disciplinary hold may be placed on their College account, deeming them ineligible to register for courses or College housing until such time as the student responds to the initial complaint.

4) At least three (3) days before any scheduled formal hearing, the following will occur:
   a) The responding student will deliver to the Dean of Students (or designee) a written response to the complaint;
   b) The responding student will deliver to the Dean of Students(or designee) a written list of all witnesses for the College to call at the hearing;
   c) The responding student will deliver to the Dean of Students (or designee) all physical evidence the student intends to use or needs to have present at the hearing and will indicate who has possession or custody of such evidence, if known, so that the Dean of Students can arrange for its presence;
   d) The reporting party will deliver to Dean of Students(or designee) a written list of all witnesses for the College to call at the hearing;
   e) The reporting party will deliver to the Dean of Students (or designee) all items of physical evidence needed at the hearing and will indicate who has possession or custody of such evidence, if known, so that the Dean of Students can arrange for its presence;
   f) The reporting party and the responding student will notify the Dean of Students (or designee) of the names of any advisors/advocates who may be accompanying the parties at the hearing.

5) The Dean of Students (or designee) will ensure that the hearing information and any other available written documentation is shared with the parties at least two (2) days before any scheduled hearing. In addition, the parties will be given a list of the names of all the CJC panelists in advance. Should any party object to any panelist, that party must raise all objections, in writing, to the Dean of Students immediately. Hearing officers will only be unseated if the Dean of Students concludes that their bias precludes an impartial hearing of the complaint. Additionally, any CJC panelist who feels they cannot make an objective determination must recuse themselves from the proceedings.

K. Panel Hearing Procedures

The Dean of Students will appoint one panelist as the Chair for the hearing. The parties have the right to be present at the hearing; however, they do not have the right to be present during deliberations. If a student cannot attend the hearing, it is that student's responsibility to notify the Dean of Students no less than three (3) days prior to the scheduled hearing to arrange for another date, time and location. Except in cases of grave or unforeseen circumstances, if the responding student fails to give the requisite minimum three (3) day notice, or if the responding student fails to appear, the hearing will proceed as scheduled. If the reporting party fails to appear, the complaint may be dropped unless the College chooses to pursue the allegation on its own behalf, as determined by the Dean of Students.

The Dean of Students (or designee), the Chair and the Panel will conduct panel hearings according to the following guidelines:

1) Hearings will be closed to the public.
2) Admission to the hearing of persons other than the parties involved will be at the discretion of the CJC panel chair and the Dean of Students.
3) In hearings involving more than one responding student, the standard procedure will be to hear the complaints jointly; however, the Dean of Students may permit the hearing pertinent to each responding student to be conducted separately. In joint hearings, separate determinations of responsibility will be made for each responding student.
4) The parties have the right to an advisor/advocate of their own choosing, including attorneys. Typically advisors are members of the campus community, but the parties may select whom ever they wish to serve as their advisor. The advisor may not make a presentation or represent the party bringing the complaint or responding student during the hearing. They may confer quietly with their advisee, exchange notes, clarify procedural questions with the chair and suggest questions to their advisee.

5) The reporting party, the responding student, the CJC panel, and the Dean of Students (or designee) will have the privilege of questioning all present witnesses and questioning all present parties (directly or through the Chair, at the discretion of the Chair). Unduly repetitive witnesses can be limited at the discretion of the CJC panel Chair and/or the Dean of Students (or designee).
6) Pertinent records, exhibits, and written statements may be accepted as information for consideration by the CJC and the Dean of Students. Formal rules of evidence are not observed. The CJC Chair and/or the Dean of Students (or designee) may limit the number of character witnesses presented or may accept written affidavits of character instead.
7) All procedural questions are subject to the final decision of the Dean of Students or CJC Chair.
8) After a CJC hearing, the panel will deliberate and determine, by majority vote, whether it is more likely than not that the responding student has violated the Code of Student Conduct. The Dean of Students (or designee) will be present and available as a resource during all deliberations. Once a finding is determined, if the finding is that of a policy violation, the panel will determine an appropriate sanction(s). The Dean of Students (or designee) is responsible for informing the CJC panel of applicable precedent and any previous conduct violations or other relevant pattern information about the responding student. The panel Chairperson will prepare a written deliberation report and deliver it to the Dean of Students, detailing the recommended finding, the information cited by the panel in support of its recommendation, and any information the panel excluded from its consideration and why. This report should conclude with any recommended sanctions. This report should not exceed two pages in length and must be submitted to the Dean of Students within two (2) days of the end of deliberations.
9) The Dean of Students will consider the recommendations of the CJC panel, may make appropriate modifications to the panel's report and will then render a decision and inform the responding student and reporting party (if applicable by law or College policy) of the final determination within 2 days of the hearing. Notification will be made in writing and may be delivered by one or more of the following methods: in person by the Dean of Students (or designee); mailed to the local or permanent address of the student as indicated in official College records; or emailed to the student's College-issued email account. Once mailed, emailed and/or received in-person, such notice will be presumptively delivered. In cases of crimes of violence, notice of the outcome will be delivered to all parties simultaneously, meaning without substantial delay between the notifications to each.

There will be a single verbatim record, such as an audio recording, for all CJC hearings. Deliberations will not be recorded. The record will be the property of the College and maintained according to the College's record retention policy.

Alternative Hearing Participation Options

If a party or parties prefer not to attend or cannot attend the hearing in person, the party should request alternative arrangements from the Dean of Students or designee at least three(3) business days prior to the hearing.
At their discretion, the Dean of Students or designee may arrange to use technology to allow remote testimony without compromising the fairness of the hearing. Remote options may also be needed for witnesses who cannot appear in person. Any witness who cannot attend in person should let the Dean of Students or designee know at least three (3) business days prior to the hearing so that appropriate arrangements can be made.

L. Conduct Sanctions

One or more of following sanctions may be imposed upon any student for any single violation of the *Code of Student Conduct*:

1) ***Warning:*** An official written notice that the student has violated College policies and/or rules and that more severe conduct action will result should the student be involved in other violations while the student is enrolled at the College.
2) ***Restitution:*** Compensation for damage caused to the College or any person's property. This could also include situations such as failure to return a reserved space to proper condition – labor costs and expenses. This is not a fine but, rather, a repayment for labor costs and/or the value of property destroyed, damaged, consumed, or stolen.
3) ***Fines:*** Reasonable fines may be imposed. Fines are specified to include: $100 for intentionally or negligently activating a fire alarm.
4) ***Community/College Service Requirements:*** For a student or organization to complete a specific supervised Community/College service.

5) ***Loss of Privileges:*** The student will be denied specified privileges for a designated period of time.
6) ***Confiscation of Prohibited Property:*** Items whose presence is in violation of College policy will be confiscated and will become the property of the College. Prohibited items may be returned to the owner at the discretion of the Dean of Students (or designee).
7) ***Behavioral Requirement:*** This includes required activities including, but not limited to, seeking academic counseling or substance abuse screening, writing a letter of apology, etc.
8) ***Educational Program:*** Requirement to attend, present and/or participate in a program related to the violation. It may also be a requirement to sponsor or assist with a program for others on campus to aid them in learning about a specific topic or issue related to the violation for which the student or organization was found responsible. Audience may be restricted.
9) ***Restriction of Visitation Privileges:*** May be imposed on a resident or non-resident student. The parameters of the restriction will be specified.
10) ***College Housing Probation:*** Official notice that, should further violations of Residence Life or College policies occur during a specified probationary period, the student may immediately be removed from College/housing. Regular probationary meetings may also be imposed.
11) ***College Housing Reassignment:*** Reassignment to another College housing facility. Residential Life personnel will decide on the reassignment details.
12) ***College Housing Suspension:*** Removal from College housing for a specified period of time after which the student is eligible to return. Conditions for re-admission to College housing may be specified. Under this sanction, a student is required to vacate College housing within 24 hours of notification of the action, though this deadline may be extended upon application to, and at the discretion of, the Director of Residence Life. This sanction may be enforced with a trespass action if deemed necessary. Prior to reapplication for College housing, the student must gain permission from the Director of Residence Life (or designee). This sanction may include restrictions on visitation to specified buildings or all Defiance housing during the suspension.
13) ***College Housing Expulsion:*** The student's privilege to live in, or visit, any College housing structure is revoked indefinitely. This sanction may be enforced with a trespass action if deemed necessary.
14) ***College Probation:*** The student is put on official notice that, should further violations of College policies occur during a specified probationary period, the student may face suspension or expulsion. Regular probationary meetings may also be imposed.
15) ***Eligibility Restriction:*** The student is deemed "not in good standing" with the College for a specified period of time. Specific limitations or exceptions may be granted by the Dean of Students and terms of this conduct sanction may include, but are not limited to, the following:
    a) Ineligibility to hold any office in any student organization recognized by the College or hold an elected or appointed office at the College; or
    b) Ineligibility to represent the College to anyone outside the College community in any way including: participating in the study abroad program, attending conferences, or representing the College at an official function, event or intercollegiate competition as a player, manager or student coach, etc.
16) ***College Suspension:*** Separation from the College for a specified minimum period of time, after which the student is eligible to return. Eligibility may be contingent upon satisfaction of specific conditions noted at the time of suspension. The student is required to vacate the campus within 24 hours of notification of the action, though this deadline may be extended upon application to, and at the discretion of, the Dean of Students. During the suspension period, the student is banned from property, functions, events and activities without prior written approval from the Dean of Students. This sanction may be enforced with a trespass action as necessary.
17) ***College Expulsion:*** Permanent separation from the College. The student is banned from property and the student's presence at any College-sponsored activity or event is prohibited. This action may be enforced with a trespass action as necessary.
18) ***Withholding Diploma:*** The College may withhold a student's diploma for a specified period of time and/or deny a student participation in commencement activities if the student has a complaint pending or as a sanction if the student is found responsible for an alleged violation.
19) ***Revocation of Degree:*** The College reserves the right to revoke a degree awarded from the College for fraud, misrepresentation, or other violation of College policies, procedures, or directives in obtaining the degree, or for other serious violations committed by a student prior to graduation.

20) ***Other Sanctions:*** Additional or alternate sanctions may be created and designed as deemed appropriate to the offense with the approval of the Dean of Students or designee.
The following sanctions may be imposed upon groups or organizations found to have violated the *Code of Student Conduct*:
1) One or more of the sanctions listed above and/or
2) Deactivation, de-recognition, loss of all privileges (including status as a College registered group/organization), for a specified period of time.

M. Withdrawal While Charges Pending

The College does not permit a student to withdraw if that student has an allegation pending for violation of the Code of Conduct or Community Standards. Should a student decide to leave and/or not participate in the conduct process, the process will nonetheless proceed in the student's absence to a reasonable resolution and that student will not be permitted to return to the College unless all sanctions have been satisfied. The student will not have access to an academic transcript until the allegations have been resolved

N. Parental Notification

The College reserves the right to notify the parents/guardians of dependent students regarding any conduct situation, particularly alcohol and other drug violations. The College may also notify parents/guardians of non-dependent students who are under the age of 21 of alcohol and/or other drug violations. Parental notification may also be utilized discretionarily by administrators when permitted by FERPA or consent of the student.

O. Notification of Outcomes

The outcome of a campus hearing is part of the education record of the responding student and is protected from release under the Federal Education Rights and Privacy Act (FERPA), except under certain conditions. As allowed by FERPA, when a student is accused of a policy violation that would constitute a "crime of violence", the College will inform the alleged victim/party bringing the complaint in writing of the final results of a hearing regardless of whether the College concludes that a violation was committed. Such release of information may only include the alleged student's/responding student's name, the violation committed, and the sanctions assigned (if applicable). In cases of sexual misconduct and other offenses covered by Title IX, only the essential findings/rationale for the outcome will also be shared with all parties to the complaint in addition to the finding and sanction(s).
In cases where the College determines through the student conduct process that a student violated a policy that would constitute a "crime of violence" or nonforcible sex offense, the College may also release the above information publicly and/or to any third party. FERPA defines "crimes of violence" to include:

1) Arson
2) Assault offenses (includes stalking)
3) Burglary
4) Criminal Homicide—manslaughter by negligence
5) Criminal Homicide—murder and nonnegligent manslaughter
6) Destruction/damage/vandalism of property
7) Kidnapping/abduction
8) Robbery
9) Forcible sex offenses
10) Non-forcible sex offenses

P. Failure to Complete Conduct Sanctions

All students, as members of the College community, are expected to comply with conduct sanctions within the timeframe specified by the Dean of Students or Administrative Hearing Officer. Failure to follow through on conduct sanctions by the date specified, whether by refusal, neglect or any other reason, may result in additional sanctions and/or suspension from the College. In such situations, resident students will be required to vacate College housing within 24 hours of notification by the Dean of Students, though this deadline may be extended upon application to, and at the discretion of, the Director of Residence Life and/or the Dean of Students. A suspension will only be lifted when compliance with conduct sanctions is satisfactorily achieved. This determination will be made by the Dean of Students.

Q. Appeal Review Procedures

Any party may request an appeal of the decision of the CJC/Administrative Conference by filing a written request to the Office of Student subject to the procedures outlined below. All sanctions imposed by the original hearing body remain in effect, and all parties should be timely informed of the status of requests for appeal, the status of the appeal consideration, and the results of the appeal decision.

GROUNDS FOR APPEAL REQUESTS

Appeals requests are limited to the following grounds:

1) **Procedural Error:** A procedural error or omission occurred that significantly impacted the out come of the hearing (e.g. substantiated bias, material deviation from established procedures, etc.). Any challenge for bias must include: a) what the bias was, b) how the bias manifested itself,
and c) how the bias significantly impacted the outcome. A mere allegation or determination of bias will not be sufficient to meet this ground for appeal.
2) **New Evidence:** New evidence is information that was unknown or unavailable during the original hearing or investigation that could substantially impact the original finding or sanction. A summary of this new evidence, how it was previously unknown or unavailable, and its potential impact must be included. If a person refused to testify or participate in the investigation and now wishes to submit their testimony as new evidence at the appellate level, that testimony will not be considered "new evidence" under this ground. The Dean of Students or designee serving as the reviewer of requests for appeal may determine if the matter will be sent back for further investigation based on this request for appeal.
3) The sanction is grossly disproportionate to the violation found.

Appeals must be filed in writing to the Office of Student Life within three (3) business days of the notice of the outcome to the hearing, barring exigent circumstances. Any exceptions are made at the discretion of the Dean of Students or, when appropriate, the Title IX Coordinator.

The Dean of Students will share the appeal by one party with the other party (parties) when appropriate under procedure or law (e.g., if the responding student appeals, the appeal is shared with the reporting party, who may also wish to file a response, request an appeal on the same grounds or different grounds; this response will be shared with the initial appealing party). The Office of Student Life will refer the request(s) to the College's designated Appeals Panel, which consists of three members of the CJC pool who did not participate in the original hearing. Based on the written requests/responses or on interviews as necessary, all parties will receive a response memorandum, based on the Appeals Panel determination that the request(s) will be granted or denied, and why. All request-related documents are shared with all parties prior to submission to the Appeals Panel.

The Appeals Panel will conduct an initial review to determine if the appeal request meets the limited grounds and is timely. The Appeal Panel may dismiss an appeal request as untimely or ineligible, may grant an appeal, may deny an appeal, may modify the sanction, and/or may remand the finding and/or sanction for further investigation or reconsideration by the original hearing decision maker. They may consult with the Dean of Students on any procedural or substantive questions that arise.

If the appeal is not timely or substantively eligible, the original finding and sanction will stand and the decision is final. If the appeal has standing, the Appeals Panel determines whether to hear the appeal or to remand it to the original decision-maker(s), typically within 3-5 business days. Efforts should be made to use remand whenever possible, with clear instructions for reconsideration only in light of the granted appeal grounds. Where the original decision-maker may be unduly biased by a procedural or substantive error, a new panel will be constituted to reconsider the matter, which can in turn be appealed, once. Full rehearings by the Appeals Panel are not permitted. Where new evidence is presented or the sanction is challenged, the Appeals Panel will either return it to the original decision-maker for reconsideration or the Appeals panel will with instruction on the parameters regarding institutional consistency and any applicable legal guidelines. In review, the original finding and sanction are presumed to have been decided reasonably and appropriately, thus the burden is on the appealing party(ies) to show clear error. The Appeals Panel must limit its review to the challenges presented.

On reconsideration, the Appeals Panel or original decision-maker may affirm or change the findings and/or sanctions of the original hearing body according to the permissible grounds. Procedural errors should be corrected, new evidence should be considered, and sanctions should be proportionate to the severity of the violation and the student's cumulative conduct record.

All decisions of the Appeals Panel are to be made within five (5) days of submission to the Panel and are final, as are any decisions made by the original hearing body, Dean of Students or Title IX Coordinator as the result of reconsideration consistent with instructions from the Appeals Panel.

THE APPEALS PANEL

Three-member Appeals Panels are drawn from the CJC panel pool, with the following requirements to serve:

1) they did not serve on the CJC for the initial hearing
2) they were not involved in the investigation in any way
3) they have been properly trained in appeals procedures

If the institution allows for students to serve in the panel pool, they must:

1) Be in academic good standing and have completed 15 hours of academic credit with a cumulative GPA of at least 2.0.
2) Be in good standing with respect to the conduct process throughout the term in which they serve. Good standing is defined as having no record of misconduct during the semester(s) in which a student wishes to serve on the panel, as well as not currently being on any probation. A serious history of misconduct could disqualify a student for service.

The Dean of Students will have final authority to approve all those serving on the panel. The parties may challenge a panelist(s) on the basis of potential bias, and any panelist who cannot render an impartial decision must recuse themselves. The Dean of Students will make the determination as to the validity of any challenge or need for recusal. In the event of a recusal from the panel, the Dean of Students will solicit a replacement from the pool of panelists.

The Dean of Students or designee serves as the non-voting advisor to the panel, with responsibility for training the panel, conducting preliminary investigations, and ensuring a fair process for the complainant and responding student.

The presumptive stance of the Defiance is that all decisions made and sanctions imposed by the original decision-maker are to be implemented during the appellate process. At the discretion of the Dean of Students, and in consultation with the Title IX Coordinator when necessary, implementation of sanctions may be stayed pending review only in extremely exigent circumstances. This does not include proximity to graduation, end of term, or exams. Instead, it refers to an overwhelming likelihood, as determined by the Dean of Students, that the appeal would result in a reversal of the finding and/or substantial modification of the sanctions.

OTHER GUIDELINES FOR APPEALS

- All parties will be timely informed of the status of requests for appeal, the status of the appeal consideration, and the results of the appeal decision;
- Every opportunity to return the appeal to the original decision-maker for reconsideration (remand) should be pursued;
- Appeals are not intended to be full re-hearings of the complaint (de novo). In most cases, appeals are confined to a review of the written documentation or record of the original hearing, and pertinent documentation regarding the grounds for appeal; Witnesses may be called if necessary.
- Appeals are not an opportunity for appeals panelists to substitute their judgment for that of the original decision-maker merely because they disagree with the finding and/or sanctions. Appeals decisions are to be deferential to the original decision-maker, making changes to the finding only where there is clear error and to the sanction only if there is a compelling justification to do so.

R. Disciplinary Records

All conduct records are maintained by the College for seven (7) years from the time of their creation except those that result in separation (suspension or expulsion, including from housing) and those that fall under Title IX, which are maintained indefinitely.

R. Approval and Implementation

This *Code of Student Conduct* was approved and implemented on August 1, 2022.

The Defiance College Code of Student Conduct is adapted from The NCHERM Group Model Developmental Code of Student Conduct and is used here with permission.

STUDENT ORGANIZATION CODE OF CONDUCT AND PROCEDURES

Section 1 - Jurisdiction

The leadership of a Recognized Student Organization (herein referred as "RSO") at Defiance College are provided a copy of the Code of Student Organization Conduct annually in the form of a link on the Defiance College website http://www.defiance.edu/student-life/info/campus-safety-and-compliance.html. Hard copies are available upon request from the Office of Student Conduct. Students who are part of recognized student organizations are responsible for having read and abiding by the provisions of the Code of Student Organization Conduct.

The Code of Student Organization Conduct and the student conduct process apply to the conduct of RSOs. RSO's that have lost Defiance College recognition may still be subject to provisions in this code. Individual students who are members of a RSO are still subject as individuals to the Code of Student Conduct and may be held individually accountable for behaviors also attributed to the RSO. Individuals who are members of a RSO may, through their actions, subject the RSO to disciplinary action under this Code, whether or not those individuals are also adjudicated under the Code of Student Conduct. Athletic Teams are considered RSO's for purposes of this policy.

The Code of Student Organization Conduct applies to behaviors that take place on the campus, at Defiance College or RSO-sponsored events whether on or off-campus, and may also apply to other off-campus behaviors when the Dean of Students or designee determines that the off-campus conduct affects the college interest. A college interest is defined to include:

- Any situation where it appears that the RSO's conduct may present a danger or threat to the health or safety of individuals or others; and/or
- Any action that constitutes a criminal offense as defined by law. This includes, but is not limited to, single or repeat violations.
- Any situation that significantly impinges upon the rights, property or achievements of self or others or significantly breaches the peace and/or causes social disorder; and/or
- Any situation that is detrimental to the educational mission and/or interests of the College;

The Code of Student Organization Conduct may be applied to behavior conducted online, via email or other electronic medium. RSO members should also be aware that online postings such as blogs, web postings, chats and social networking sites are in the public sphere and are not private. These postings can subject a RSO to allegations of conduct violations if evidence of policy violations is posted online. The College does not regularly search for this information but may take action if and when such information is brought to the attention of Defiance College officials.

The Code of Student Organization Conduct applies to guests of the RSO and the RSO may be held accountable for the misconduct of their guests. Visitors to and guests of Defiance College may seek resolution of violations of the Code of Student Organization Conduct committed against them by a RSO and/or members of a RSO.

There is no time limit on reporting violations of the Code of Student Organization Conduct; however, the longer someone waits to report an offense, the more difficult it may become for College officials to obtain information and witness statements and to make determinations regarding alleged violations.

Though anonymous complaints are permitted, doing so may limit the College's ability to investigate and respond to a complaint.

A RSO facing an alleged violation of the Code of Student Organization Conduct is permitted to dissolve/surrender recognition during the investigation/adjudication process. However, the College may continue the investigation/adjudication process even after the RSO has been dissolved.

Defiance College email is the College's primary means of communication with RSO representatives. Official Defiance College correspondence related to this Code of Student Organization Conduct will be transmitted to the College email address of the RSO representative. RSO representatives are responsible for all communication delivered to the college email address. In addition, College may notify the RSO Advisor and/or any inter/national governing body associated with the RSO.

Section 2 - Prohibited Behaviors

The behaviors listed below are specifically applied to the behaviors of RSOs by virtue of the conduct of the members of the RSO. As stated, individual students who are members of a RSO are still subject as individuals to the Code of Student Conduct and may be held individually accountable for behaviors also attributed to the RSO. Individuals who are members of a RSO may, through their actions, subject the RSO to disciplinary action under this Code, whether or not those individuals are also adjudicated under the Code of Student Conduct.

Abuse of Process – A RSO, or someone acting on behalf of a RSO, violates this Code by directly or indirectly abusing or interfering with the College's investigation/adjudication process by engaging in one or more of the following: falsifying, distorting, or misrepresenting information or colluding to do the same in the investigation/adjudication process; destroying or concealing information; attempting to discourage an individual's proper participation in the investigation/adjudication process; harassing or intimidating (verbally or physically) any person involved in the College processes before, during, and/or following proceedings (including up to, throughout, and after any outcome); unauthorized disclosure of a reporting party's identifying information; failing to comply with a temporary measure or other sanction; distributing or otherwise publicizing materials created or produced during an investigation as a part of these policies or procedures, except as required by law or as expressly permitted by Defiance College; or influencing or attempting to influence another person to commit abuse of process.

Aiding in Academic Misconduct - The RSO aids, abets, organizes, approves or otherwise participates in behaviors that would constitute cheating, plagiarism, misrepresentation (e.g. having another RSO member check into a class or take an exam) and/or other forms of Academic Misconduct Evidence of a violation of this policy must demonstrate systemic participation and or knowledge of misconduct beyond 1-2 RSO members participating in the violation.

Alcohol - The RSO aids, abets, incites, organizes, approves or otherwise participates in any behavior that would constitute a violation of the Defiance College alcohol policy would constitute a violation of this policy.

Alleged Violations of Law – Any alleged violations of federal, state and local laws may be investigated and adjudicated under the Code of Student Organization Conduct. When an offense occurs over which the Defiance College has jurisdiction, the College conduct process will usually move forward notwithstanding any criminal complaint that may arise from the same incident.

Arrest Policy – RSO leadership fails to notify the Dean of Students or their designee within 48 hours if a member of the RSO is arrested and detained as a result of any actions or behaviors taking place at or arising out of a RSO-sponsored event.

Bullying/Cyberbullying - The RSO aids, abets, incites, organizes, approves or otherwise participates in any behavior that would constitute bullying and/or cyberbullying, which are defined as repeated and/or severe aggressive behaviors that intimidate or intentionally harm or control another person physically or emotionally, and are not protected by freedom of expression.

Civil Rights-Based Harassment/Discrimination - The RSO aids, abets, incites, organizes, approves or otherwise participates in any behavior that would constitute a violation of the Defiance College Equal Opportunity, Harassment, Discrimination and Sexual Misconduct policy would constitute a violation of this policy.

Damage/Destruction of Property - The RSO aids, abets, incites, organizes, approves or otherwise participates in any behavior that would constitute a violation of the Defiance College damage/destruction of property policy would constitute a violation of this policy.

Disruptive Activity/Disorderly Conduct - The RSO aids, abets, incites, organizes, approves or otherwise participates in any behavior that would constitute a violation of the Defiance College disruptive activity/disorderly conduct policy would constitute a violation of this policy.

Drugs or Other Controlled Substances - The RSO aids, abets, incites, organizes, approves or otherwise participates in any behavior that would constitute a violation of the Defiance College drug policy would constitute a violation of this policy.

Endangerment – The RSO aids, abets, incites, organizes, approves or otherwise participates in any activity that would constitute physical abuse or would endanger the safety, health or well-being of other individuals or groups or would cause reasonable apprehension of such harm, constitutes a violation of this policy. For the purposes of this policy, Endangerment would include observation of activities that might endanger the safety, health, or well-being of individuals by RSO members in a position to intervene but who fail to intervene.

Failure to Comply – The RSO or its representatives fail to comply with the reasonable directives of Defiance College officials or designees or law enforcement officers during the performance of their duties. This would include failure to comply with any interim measures instituted during any investigation/adjudication process, or failure to comply with any outcomes assigned to a RSO at the completion of the conduct process.

Financial Obligations - Failure to promptly meet financial responsibilities to the Defiance College, including, but not limited to; knowingly passing a worthless check or money order in payment to the Defiance College or to an official of the College acting in an official capacity or misusing funds obtained through the College (i.e. student activity fees).

Hazing – The RSO aids, abets, incites, organizes, approves or otherwise participates in any behavior that would constitute a violation of the Defiance College hazing policy http://www.defiance.edu/student-life/documents/anti-hazing-policy-collins-law-2021.pdf would constitute a violation of this policy. For the purposes of this policy, "approved or otherwise participates" would include observation of hazing activities by individuals in a position to intervene but who fail to intervene, including organization officers/leaders who are aware of planned hazing activities and condone or fail to prevent that hazing from occurring, regardless of their participation.

Retaliation - The RSO aids, abets, incites, organizes, approves or otherwise participates in any behavior that would constitute retaliation under this policy. Retaliation is defined as any adverse action towards any person for reporting an alleged violation of this policy or for cooperating with or otherwise participating in any College investigation. Retaliation includes, but is not limited to, verbal or implied threats, physical or psychological abuse, intimidation, harassment (verbal or written), or any other action intended to create a hostile environment for the intended target of the retaliation. In addition, isolation may constitute retaliation under this policy if the target of the isolation is deprived of an educational opportunity or benefit as a result of that isolation.

Trademark/Copyright Violations – The RSO engages in unauthorized use (including misuse) of Defiance College or organizational names and images.

Violations of College Policies – Violating, attempting to violate, or assisting in the violation of any other Defiance College policy, contract, rule, bylaw and/or regulation of the Defiance College may constitute a violation of the Code of Student Organization Conduct. Examples include, but are not limited to: the Code of Student Conduct, Title IX Policy, Academic Integrity Policies, Residence Life/Housing Policies, Technology Policy, etc.

Section 3 - Procedures

Notice to the Defiance College

The institution may receive notice of an allegation or potential violation of this or other related policies in a number of ways, including, but not limited to:

- The filing of an incident report with the appropriate College department or official, including self-reporting.
- Any Responsible Employee is made aware of any potential violation of this or other related policies.
- Any Responsible Employee observes any potential violation of this or other related policies.
- Any Responsible Employee is aware of an RSO's climate or culture that may indicate a probabilty of violations of this or any other related policies.

(Responsible Employee is defined as any person employed by the College who:

- Has the authority to take action to address any violation of policy;
- Has the duty to report any type of misconduct to appropriate officials; or
- Is someone who a student could reasonably believe has this authority or responsibility)

Self-Reporting of Individual Misconduct and Amnesty

RSO leadership are encouraged to immediately report any violations committed by members of the RSO of this or other Defiance College policies to the Dean of Students Office. This report should provide a detailed description of the events that transpired, the names of any individuals involved, and a description of any internal disciplinary actions taken by the RSO. If RSO chooses to self-report behavior in this manner, the Dean of Students or designee will only investigate the individual(s) implicated in the report. Unless information discovered in the investigation suggests that the incident was aided, abetted, sanctioned or organized by the RSO, the investigation will be limited to the individuals implicated in the self-report and not the RSO. However, if information is uncovered in the investigation that suggests that the RSO aided, abetted, sanctioned or organized the event, the Dean of Students or designee may launch a formal investigation of the RSO.

Students who make a complaint under this policy or who participate in an investigation related to this policy will not be charged with other minor College policy violations that are brought to light in the course of the investigation that arose out of, or were committed as a direct result of, the incident(s) under investigation (i.e. students forced to consume alcohol as part of a hazing incident will not be charged with violations of the College's alcohol policy) as long as those behaviors do not represent a threat to the health, safety or well-being of others. The College reserves the right to follow up with students related to those issues as appropriate in a non-disciplinary setting.

Preliminary Inquiry

Upon receiving notice of an alleged violation of this or other CollegePolicies involving a RSO, the Dean of Students (or designee), in consultation with the appropriate College departments, will conduct a preliminary assessment to determine if there is a reasonable basis for conducting an investigation into the alleged violations of College Policies. This initial assessment will include a review of the information reported. This may include, but is not limited to:

- interview(s) with the person(s) who made the report.
- review prior conduct history of the RSO and relevant members.
- gather information that would corroborate elements of the report.
- review of any materials related to the report.

Once a determination has been made that the alleged violations warrant a more comprehensive investigation or response, the Dean of Students or designee will notify the RSO in writing to outline the alleged violations, the resolution options based on alleged violations, and to schedule an educational conference (if applicable). This notification will also be sent to RSO Advisor(s), any relevant College departments, and if applicable, the RSO inter/national governing body.

If the Dean of Students or designee determines that no investigation is necessary, the report is documented and administratively closed. The Dean of Students or designee may, at their discretion, notify the RSO of the information received and that the matter is closed. In these cases, the Dean of Students or designee may choose, at their discretion, to maintain the confidentiality of any reporting party(ies).

Interim Measures

In cases where it is determined that certain continued operations of a RSO constitute a reasonable threat of harm to individuals, damage of College premises, or disruption to the educational mission of the Defiance College, the Dean of Students or designee may issue interim measures, up to and including an interim suspension of all RSO activities, pending final disposition of the matter. Upon issuance of an interim measure, the Dean of Students or designee will notify the RSO representative and other appropriate parties in writing.

If a RSO wishes to seek a review of these interim measures, the RSO must submit a written request for an administrative review to the Dean of Students or designee. This administrative review should happen within five (5) business days of the College's receipt of the request. This administrative review is not a hearing on the merits of the underlying allegations, but is merely a review to determine what, if any, interim measures are appropriate. The review may lead to a continuance, revocation, and/or modification of the interim measures, including modifications that may be more restrictive than the initial measures. Defiance College will notify RSO leadership of the outcome of the review in writing within three (3) business days of the review meeting. This notification will include the College's decision and the rationale for that decision.

If the College investigation lasts beyond 30 days (as outlined below, beginning from the date of the Educational Conference), the RSO may request another review of the interim measures, which will be handled similarly to the initial request for review as outlined above.

Resolution Options

Upon notice of a potential violation, the Dean of Students or designee will conduct an assessment of the allegations to determine the applicable resolution options available to address the alleged policy violations. In so doing, the Dean of Students or designee may make use of a Violation Rubric. If utilized this Violation Rubric provides recommended adjudication models for various types of violations of this Code. The determination of resolution model will include consideration of the following:

- the severity of the alleged violations
- the risk of harm to other persons
- the conduct history of the RSO
- current status of the RSO
- any other relevant factors.

The Violation Rubric provides three levels of process associated with resolving alleged violations of this Code: Prescribed Resolution, Partnership Process Resolution, and Formal Investigation. An Educational Conference will be used when the Partnership Process Resolution or Formal Investigation options are utilized. The Dean of Students or designee may, at any time, determine that a case should be moved from a lower tier to a formal investigation.

Early Resolution

In certain cases there may be a determination by the Dean of Students or designee that there is insufficient evidence to proceed with an investigation, and/or the information collected, even if true, would not constitute a violation of policy. Early resolution is not a determination of responsibility, and is not recorded as a prior determination of such. However, if the behavior may constitute a violation of policies of inter/national governing bodies with which the RSO is affiliated, and the Dean or designee is aware of this affiliation, the Dean or designee may, at their discretion, forward the information to the appropriate body.

In these cases, the dean or designee may choose to meet with the RSO representative and any other appropriate parties to discuss behavioral expectations. The Dean of Students or designee may suggest proactive educational and/or developmental measures designed to assist the RSO.

However, if Defiance College receives additional information related to the matter that was resolved by early resolution, the College reserves the right to reopen the matter and proceed with investigation and adjudication.

Prescribed Resolution Process

In certain cases, the Dean of Students or designee, in reviewing the allegations, may determine that the allegations constitute a violation of policy(ies), and these violations fall under Level 1 of the Violations Rubric. Violations that fall under Level 1 of the Violations Rubric have prescribed outcomes associated with them. In these cases, the Dean of Students or designee may send an outcomes letter to the RSO representative and any other appropriate parties outlining the determination, the outcomes, and the rationale for both.

Upon receipt of this letter, the RSO may do one of the following:

- Accept the determinations and outcomes – in this case, the RSO will follow the directives outlined in the outcomes letter and the matter will be considered closed once the outcomes are completed. Failure to complete the outcomes may result in additional disciplinary action; or
- Decline to accept the determinations and outcomes – in this case, the matter will be forwarded for formal investigation and adjudication.

The RSO must notify the Dean of Students or designee of their choice from the above within two (2) business days of receipt of the letter.

In certain cases that might otherwise constitute a Level 1 violation, the Dean of Students or designee may determine that a different resolution option is warranted. This determination may be based upon the prior history of the RSO or its members, the RSO's current status, any patterns of behavior, or other factors deemed relevant.

The Educational Conference

In those cases where the Violation Rubric would suggest a Partnership or Formal Adjudication Process, or in those cases that began with a Prescribed Outcomes Process but the RSO elects to have the case adjudicated through the Formal Adjudication Process, the Dean of Students or designee will schedule an Educational Conference with the RSO representative and RSO Advisor and other appropriate parties.

This meeting provides an opportunity for the leadership of the RSO, the RSO advisor(s) and the RSO inter/national governing body (if applicable) to discuss the nature of the allegations, the rights and responsibilities of the RSO, the resolution options available to the RSO based on the nature of the allegations, and the specific steps involved in the different resolution options. Participation in the Educational Conference is voluntary; however, the Dean of Students or designee, may proceed with the process in the absence of participation from the RSO.

In the event that the RSO needs additional time to select the preferred resolution option, the RSO will be given one business day following the Educational Conference to notify the Dean of Students or designee of the preferred resolution option. The Dean of Students or designee will make the final determination on the resolution option to be used in investigating and adjudicating the alleged violations.

Partnership Process

For this resolution process, the RSO is given the opportunity to conduct an internal investigation. The Partnership Process will include the following:

- The Dean of Students or designee will, in consultation with the RSO representative and RSO advisor and other appropriate parties, develop an investigation scope and timeline based on the nature of the allegations.
- The RSO must conduct an investigation and submit a written investigative report within the agreed-upon timeline, barring exigent circumstances as determined by the Dean of Students or designee, or as otherwise specified in writing by the Defiance College.
    - Report should be detailed and specific, including the names of specific individuals involved in the alleged violation and any internal disciplinary action the RSO has implemented relative to those individuals. The report must be submitted in writing electronically to the Dean of Students.

Report Review by Dean of Students or Designee

The Dean of Students or designee will review the RSO's investigative report and will make one of the following determinations:

- The Dean or Designee agrees that the report is complete and will schedule a resolution meeting to discuss the report and findings and review next steps; or
- The Dean or Designee agrees that the report is complete, that the behavior in question is individual in nature, and the individuals implicated in the chapter report are forwarded for adjudication under the student code of conduct and the case involving the RSO is closed; or
- The Dean or Designee determines that the report is insufficient or incomplete, and provides feed back to the RSO and provides instruction for further investigation; or
- The Dean or Designee determines that the RSO has intentionally provided inaccurate or incomplete information, obstructed the process, or is otherwise non-compliant or uncooperative. The Dean of Students or designee will then determine whether to move forward with investigation and adjudication of the allegations under the Formal Resolution Process.

Partnership Process Resolution Meeting

Once the Dean of Students or designee has determined that the report is complete, the Dean or designee will meet with the RSO representative and/or advisor (and other parties as appropriate i.e. inter/national governing body) and one of the following determinations will be made:

- No Policy Violation – If the RSO report determines that no policies were violated by the RSO, and the Dean of Students or designee accepts this determination, the process concludes for the RSO. Individuals implicated in the report may be forwarded for individual adjudication as outlined in the Student Code of Conduct.
- Responsibility Fully Accepted: If the RSO report determines that the RSO was responsible for all policy violation(s) that were alleged, and the Dean of Students or designee accepts this determination, the Dean of Students or designee will initiate the Determination of Outcomes process.

- Responsibility Partially or Not Accepted: If the RSO report determines that the RSO was responsible for some but not all, or for none of the policy violation(s) that were alleged, the Dean of Students or designee will make one of the following determinations:
    - The Dean of Students or designee may accept the determinations from the report and will move forward to the outcomes process solely on the allegations for which the RSO accept ed responsibility if applicable; or
    - The Dean of Students or designee may not accept the determinations from the report and will move forward in investigating and adjudicating the matter under the Formal Investigation Process.

If individual students are identified at any point in the partnership process to have potentially violated any Defiance College policies, they may be individually referred to the Dean of Students or designee for investigation and adjudication.

Determinations of responsibility through the Partnership Process are final and may not be appealed.

Formal Investigation Procedures

If the Dean of Students or Designee determines at any point that a formal investigation is necessary, the Dean of Students or Designee may assign the case to an investigator(s) for a formal investigation. The Dean of Students or designee will notify the RSO, the RSO advisor, and other appropriate parties that a formal investigation is being initiated.

During the course of the investigation, up to and including the five (5) day review period, the RSO may request to enter information into the record and may recommend specific witnesses to the investigator. Ultimately, determinations of relevance of information or witnesses will be determined by the investigator.

In completing the investigation, the investigator(s) may:

- Make contact (if possible) with the individual(s) who submitted the initial information.
- Interview any individuals with relevant information.
- Request relevant information from RSO members (i.e. screenshots of text messages or pictures/ videos) and note whether or not RSO members were compliant in sharing requested information.
- Provide relevant information at any point during the investigation to the Dean of Students or designee related to interim measures.
- Require RSO members, or a select group of RSO members (i.e. all new members of the RSO) to participate in an interview and may restrict communication between RSO members during the interview (for example, sequestering RSO members in a room and prohibiting interview participants from using their cell phone or other devices during the interview/sequestration).
- Request students to undergo a physical examination by a campus health center staff member or other appropriate medical professional of the College's choosing and to sign a waiver allowing that medical professional to share a summary of the relevant results of that examination (e.g., physical abuse, BAC, drug usage, etc.). When possible, personally identifying information will be limited or redacted.

Students participating in a formal investigation process are expected to participate in an active, cooperative and truthful manner. Failing to participate in any fashion, including failure to provide requested information or testimony, may constitute a violation(s) of the Code of Student Conduct. Additionally, the investigators will document these failures and the Hearing Officer(s) may make any inferences based on these failures.

The College will complete the initial investigation in a period of no more than 30 days, barring any exigent circumstances. In the event that exigent circumstances arise that will require a delay beyond 30 days, the College will notify the RSO representative of the delay, including the reasons for the delay and the anticipated timeline for completing the investigation.

At the completion of the investigation, the investigator(s) will provide a written draft of the investigation report to the Dean of Students or designee. The Dean of Students or designee will review that report for accuracy or thoroughness and, once complete, will share the draft of the report (with necessary redactions) with the RSO representative, RSO advisor, and any other appropriate parties for review and comment. The RSO must provide any comments related to the investigative report in writing to the Dean of Students or designee within five (5) business days of the receipt of the report, barring exigent circumstances as determined by the Dean of Students or designee. Upon receipt of these comments (if applicable) the Dean of Students or designee will generate the final report and share it with the RSO representative, advisor and any other appropriate parties at least five (5) days in advance of any formal resolution. The Dean of Students or designee will make the final determination of the relevance of any information gathered during the investigation.

Upon completion of the final report, the Dean of Students or designee will schedule a meeting with the appropriate RSO representatives to determine the appropriate adjudication process. At this meeting, the RSO may choose one of the following options for adjudication:

- **Informal Resolution** – the RSO may accept the findings of the investigation and determinations of the Dean of Students or designee based on the investigation report. If this occurs, the process will move forward to the outcomes process.
- **Formal Resolution** – the RSO may not accept the findings of the investigation and/or determinations made by the Dean of Students or designee. If this occurs, the RSO may choose to have the matter resolved through either an Administrative or Formal Hearing. Regardless of the hearing body selected, the RSO will be given a notice of the time, date and location of the hearing at least seven (7) days in advance of the hearing.
    - **Administrative Hearing** – the RSO may select to have the case adjudicated by a single administrator designated by the College. The hearing officer may elect to call and question witnesses as necessary, including the investigator(s) who compiled the investigative report. The RSO may question any witnesses called by submitting written questions to the hearing officer.
        - The RSO will be given the opportunity, in person or in writing, to submit or give a statement to the hearing officer and to respond to any information provided by witnesses.
        - The hearing officer may question the RSO representative.
        - The RSO may bring an advisor of their choosing to the hearing. The RSO advisor may not speak on behalf of the RSO, question witnesses, or actively participate in the hearing other than to advise the RSO representative.
        - The hearing officer will make determination of responsibility using a preponderance of evidence (more likely than not) standard of evidence.
    - **Formal Hearing Before Campus Judicial Committee (CJC)** – the RSO may request to have the case adjudicated by the Defiance College Campus Judicial Committee.
        - The hearing officer may elect to call and question witnesses as necessary, including the investigator(s) who compiled the investigative report. The RSO may question any witnesses called by submitting written questions to the hearing officer.
        - The RSO will be given the opportunity, in person or in writing, to submit or give a statement to the hearing officer and to respond to any information provided by witnesses.
        - The hearing officer may question the RSO representative.
        - The RSO may bring an advisor of their choosing to the hearing. The RSO advisor may not speak on behalf of the RSO, question witnesses, or actively participate in the hearing other than to advise the RSO representative.
        - The hearing officer will make determination of responsibility using a preponderance of evidence (more likely than not) standard of evidence.

Section 5 - Outcomes

At the conclusion of the resolution process (including the conclusion of any appeals process), if an organization accepts responsibility for violation(s) through the partnership or formal resolution process, or if the organization is found responsible for violation(s) through the formal resolution process, the Dean of Students or designee will schedule an outcomes meeting with the RSO representative, advisor, and other parties as applicable. The purpose of this meeting shall be to determine the outcomes necessary to effectively address the behavior of the RSO related to the violation(s) and will include the solicitation of input from the RSO representative, advisors, and all other interested parties.

At the completion of the outcomes meeting, the Dean of Students or designee will administer all Outcomes assigned to the RSO through the Partnership or Formal Resolution Process to the RSO representative and the RSO advisor in writing via an Outcomes Letter. The Outcomes may be assessed singly, in combination, or to follow consecutively. Outcomes will be communicated in writing by the Dean of Students or designee to the RSO and will list Outcomes assigned, including the length of any active status and/or rescission periods, the specific privileges impacted, and any and all other opportunities established as a part of the educational Outcomes.

The Dean of Students or designee will maintain the Outcome Letter in the RSO's record for a period of no less than seven (7) years. If a RSO loses campus recognition, the Dean of Students or designee will maintain the Outcome Letter indefinitely. If applicable, a copy of the Outcome Letter may be sent to their Inter/National Organizational Governing Body or other appropriate parties.

The Dean of Students or designee and/or the appropriate College department will oversee the completion of Outcomes. If the RSO misses any deadlines, fails to complete any Outcomes, and/or has a subsequent violation(s), the RSO may be subject to additional Outcomes and/or disciplinary actions at the discretion of the Dean of Students/designee. The Outcomes implemented at the conclusion of the disciplinary process may include Status Outcomes, Educational Outcomes, or Structural Outcomes.

Status Outcomes

Status Outcomes may include, but are not limited to:

- **Warning:** A Warning is given to notify a RSO that the behavior and conduct has been inconsistent with the expectations of the College. A warning has no immediate effect upon an RSO's status at the College and may be specified for a period of time. However, once given a warning, a RSO should expect different Outcomes to result from any subsequent violations, especially while on a current warning status when/if similar behaviors occur.
- **Restriction of Privileges:** Restriction of Privileges precludes an RSO from participating in certain activities or may require an RSO to forfeit specific privileges. A RSO under a status of Restriction of Privileges is not in good standing with the College. Restriction of Privileges may include, but is not limited to, loss or limitation of social events or limitation of ability to participate in Defiance College events or activities.
- **Disciplinary Probation:** Disciplinary Probation serves to notify a RSO that it must avoid any further violations for a specified period of time in order to avoid additional disciplinary action. RSOs on probation are not in good standing with the College. An RSO may be prohibited from participating in certain activities or forfeit specific privileges while on probation. If a RSO on probation is found responsible for any subsequent violations, the outcomes may escalate. Disciplinary Probation may include Restriction of Privileges.
- **Deferred Suspension:** Deferred Suspension is a status for a specified period of time during which any subsequent finding of Responsibility for a violation of the Code of Student Organization Conduct or any other College policy shall result in the Outcome of Suspension for the RSO. Deferred Suspension may include Restriction of Privileges.
- **Suspension:** Suspension is a status for a specified period of time that includes, but is not limited to, the revocation of the College's recognition of the RSO for a stated or an indeterminate period of time, cessation of College funding, restriction of all operations at the College, and restriction of use of College resources. If the RSO also holds a charter from an international organizational governing body, the College may also request that the international organization governing body, revoke the charter of the RSO.

A RSO placed on Suspension is prohibited from sponsoring, co-sponsoring, or participating in any and all social, intramural, athletic, or other similar activities on or off campus. A suspended RSO may not solicit or initiate any new members. Suspension may also include the forfeiture of other specifically listed privileges. Suspension should be for a specific and determined period of time, and will include a written return agreement outlining specific conditions for return. The Suspension may be delayed at the discretion of the Dean of Students or designee.

If the RSO dissolves or loses recognition, as a result of organizational conduct, and then attempts to seek recognition under the guise of a different organizational name, the College reserves the right to deny the request for recognition or withdraw the recognition. This conclusion may be based on any of multiple factors, including but not limited to, overlapping membership, similarity of purpose, and the timing of the dissolution or prior loss of recognition and the request for new recognition.

Continued operation of the RSO after suspension or loss of recognition will result in a violation of Failure to Comply and may result in additional outcomes or restrictions, up to and including an extension of the Suspension beyond the terms originally outlined in the initial Outcomes Letter/return agreement.

A RSO that has completed a period of suspension and has met conditions for return as outlined in the return agreement may seek reinstatement by complying with the registration requirements of the appropriate Defiance College department.

Educational Outcomes

Educational Outcomes may include, but are not limited to, educational programming, community service, interventions, restrictions, workshops, or other Outcomes determined to help develop the culture and community of the RSO. The Dean of Students or designee will determine Educational Outcomes after consultation with the appropriate Defiance College Office(s), the governing body and/or affiliated organization of the RSO, organizational leadership, advisors, and/or other appropriate stakeholders as necessary.

Structural Outcomes

Structural Outcomes are related to the structure, membership or governance of the organization. Structural outcomes, developed in collaboration with the inter/national organizational governing body (if applicable), may include, but are not limited to, changes to RSO operating procedures, a review of RSO membership/leadership, an external RSO review, and changes to RSO advisor support. Structural Outcomes may be included alongside any Status and Educational Outcomes, but only after consultation with the appropriate Defiance College department(s), the RSO inter/national governing body (if applicable), the RSO representative, RSO advisors, and/or other appropriate stakeholders as necessary.

Section 6 - Appeals

Requests for Appeal

Requests for appeals must be submitted in writing to the Dean of Students or designee within three (3) business days, barring exigent circumstances as determined by the Dean of Students or designee, of the delivery of the written determination from the Adjudication and Resolution or the Outcomes Letter. No person involved as an original hearing officer or investigator may serve in this review capacity. The College's presumed position is that all sanctions will be implemented during the appellate process. The Dean of Students or designee may consider, upon request in writing, to stay or modify a sanction during the appellate process. Any stay or modification should be exercised only under exigent circumstances.

The Dean of Students or designee will review all requests to determine if the requests adequately meet the grounds for appeal (below).

The Appellant must meet one or more of the grounds below in order for the request to be passed on to the appellate body for consideration on the merits. The burden is on the Appellant to show the grounds are met using the preponderance of the evidence standard.

If there is another party involved in the matter (e.g., in matters where the incident involves Title IX or other civil rights discrimination), the Dean of Students or designee may share all or part of the appeal with the party to allow them to respond or submit their own request for appellate consideration. They will be required to respond within five (5) business days, barring exigent circumstances as determined by the Dean of Students or designee, of notice of the request for appeal.

If there is a challenge to any member of the process (e.g. a challenge of bias by an investigator or hearing officer), the Dean of Students or designee may share all or part of the appeal with the party in question to allow them to respond. They will be required to respond within five (5) business days, barring exigent circumstances as determined by the Dean of Students or designee, of notice of the request for appeal. If any new grounds for appeal are raised in any response, the Dean of Students or designee will determine whether to allow a short time for the RSO to submit a response.

The Dean of Students or designee serving in the reviewer role will issue their decision to allow the appeal to proceed in whole or in part or to deny the appeal within five (5) days of receipt of all information and responses, barring exigent circumstances.

Once forwarded, the Appeals Officer(s) will issue their decision within five (5) days of receipt of all information and responses, barring exigent circumstances. In instances where the appeal officer(s) needs additional time, the appeal officer shall notify the RSO representative, within the allotted time for issuing a decision.

Grounds for Appeal

The RSO may file an appeal, as may an aggrieved party in the matter as determined by the Dean of Students or designee (e.g., a Sexual Misconduct matter covered under Title IX), to either the Finding issued in the Formal Resolution Process, or the Outcomes of either the Partnership or Formal Resolution Process, or both, but all appeals are limited to the following grounds:

- **Procedural Error:** A procedural error or omission occurred that significantly impacted the out come of the hearing (e.g. substantiated bias, material deviation from established procedures, etc.). Any challenge for bias must include: a) what the bias was, b) how the bias manifested itself, and c) how the bias significantly impacted the outcome. A mere allegation or determination of bias will not be sufficient to meet this ground for appeal.

- **New Evidence:** New evidence is information that was unknown or unavailable during the original hearing or investigation that could substantially impact the original finding or sanction. A summary of this new evidence, how it was previously unknown or unavailable, and its potential impact must be included.
    - If a person or RSO representative refused to testify or participate in the investigation and now wishes to submit their testimony as new evidence at the appellate level, that testimony will not be considered "new evidence" under this ground. The Dean of Students or designee serving as the reviewer of requests for appeal may determine if the matter will be sent back for further investigation based on this request for appeal.
- **Appeal of the Outcome(s):** The Outcome(s) imposed is clearly outside the parameters for the violation(s) or are of such nature that the RSO could not reasonably complete them within the allotted time frame.

General Appellate Considerations

The original finding and Outcome(s) are presumed to have been decided reasonably and appropriately.

In cases where there are other parties involved, if the Dean of Students or designee during the review phase or the Appeal Officer during the appellate phase, wishes to meet with a party or RSO representative, the other party will be notified and granted the same opportunity.

Appeals are not intended to be full re-hearings of the original allegation(s). In most cases, appeals are confined to a review strictly limited to the matters being appealed.

Appeal Conclusions

An appeal that affirms the finding of the Formal Resolution process is final. An appeal that affirms the Outcomes is final.

An appeal that is granted for the appellant (or other party, when appropriate) based on new evidence should be remanded to the Dean of Students or designee or Hearing Officer for reconsideration, for rehearing, or for further investigation.

An appeal granted for the appellant (or other party, when appropriate) based on other grounds may either be remanded to the Investigator, Dean of Students or designee, or the original hearing officer(s), with instructions to further investigate, clarify findings, or remedy errors.

When an appeal is granted for the appellant (or other party, when appropriate) based on inappropriate Outcome(s), the appeal officer may alter the Outcome or remand with recommendations, to the Dean of Students or designee or the original Hearing Officer(s), as appropriate, to modify the Outcome(s). Such Outcome determination shall be final.

Once an appeal is decided, the decision is final; further appeals are not permitted.

ALCOHOL AND OTHER DRUG POLICY

To comply with the Drug Free Schools and Communities Act of 1989 (DFSCA) and subsequent amendments, students and employees of Defiance College are informed that strictly enforced policies are in place which prohibit the possession, use or distribution of any illicit drugs, including alcohol, on College property or as part of any College -sponsored activity unless event-specific permission is given for of-age students to consume alcohol moderately. Students and employees are also subject to all applicable legal sanctions under local, state and federal law for any offenses involving illicit drugs on College property or at College-sponsored activities.

Defiance College affirms that illegal drug use is unlawful and harmful. The use of illegal drugs and alcohol abuse by students and employees could result in cognitive deficits, loss of productivity, and other health risks. These risks include an increased risk of accidents, which may result in death or permanent injury. Free, confidential counseling for alcohol and other drug abuse issues is available to students and employees through the College Counseling Services and the employee assistance program. Other resources may include assessment, individual counseling, educational programs, materials, and referral and case management through community agencies, all of which might include a fee.

Students exhibiting signs of excessive alcohol consumption will be transported via Emergency Medical Services (EMS) at the student's expense for medical attention. Refusal to cooperate with EMS personnel may result in arrest by local police in order to ensure the student's health and safety and/or a conduct complaint for disorderly conduct and/or failure to comply.

A. Parental Notification Policy

Defiance College is concerned about students who improperly use alcohol and other drugs and the effects such use may have on their health, academic success, interpersonal relationships and, ultimately, their future.

College alcohol policy expressly forbids possession and/or consumption of alcohol by students, employees or guests who are under the minimum legal drinking age of 21 years. Possession of drug paraphernalia and the use, manufacture, sale, or distribution of illegal drugs, whether on or off campus, by any student is also prohibited. In accordance with the Family Educational Rights and Privacy Act (FERPA), the Dean of Students (or designee) reserves the right to notify the parents/guardians of students under 21 years of age, and the parents/guardians of dependent students, regardless of age, of any incident in which the student is found responsible for violating the College alcohol and drug policy.

B. Alcohol Policy

The following sections describe College policy regarding the sale, service, distribution, and consumption of alcoholic beverages on college property or at college-sponsored events in accordance with federal, state and local laws.

Basic Guidelines

Students who are 21 years of age or older are permitted to possess and consume alcohol in their designated residence hall rooms if all individuals present are over 21 and there are no more than 6 persons per residence hall room, or 12 persons per suite/apartment. At no time should there be more than 24 individual containers of alcohol in a residence hall room or 40 individual containers in a suite/apartment. The primary freshmen residence hall will remain dry. Those under the minimum legal drinking age of 21 years are not permitted to possess or consume alcohol anywhere on college property or at college-sponsored events. Drinking games, and simulated drinking games (e.g. water pong) are prohibited on campus. Students under age 21 will be considered in possession of alcohol if he or she is in a room where alcohol is being consumed and the student either knows or reasonably show know if its use. Only beer, wine, malt beverages and other alcoholic products that are less than 15% alcohol by volume are permitted on campus.

On-campus gatherings of more than the number of persons specified above shall not have alcohol present or allow the use of alcohol except under the following conditions:

a. All such gatherings on campus at which alcohol will be present must be approved in advance by the Dean of Students. This requirement of Dean of Students approval includes student-sponsored events, other on-campus events including those sponsored by College offices, and special events such as Homecoming or a "tailgate" at an athletic event.
b. Such Dean of Students-approved events may serve beer and wine. If other alcoholic beverages are to be provided, they must be made available from a third-party vendor.
c. The availability of alcohol at an event shall not be mentioned in on-campus or off-campus advertisements for the event other than individually addressed invitations.
d. Large quantity containers of alcohol are not permitted at Dean of Students-approved events.
e. The hosts of a Dean-approved event at which alcohol is available are responsible to know that everyone present is 21 or older, or that under-aged persons are not served and do not use alcohol at the event.

While at off-campus events that are sponsored by a Defiance College organization, alcohol use by DC students is allowed in accordance with local law.

a. All off-campus events hosted by a Defiance College organization must comply with those conditions outlined in section B above.
b. All DC students and faculty are strongly encouraged to behave responsibly towards alcohol use and to remember that possession and use of alcohol by those under 21 years of age is prohibited throughout the United States.
c. When traveling with students in areas where the legal drinking age is lower than it is in the United States, Defiance College employees are required to behave responsibly and to exercise sound judgment in supervising students in their care.

GUIDELINES FOR STUDENT ORGANIZATIONS SEEKING APPROVAL TO HOST EVENTS WITH ALCOHOL

Student organizations seeking approval from the Dean of Students Office to host an event at which alcohol will be served should submit the request through the Dean of Students in the Office of Student Life. All student organizations seeking approval must adhere to the guidelines listed below and will be asked to complete a "planning form" detailing their specific plans for compliance with the College's Alcohol Policy.

1. Requests for event approval must be submitted to the Dean of Students in the Office of Student Life at least 45 calendar days in advance of the date of the event.
2. Organizations must be able to implement a functional system for age verification of guests.
3. Organizations must be able to implement a functional system for identifying which guests are of-age and which are underage. Alcohol may only be served to of-age guests.
4. Organizations must appoint individuals to monitor the party who will be alert for diversion of alcohol to underage guests as well as of-age guests who are out of control.
5. The bar at the event must be staffed and controlled by a third-party vendor or bartender. Under no circumstances can the members of the student organization work at or control the bar.
6. Organizations must implement a system that limits the number of drinks available for of-age guests to a reasonable amount per person. It is recommended that the number of drinks per of-age person not exceed one drink per hour.
7. At on-campus events only beer, wine, and malt beverages below 15% alcohol volume are allowed to be served. At off-campus events, the bar may serve a wider selection in accordance with the hosting organization's liquor license or permit.
8. The hosting organization must provide non-alcoholic beverages in sufficient quantity for the number of guests.
9. The hosting organization must provide snacks and/or food in sufficient quantity for the number of guests.
10. The consumption of alcohol must never be the central focus of the event. The event must have a defined purpose or theme.
11. The event must have a definite start time and end time. Alcohol can only be served within the specified timeframe.

Events that meet these guidelines will receive approval from the Office of Student Life. Student organizations are encouraged to initiate the approval process as early as possible

Examples of Violations of the Alcohol Policy

- Purchasing alcohol by a person under the age of 21.
- Selling or providing alcohol to a person under the age of 21. Hosts will be responsible if an under age student is in possession of alcohol in the host student's room.
- Possessing either full or empty alcohol containers by a person under the age of 21.
- Consuming alcohol or being in the presence of alcohol by a person under the age of 21.
- Public intoxication or showing physical or mental impairment following or resulting from alcohol use.
- Possessing empty alcohol containers for decorative purposes.
- Using or possessing common sources of alcohol including, but not limited to kegs, party balls, punch bowls, wine boxes, etc.
- Participating in or being present during the occurrence of any drinking game.
- Possessing an open container of alcohol in a common area including, but not limited to bathrooms, hallways, lounges, elevators, lobbies or outdoor spaces.
- Driving under the influence of alcohol.

As stated in Section 4 of the Code of Student Conduct, "failure to comply with the reasonable directives of officials or law enforcement officers during the performance of their duties and/or failure to identify oneself to these persons when requested to do so", is considered unacceptable behavior for a Defiance College student. An example of such behavior includes refusing to submit to a breath test when requested by a police officer, whether on or off-campus, which is considered a violation of the Code of Student Conduct and may result in conduct sanctions.

A partial list of College alcohol policy violations and their subsequent sanctions is listed below. Sanctions are dependent upon a number of factors including, but not limited to: hearing officer discretion, the nature and severity of the incident, a student's conduct history and a student's cooperation throughout the conduct process.

A. *Minor in Possession/Consumption of Alcohol or Residence Life Alcohol Policy Violations:*

1. First Offense—Possible sanctions and institutional actions include, but are not limited to:
   - Participation in an alcohol education activity and/or a Minor in Possession course, at the student's expense and as determined by the Dean of Students (or designee);
   - Authorship of a research/reflection essay;
   - Notification of parents/guardians of dependent students and those under the minimum legal drinking age of 21 years; and/or
   - Reprimand up through suspension or expulsion from housing and/or the college/;
   - Other sanctions as determined by the Dean of Students (or designee).
2. Second Offense— Possible sanctions and institutional actions include, but are not limited to:
   - Mandated substance abuse assessment by College Counseling Center or an approved agency and required compliance with the assessing counselor's evaluation;
   - Observation of one or more sessions of the County Misdemeanor or Felony Drug Court as determined by the Dean of Students (or designee);
   - Authorship of a research/reflection essay;
   - Notification of parents/guardians of dependent students and those under the minimum legal drinking age of 21 years; and/or
   - Reprimand up through suspension or expulsion from housing and/or the college/;
   - Other sanctions as determined by the Dean of Students (or designee).
3. Third and Subsequent Offenses— Possible sanctions and institutional actions include, but are not limited to:
   - Suspension or expulsion from housing and/or the college;
   - Notification of parents/guardians of dependent students or those under the minimum legal drinking age of 21 years; and/or
   - Other sanctions as determined by the Dean of Students (or designee).

B. *Purchasing, Selling or Providing Alcohol to Minors:*

1. First Offense— Possible sanctions and institutional actions include, but are not limited to:
   - Participation in an alcohol education activity at the student's expense and as determined by the Dean of Students(designee);
   - Mandated substance abuse assessment by College Counseling Center or an approved agency and required compliance with the assessing counselor's evaluation;
   - Observation of one or more sessions of the County Misdemeanor or Felony Drug Court as determined by the Dean of Students (or designee);
   - Authorship of a research/reflection essay;
   - Notification of parents/guardians of dependent students or those under the minimum legal drinking age of 21 years;
   - Eligibility restrictions;
   - Reprimand up through suspension or expulsion from housing and/or the college/;
   - Community service hours to be performed at a specific location as determined by the Dean of Students (or designee); and/or
   - Other sanctions as determined by the Dean of Students (or designee).

2. Second and Subsequent Offenses— Possible sanctions and institutional actions include, but are not limited to:
   - Suspension or expulsion from the college/;
   - Notification of law enforcement authorities;
   - Notification of parents/guardians of dependent students or those under the minimum legal drinking age of 21 years; and/or
   - Other sanctions as determined by the Dean of Students (or designee).

C. *Driving Under the Influence/Driving While Intoxicated:* Defiance College is concerned about students who violate state and local laws regarding consumption of alcohol and the operation of motor vehicles. In accordance with state law, the College abides by the legal definition of *intoxicated* as "not having the normal use of mental or physical faculties by reason of introduction of alcohol, a controlled substance, a drug, a dangerous drug, a combination of two or more of those substances, or any other substance into the body" or 0.08 Breath or Blood Alcohol Concentration. In addition, students under the legal minimum drinking age of 21 years who are found to have any detectable amount of alcohol in their systems will be considered driving under the influence of alcohol and subject to penalties under that offense.

1. First Offense— Possible sanctions and institutional actions include, but are not limited to:
   - Loss of driving and/or parking privileges on campus for a specified period of time;
   - Participation in an alcohol education activity and/or a Minor in Possession course, at the student's expense and as determined by the Dean of Students (designee);
   - Observation of one or more sessions of the County Misdemeanor or Felony Drug Court as determined by the Dean of Students (or designee);
   - Community services hours to be performed at a specific location as determined by the Dean of Students (or designee);
   - Authorship of a research/reflection essay;
   - Notification of parents/guardians of dependent students or those under the minimum legal drinking age of 21 years;
   - Eligibility restrictions; and/or
   - Reprimand up through suspension or expulsion the college/;
   - Other sanctions as determined by the Dean of Students (or designee).
2. Second and Subsequent Offenses— Possible sanctions and institutional actions include, but are not limited to:
   - Suspension or expulsion from the College;
   - Notification of law enforcement authorities;
   - Notification of parents/guardians of dependent students and those under the minimum legal drinking age of 21 years; and/or
   - Other sanctions as determined by the Dean of Students (or designee).

C. Illegal Drug Policy

The following sections describe College/'s policy regarding the sale, manufacture, distribution, possession and use of illegal drugs on or off College/ property or at College/-sponsored events or programs in accor dance with federal, state and local laws. Examples of violations include:

- Misuse of over-the-counter drugs.
- Misuse or sharing of prescription drugs.
- Possessing, using, being under the influence of, distributing, or manufacturing any form of illegal drug.
- Possessing paraphernalia (i.e., rolling papers, pipes, bongs, hookahs, scales etc.) for intended or implied use of any form of illegal drug.
- Possessing paraphernalia that contains or appears to contain illegal drug residue.
- Purchasing or passing illegal drugs from one person to another.
- Using mail services to purchase, pass, or distribute illegal drugs.

Recreational Marijuana and Medical Marijuana: In accordance with Federal law, Defiance College does not permit the possession or use of marijuana, THC or cannabidiol (CBD) products on College property or during College-sponsored activities for any purpose. As such, the possession or use of recreational marijuana or medical marijuana, THC and CBD, even if authorized under state law, is prohibited on College property and during College-sponsored activities, even if a student possesses a valid medical marijuana card, the student cannot use or store marijuana, THC or CBD products on Defiance College's campus or property. Recreational and Medical marijuana, which is prescribed for healing purposes, is prohibited at Defiance College even though there may be state laws which permit its use.

This policy provides flexibility for the College in addressing drug-related offenses which occur on- or off-campus. Moreover, it permits the College to address its fundamental mission of holistic education and the development of human potential. While recognizing that there is a need to address violations related to the use or possession of controlled substances, the College must address the education and well-being of all its students and employees. In addition to College imposed sanctions, students and employees are subject to all legal sanctions under federal, state and local law for any offenses involving illegal drugs on College property or at College activities.

Safe Harbor

The College has a Safe Harbor rule for students. The College believes that students who have a drug and/or addiction problem deserve help. If any College student brings their own use, addiction or dependency to the attention of College officials outside the threat of drug tests or imposition of the conduct process and seeks assistance, a conduct complaint will not be pursued. A written action plan may be used to track cooperation with the Safe Harbor program by the student. Failure to follow the action plan will nullify the Safe Harbor protection and the campus conduct process will be initiated.

Violations of the College/ Illegal Drug Policy

A partial list of College/ drug policy violations and their subsequent sanctions is listed below.

a) Manufacture, Sale or Distribution of Illegal Drugs and Marijuana:

1. First Offense—Possible sanctions include, but are not limited to:
   - Expulsion from the College;
   - Notification of parents/guardians of students under 21 years of age and older dependent students;
   - Notification of law enforcement authorities; and/or
   - Other sanctions as determined by the Dean of Students (or designee).

b) *For the Possession or Use of Drug Paraphernalia, Synthetic Substances and/or Illegal Drugs and Marijuana:* Drug paraphernalia (e.g. bongs), illegal drugs and marijuana, and synthetic substances (e.g. K2, Spice) whose common purpose is to replicate the effects of illegal substances are prohibited on campus.

1. First Offense—Possible sanctions include, but are not limited to:
   - Suspension or expulsion from College housing;
   - Suspension from the College for a period of not less than the remainder of the semester in which the infraction occurred;
   - Participation in a drug education activity, at the student's expense and as determined by the Dean of Students (or designee);
   - Mandated substance abuse assessment by College Counseling Center or an approved agency and required compliance with the assessing counselor's evaluation;
   - Observation of one or more sessions the County Misdemeanor or Felony Drug Court as determined by the Dean of Students (or designee);
   - Authorship of a research/reflection essay;
   - Notification of parents/guardians of students under 21 years of age and older dependent students;
   - Notification of law enforcement authorities; and/or
   - Other sanctions as determined by the Dean of Students (or designee).
2. Second Offense— Possible sanctions include, but are not limited to:
   - Expulsion from the College;
   - Notification of parents/guardians of students under 21 years of age and older dependent students;
   - Notification of law enforcement authorities; and/or
   - Other sanctions as determined by the Dean of Students (or designee).

Information Regarding the Impact of Alcohol and Other Drug Use Risks of Alcohol Use

The following is a partial list of the adverse effects of alcohol use on the individual and society arranged by source.

The Truth about Alcohol: Tips for Teens **(U.S. Department of Health & Human Services, 2003)**

a) Alcohol affects your brain.
b) Drinking alcohol leads to a loss of coordination, poor judgment, slowed reflexes, distorted vision, memory lapses, and even blackouts.
c) Alcohol affects your body.
d) Alcohol can damage every organ in your body. It is absorbed directly into your bloodstream and can increase your risk for a variety of life-threatening diseases, including cancer.
e) Alcohol affects your self-control.
f) Alcohol depresses your central nervous system, lowers your inhibitions, and impairs your judgment. Drinking can lead to risky behaviors, including having unprotected sex. This may expose you to HIV/AIDS and other sexually transmitted diseases or cause unwanted pregnancy.
g) Alcohol can kill you.
h) Drinking large amounts of alcohol can lead to coma or even death. Also, in 1998, 35% of traffic deaths of 15- to 20-year-olds were alcohol-related.

From *Top Ten Myths About Alcohol* (National Institute on Alcohol Abuse and Alcoholism: National Institutes of Health)

a) Can you hold your liquor? That is not a good thing. If you have to drink increasingly larger amounts of alcohol to get a "buzz" or get "high", you are developing tolerance. This increases your vulnerability to many serious problems, including alcoholism.
b) One in three 18- to 24-year-olds admitted to emergency rooms for serious injuries are intoxicated. And alcohol is also associated with homicides, suicides, and drownings.

The Naked Truth: Alcohol and Your Body **(FactsOnTap.org)**

a) The amount of alcohol it takes to make you pass out is dangerously close to the amount of alcohol it takes to kill you.
b) A hangover is caused partly by the body's being poisoned by alcohol and partly by the body's reaction to withdrawal from alcohol.

Harmful Interactions: Mixing Alcohol with Medicines **(U.S. Department of Health & Human Services)**

a) Some medicines that you might never have suspected can react with alcohol, including many medications that can be purchased 'over-the-counter'—that is, without a prescription. Even some herbal remedies can have harmful effects when combined with alcohol.
b) Mixing alcohol with certain can cause nausea and vomiting, headaches, drowsiness, fainting, or loss of coordination. It can also put you at risk for internal bleeding, heart problems, and difficulties in breathing. In addition to these dangers, alcohol can make a medication less effective or even useless, or it may make the medication harmful or toxic to your body.
c) Alcohol and medicines can interact harmfully even if they are not taken at the same time.
d) Medications are safe and effective when used appropriately. Your pharmacist or other health care provider can help you determine which medications interact harmfully with alcohol.

Facts About Women and Alcohol **(Texas Commission on Alcohol and Drug Abuse)**

a) Women are more susceptible to the influence of alcohol just prior to or during their menstrual cycle than at other times during their cycle.
b) On average, a woman weighing 120 pounds requires 2.5 hours to metabolize one standard drink.
c) The course of alcohol addiction progresses at a faster rate among women than men.

Risks of Drug Use

The following is a partial list of the adverse effects of drug use on the individual and society arranged by source.

Marijuana…It Can Leave You Breathless! **(Texas Commission on Alcohol and Drug Abuse)**

a) Marijuana contains over 400 different chemicals including THC.
b) "THC, the active ingredient in marijuana, remains in the fat cells of the body from 14 – 30 days."
c) Marijuana use…
    1. Slows reaction time;
    2. Impairs thinking;
    3. Interferes with Coordination;
    4. Impairs comprehension skills;
    5. Impairs mathematical skills;
    6. Impairs reading skills;
    7. Impairs verbal skills; and
    8. Can lead to psychological dependency.

d) Long term, regular use of marijuana can have a permanent, negative effect on attention span, concentration, memory, judgment and logical thought.
e) Smoking one marijuana cigarette is as harmful to the lungs as smoking approximately 4 - 5 regular cigarettes. Smoking both greatly increases the risk of developing emphysema, cancer and other lung diseases.
f) Regular use of marijuana can affect fertility in males as it can suppress testosterone production.

Drugs & Pregnancy…No Way to Start a Life! **and Drug Abuse & Pregnancy (Texas Commission on Alcohol and Drug Abuse)**

a) The use of marijuana during pregnancy may result in low birth weight and smaller length and head circumference in babies.
b) Babies whose mothers smoked marijuana during pregnancy may have vision problems and shorter attention spans. Also, THC, the ingredient in marijuana that causes the 'high,' accumulates in the mother's milk and transfers to nursing infants where is could cause harm to the baby's development.
c) The use of cocaine during pregnancy increases the risk of hemorrhage and premature delivery. Chronic use of cocaine causes increased risk of spontaneous abortion.
d) Nursing babies of cocaine abusers can also receive doses of cocaine through their mother's milk.
e) Mental retardation and abnormal facial features have been seen in babies whose mothers used inhalants or solvents in combination with alcohol while they were pregnant.
f) The use of solvents during pregnancy has also been linked to central nervous system defects in newborns.
g) Heroin use during pregnancy increases the likelihood of stillbirths and neonatal deaths, and babies born to opiate-addicted mothers experience withdrawal symptoms such as restlessness, tremulousness [tremors], sweating, vomiting, diarrhea, high-pitched crying, frantic fist sucking and seizures.

Inhalants…Deadly Fumes! **(Texas Commission on Alcohol and Drug Abuse)**

a) Products such as spray paint, glues, felt-tip markers, typewriter correction fluid, poppers and RUSH are considers inhalants.
b) The immediate effects of sniffing inhalants are disorientation, confusion, feelings of drunkenness, possible hallucinations, incoherence and loss of memory.
c) Sniffing inhalants can cause unpredictable or violent behavior in some persons. In other cases, it may cause someone to become withdrawn and isolated.
d) Inhalant abuse can cause permanent brain, liver, heart and lung damage.

Amphetamines…A Dead End Street! **(Texas Commission on Alcohol and Drug Abuse)**

a) Amphetamines are used to treat some forms of Attention Deficit Disorder (ADD) and narcolepsy.
b) The term amphetamines refers to three related drugs: amphetamine, dextroamphetamine and methamphetamine.
c) Street names for amphetamines include: speed, white crosses, uppers, and crystal.
d) Health risks associated with amphetamine use:
    1. Brain damage;
    2. Skin Disorders;
    3. Lung Disease;
    4. Delusions;
    5. Paranoia;
    6. Malnutrition;
    7. Ulcers;
    8. Heart Disease; and
    9. Hallucinations.

Steroids **(Texas Commission on Alcohol and Drug Abuse)**

a) Synthetic anabolic steroids are drugs which act like the male hormone, testosterone…Some athletes use steroids to increase their strength, muscle mass, and endurance. While not all athletes use steroids, many weight lifters and body builders do…Also, some non-athletes who want well-defined muscular shape and attractive over-all body appearance use steroids.
b) A partial list of the adverse side-effects experienced by male users includes:
    1. Enlarged breasts;
    2. Permanent premature hair loss;

3. Shrinkage of the testicles;
4. Risk of heart and blood vessel disease; and
5. Sterility.

a) A partial list of the adverse side-effects experienced by female users includes:
1. Male-sounding voice;
2. Growth of permanent facial hair;
3. Reduction in breast size;
4. Male-like muscle growth;
5. Increased sex drive; and
6. Permanent sterility.

d) A partial list of the adverse side-effects shared by male and female users includes:
1. Pimples & skin blemishes;
2. Inability to release body heat through sweating;
3. Abnormal blood clotting;
4. Unusually aggressive behavior;
5. Violent rages;
6. High blood pressure;
7. Liver dysfunction;
8. Depression and frustration;
9. Drug dependency; and
10. Liver cancer.

BICYCLE AND PERSONAL TRANSPORTATION DEVICES

Defiance College is committed to creating a sustainable and safe campus. As part of these efforts, the College regulates the use of personal transportation devices on campus property.

Permissible personal transportation devices include the following:

- Bicycles, unicycles, tricycles, and similar vehicles regardless of the number of wheels
- Skates, including in-line skates, rollerblades, and roller skates
- Skateboards or other wheeled boards of any size or type including non-motorized scooters

Prohibited Personal Transportation Devices include the following:

- Segways
- Motorized scooters and hoverboards
- Golf carts and ATV;s (except for college owned devices used in the course of conducting official College business)
- Mopeds
- Any other motorized personal transportation device

This policy does not prohibit the use of motorized wheelchairs, Segways or small motorized personal transportation devices if used to accommodate a person with a disability.

CHILDREN IN THE CLASSROOM POLICY

Children of students are allowed in the classroom under the supervision of the parent or guardian in the following limited circumstances:

- Those limited occasions when alternative arrangements are impractical or impossible, such as the illness of a daycare provider; AND
- The faculty member responsible for the classroom has given specific advance approval.

This practice should only be utilized sparingly and if there are no other options reasonably available. Alternatives such as the student arranging to record a particular session should be considered. Students requiring longer-term arrangements related to their child-care needs should contact the Dean of Students to discuss and examine available options. Students must avoid bringing children to classrooms on days of examinations and children are not permitted to participate in field trips or retreats.

CHILDREN ON-CAMPUS

Parents or guardians are responsible and liable for any and all injuries or damages sustained to or by their child while on the College campus unless caused by the sole negligence of the College, its officers, agents or employees.

Parents and guardians are responsible for ensuring that children behave appropriately while on campus. If, in the view of the faculty or administrator responsible for the class, event, program etc. a child is disruptive, the parent must remove the child from the situation.

Pre-teen children on campus must be accompanied by a parent, guardian or other responsible adult at all times. Unaccompanied re-teen children will be escorted to Campus Safety. Teenagers are welcome to visit and tour the campus so long as such visits are compatible with the College's mission.

COMPUTER POLICY

Information systems, including computers, computer accounts, printers, networks, software, electronic mail, and Internet access, at Defiance College are provided for the use of Defiance College Faculty, Staff, and Students in support of the College's academic and administrative programs. Incidental and occasional personal use of Defiance College computers and information systems is permitted within reason, but abuse of this privilege is warrant for discipline. All students are responsible for seeing that these systems are used in an effective, efficient, ethical, and lawful manner. The use of information systems is a privilege, not a right, which may be revoked at any time for misuse.

The following procedures relate to their use:

1. All computer equipment, accessories, and systems owned by the College are to be used for College-related activities only, but limited personal use is also permitted. All access to the College's computing resources, including the issuing of accounts and hardware or software purchases, must be approved through the Information Technology Department .
2. It is the student's responsibility to maintain the physical/hardware and logical/software security of any device connecting to the Defiance College network, including, but not limited to, the operating system, the security and software patches and updates, and an up-to-date antivirus software package.
3. Use of College computing resources is subject to all College policies and procedures. No copy righted material is to be illegally obtained or redistributed. You are responsible for any network activity originating from your computer. Thus, be aware that the illegal sharing of copyrighted material with others is your responsibility, whether knowingly or not, and subjects you to disciplinary action as well as possible civil and criminal liabilities.
4. Eating and drinking are prohibited in the computer labs.
5. Information systems are not to be used for commercial purposes, political activities, or to access inappropriate Internet sites. Records, including all information created through the use of information systems, are the property of the College.
6. Fraudulent, harassing, obscene, or unauthorized messages and/or files will not be sent, printed, posted, requested, or stored.
7. Use of campus information systems requires one's own valid user ID and password.
8. Students are not to modify the current file configurations or change the system settings. Files should be saved on student's removable media or on the student's allotted online storage.
9. A computer, computer account, or electronic mail account assigned to an individual may not be used by others. Each individual is responsible for the proper use and protection of the network account, including proper password protection.
10. Information system accounts expire in accordance with the terms of the account (e.g. with-draw ing from Defiance College). Expired accounts and files associated with them will be deleted. Any personal data stored within your Defiance College account(s) will be lost upon account termination. Defiance College is not responsible for your personal data and will not grant access to it after account termination.
11. Users of College computing resources should have no expectation of privacy in such use. The College expressly reserves the right to monitor or access its systems and the information stored thereon for any reason it deems appropriate, including routine maintenance and investigation of misconduct. Further, Defiance College may electronically disclose any content or records to satisfy any law, regulation, or governmental request, as well as to properly operate and protect its members. Defiance College reserves the right at its sole discretion to review, modify, or refuse to post any material or information. Notwithstanding the foregoing, Defiance College will not intentionally monitor or disclose any private mail messages unless permitted or required by law. Defiance College reserves the right to remove any content that it believes to be unacceptable or undesirable.
12. No one should deliberately attempt to degrade the performance of an information system, \ including but not limited to computers, microcomputers, and networks. Personally owned wireless routers and access points interfere with campus-provided wireless connectivity.Therefore, the use of these devices is prohibited on campus.

13. Loopholes in information systems, security systems, or knowledge of a special password, are to be reported immediately to Information Technology personnel and are not to be used to damage information systems, obtain extra resources, take resources from another user, or gain access to systems for which proper authorization has not been given. Using programs or tools designed to check for computer system or network security vulnerabilities, such as port scanning, is prohibited.
14. Some computer software is licensed by vendors to Defiance College. Defiance College does not own this software or related documentation; it is protected by copyright. Any copyrighted software is not to be duplicated or downloaded from campus information systems. The use of software on a local area network or on multiple computers must be in accordance with the license agreement.

An individual's use of information systems is a privilege, not a right, and may be revoked at any time for misuse immediately upon the discovery of a possible violation of these policies. Such suspected violations will be confidentially reported to the Provost and the Dean of Students. Further action may be taken by Defiance College or law enforcement in accordance with the severity of the action(s) in question.

GOOGLE PRIVACY AND SECURITY

The Defiance College-Google Apps for Education (Google) agreement generally provides for the privacy and security of Defiance College (DC) data in the DC Google suite of services. The Google agreement provides the following assurances to faculty, staff, students, and alumni:

- Google does not own your data
- Google secures your data
- Google retains the data only as long as you want them to
- Google deletes the data when you ask them to

Generally, you may use Google to conduct activities that align with your role at the College, so long as you follow the DC's Computer Policy, and adhere to the guidance for Google and Regulated/Sensitive Data.
For more, visit the Google Apps for Education Security & Privacy webpage.

Google and Regulated/Sensitive Data

1. **Export Controlled Research**
   Export controlled research includes information that is regulated for reasons of national security, foreign policy, anti-terrorism or non-proliferation. Encompassing laws, statutes, or regulatory agencies include International Traffic in Arms Regulations (ITAR), Export Administration Regulations (EAR), and the Office of Foreign Assets Control Regulations (OFAC). Specifically, these requirements include restricting research data access to U.S. citizens and licensed foreign nationals, and storing it within U.S. borders.
   Because Google has an internationally distributed storage environment and unlicensed foreign nationals supporting the systems, DC Faculty and Researchers should not collect, process, share or store export controlled research data in the Google environment.
2. **Federal Information Security Management Act (FISMA)**
   FISMA requires federal agencies to develop, document, and implement security programs for IT systems that support the agency, including systems that are provided or managed by another entity. One of the FISMA requirements is that the data is stored within U.S. borders.
   Because Google has an internationally distributed storage environment, DC faculty and researchers should not collect, process, share or store FISMA data in the Google environment.
3. **Electronic Protected Health Information (ePHI)**
   ePHI is individually identifiable health information, in electronic form, as defined by the Health Insurance Portability and Accountability Act of 1996 (HIPAA). HIPAA also requires a contractual arrangement (typically known as a Business Associate Agreement) be made with service providers that perform functions or activities that involve the use or disclosure of ePHI on behalf of a HIPAA-covered entity, or that provide services to such an entity.
   The Google Apps for Education Agreement does not include a specific business associate agreement or incorporate such language into the Agreement. Therefore, ePHI should not be collected, processed, shared or stored in the Google environment.

4. **Payment Card Data**
   The payment card industry created the data security standards (PCI-DSS) for organizations that process, store or transmit cardholder data. The DC Business Office has overall responsibility for the oversight of payment card services, and is the owner of PCI compliance for the college. The Business Office mandates that users must not store cardholder data on any college system without approval. By extension, this means that Google should not be used to collect, process or store payment card data.
5. **Gramm Leach Bliley Act (GLBA)**
   GLBA requires financial institutions, including higher education institutions to safeguard sensitive data. DC complies with the security of customer data as outlined in the Gramm Leach Bliley Act. Similar to the ePHI analysis, because Google will not agree to a GLBA specific non-disclosure and security safeguard provision, it should not be used to collect, process or store GLBA data.
6. **Family Educational Rights and Privacy Act (FERPA)**
   Under the Google Apps for Education agreement, Google is deemed a "school official" and will comply with its obligations under FERPA. Therefore, FERPA data may be collected, processed or stored in the Google environment.

DISSENT AND ASSEMBLY POLICY

Dissent

By its very nature, the college is a place where diversity of thought is embraced, civility is cultivated, and freedom of speech is protected through ideas and opinions being formulated and exchanged. Members of the college community have a right to freely express their positions and to be engaged in constructive dialogue with others whether their opinion assents to or dissents from existing situations on campus or in society,

To ensure freedom is maintained, expressions of assent or dissent cannot be permitted to infringe on the rights of the members of the campus community – not only their freedom to express positions, but their freedom to engage in other legitimate activities. Actual or threatened coercion or violence are abhorrent in a college because they can destroy those rights and freedoms which are necessary for the existence of the college and its educational purpose.

Assembly

Defiance College student organizations, groups of Defiance College students that do not hold official organizational status and individual Defiance College students may assemble with the agreed upon understanding that participants create an environment that shows care and consideration for the institution. They must respect those who work at and attend Defiance College ensuring their ability to pursue their work and/or academic endeavors. To this end, Defiance College expects all groups or individuals who assemble to:

1. Gather in such a fashion as to refrain from physically hindering entrances to, exits from, or passageways with any College building or other structure or hinder the normal flow of pedestrian or vehicular traffic on or through campus.
2. Manage volume of noise that ensures that members of the campus community can carry on their normal activities.
3. Ensure the physical safety of all members of the campus community and care for campus property.
4. Enter a private office only when invited, and then not in excess of the number of designated occupants or invited by the occupant. Pass through reception areas leading to a private office must not be obstructed.
5. Keep to normal closing times for each building unless other arrangements are approved by the Dean of Students.
6. Follow the laws of the City of Defiance as much of the campus is contiguous to public and privately owned properties

Individuals who assemble outside the agreed upon policies and understanding articulated above may be subject to the appropriate college judicial process and face possible disciplinary and/or legal sanctions.

DRONE/UNMANNED AIRCRAFT SYSTEM POLICY

The operation of an unmanned aircraft system (UAS), or drone, is regulated by the Federal Aviation System (FAA). Any use of an UAS from or over the campus or inside a campus building is strictly prohibited except under the following circumstances:

- The use of drones is permitted only for educational or research purposes.
- Must obtain prior approval from the Dean of Students at least 48 hours prior to the use of the UAS.
- Must provide the date/time, purpose, and length of UAS operations, as well as the area of the campus where the UAS will be used.
- Must comply with all Federal, State and City laws
- Must have experience in operating the UAS and operate in a responsible manner.
- Must not operate over areas of public assembly, stadium or areas of construction.
- Must not photograph, video, monitor areas where other members of the campus community would have a responsible expectation of privacy.

Any violations of law or violations of College policy may subject individuals to both criminal and/or disciplinary action. Damages /injuries occurring to College property or individuals will be the responsibility of the UAS operator.

The use of drones for hobby or recreational use on Defiance College property is not permitted.
All commercially owned and operated UAS's must comply with all federal (FAA), state, and local laws and must obtain prior approval from the Dean of Students at least 48 hours in advance of the proposed use of the UAS. The use of commercially owned UAS is permitted only for educational and research purposes.
All drones approved for use on campus must be registered with the FAA and the Office of Student Life prior to operating on campus. Federal regulations require that owners of recreational drones must register their devices with the Federal Aviation Administration (http://www.faa.gov/uas/registration. Registration applies to drones weighing between .55 and 55 pounds. Operators caught using their drones without registration could face heavy federal fines along with campus disciplinary actions.

DEFIANCE COLLEGE EQUAL OPPORTUNITY, HARASSMENT, DISCRIMINATION, AND SEXUAL MISCONDUCT POLICY

For the full policy please visit the Safety and Compliance page of the Defiance College Website: http://www.defiance.edu/student-life/info/campus-safety-and-compliance.html

1. Purpose

Defiance College is committed to providing an educational and employment environment that is free from Discrimination based on Protected Characteristics, Harassment, and Retaliation for engaging in protected activity.

The College values and upholds the equal dignity of all members of its community and strives to balance the rights of the Parties in the resolution process during what is often a difficult time for all involved.

To ensure compliance with federal, state, and local civil rights laws and regulations, and to affirm its commitment to promoting the goals of fairness in all aspects of the education program or activity, the College has developed policies and procedures that provide a prompt, fair, and impartial resolution of allegations of Protected Characteristic Discrimination, Harassment, or Retaliation.

2. Scope

The Policy applies to all Employees, Students, and other individuals participating in or attempting to participate in the College's Education Program or Activities, including education and employment.

The Policy prohibits all forms of Discrimination on the basis of the Protected Characteristic(s), and may be applied to incidents, to patterns, and/or to the institutional culture/climate, all of which may be addressed in accordance with the Policy.

3. Notice of Nondiscrimination

Defiance College adheres to all federal and state civil rights laws and regulations prohibiting discrimination in private institutions of higher education.

Defiance College does not discriminate against any employee, applicant for employment, student, or applicant for admission on the basis of: race, ethnicity, religion, national origin, sex, gender, gender identity/expression, sexual orientation, age, disability, genetic information, marital status, veteran status or any other protected category under applicable local, state, or federal law, including protections for those opposing discrimination or participating in any grievance process on campus, with the Equal Employment Opportunity Commission, or other human rights agencies.

This policy covers nondiscrimination in both employment and access to educational opportunities. Therefore, any member of the College community whose acts deny, deprive, or limit the educational or employment or residential and/or social access, benefits, and/or opportunities of any member of the College community, guest, or visitor on the basis of that person's actual or perceived protected characteristics listed above is in violation of the Defiance College policy on nondiscrimination

The College will promptly and effectively address any such Discrimination of which it has Notice using the applicable resolution process in the Procedures.

4. Nondiscrimination Coordinator and Team Contacts

The Vice President for Student Affairs serves as the Nondiscrimination Coordinator to coordinate the College's compliance with federal, state, and local civil rights laws and ordinances.and the Defiance College's policy on equal opportunity, harassment, and nondiscrimination.

For All Discrimination and Harassment allegations:

Non-Discrimination Coordinator
Lisa Marsalek
Vice President and Dean of Student Affairs
Office of Student Life
128 Hubbard Hall
701 N Clinton St Defiance OH 43512
419-783-2587
lmarsalek@defiance.edu

Trained Deputy Coordinators who can also offer assistance are available in the following offices:

For Employees:
Mary Burkholder, Director of Human Resources
106 F Defiance Hall, 701 N. Clinton St., Defiance, OH 43512
(419) 783-2360 or mburkholder@defiance.edu

For Students:
Matthew Gehring, Assistant Athletic Director for Compliance, Facilities, and Internships
105H McMaster Center, 701 N. Clinton St., Defiance, OH 43152
(419) 783-2378 or mgehring@defiance.edu

Jennifer Walton, Associate Dean for Student Belongingness and Director of Residence Life
132 Hubbard Hall, 701 N. Clinton St, Defiance., OH 43512
(419) 783-2563 or jwalton@defiance.edu

Collectively, these individuals are responsible for providing comprehensive nondiscrimination education and training; coordinating the College's timely, thorough, and fair response; investigation and resolution of all alleged prohibited conduct under the Policy; and monitoring the effectiveness of, and any barriers to, accessing the Policy and related procedures to ensure an education and employment environment free from Discrimination, Harassment, and Retaliation.

The College has determined that the following administrators are Officials with Authority (OWAs) to address and correct Discrimination, Harassment, Retaliation, and/or Other Prohibited Conduct. In addition to the Nondiscrimination Team members listed above, these OWAs may also accept Notice or Formal Complaints on behalf of the College.

5. External Contact Information

Concerns about the College's application of the Policy and compliance with certain federal civil rights laws may be addressed to:

Office for Civil Rights (OCR)
U.S. Department of Education
400 Maryland Avenue, SW
Washington, D.C. 20202-1100
Customer Service Hotline: (800) 421-3481
Facsimile: (202) 453-6012
TDD: (877) 521-2172
Email: OCR@ed.gov
Web: http://www.ed.gov/ocr

Denver Office
Office for Civil Rights
U.S. Department of Education
Cesar E. Chavez Memorial Building
1244 Speer Boulevard, Suite 310
Denver, CO 80204-3582

Telephone: 303-844-5695
FAX: 303-844-4303; TDD: 800-877-8339
Email: OCR.Denver@ed.gov

For allegations of Employee-on-Employee misconduct, contact the Equal Employment Opportunity Commission (EEOC).

EEOC Regional Office
Anthony J. Celebrezze Federal Building, 1240 East 9th Street, Suite 3001
Cleveland, OH, 44199
Phone: 216-306-1120 Fax 216-522-7395

6. Notice/Complaints of Discrimination, Harassment, Retaliation, and/or Other Prohibited Conduct
As used in the Policy, the term "Formal Complaint" means a document or electronic submission (such as by electronic mail or through an online portal provided by the College for this purpose) that contains the Complainant's physical or digital signature or otherwise indicates that the Complainant is the person filing the complaint, and requests that the College investigate the allegations. If Notice is submitted in a format that does not meet this standard, the Title IX Coordinator will contact the Complainant to determine whether the Complainant is requesting that the College initiate an investigation or other appropriate resolution procedures.
Reporting carries no obligation to file a Formal Complaint, and in most situations, the College is able to respect a Complainant's request to not initiate an investigation or other appropriate resolution procedures. However, there may be circumstances, such as pattern behavior, allegations of severe misconduct, or a compelling threat to health and/or safety, where the College may need to initiate an investigation or other appropriate resolution procedures. If a Complainant does not wish to file a Formal Complaint, the College will maintain the privacy of information to the extent possible. The Complainant should not fear a loss of privacy by submitting a report that allows the College to discuss and/or provide supportive measures, in most circumstances.

FAMILY EDUCATIONAL RIGHTS AND PRIVACY ACT OF 1974 (FERPA) AND CONFIDENTIALITY OF STUDENT RECORDS

The Family Educational Rights and Privacy Act (FERPA) affords eligible students certain rights with respect to their education records. (An "eligible student" under FERPA is a student who is 18 years of age or older or who attends a postsecondary institution.) These rights include:

1. The right to review and inspect his or her own education records. An eligible student has the right to inspect and review the student's education records within 45 days after the day Defiance College (the "college") receives a request for access. A student should submit a written request to the Registrar that identifies the record(s) the student wishes to inspect. The Registrar will make arrangements for access and notify the student of the time and place where the records may be inspected. If the records are not maintained by the Registrar, he/she shall advise the student of the correct records custodian to whom the request should be addressed.
2. The right to request an amendment of the education record that the student believes to be inaccurate, misleading, or otherwise in violation of the student's privacy rights under FERPA. A student who wishes to ask the college to amend a record should write to the Registrar, clearly identify the part of the record the student wants changed, and specify why it should be changed. The college will, within a reasonable time after receiving the request, decide whether to amend the record as requested. If the college decides not to amend the record as requested, the college will notify the student in writing of the decision and the student's right to a hearing regarding the request for amendment. Additional information will be provided to the student when notified of the right to a hearing.

3. The right to provide written consent before Defiance College discloses personally identifiable information (PII) from the student's educational records, except to the extent that FERPA authorizes disclosure without consent. An eligible student has the right to provide written consent before the college discloses personally identifiable information (PII) from the student's education records, except to the extent that FERPA authorizes disclosure without consent.

The university may, and from time to time does, disclose education records without a student's prior written consent when authorized by FERPA, including to college officials whom the college has determined to have legitimate educational interests. A school official typically has a legitimate educational interest if the official needs to review an education record in order to fulfill his or her professional responsibilities for the college. Defiance College defines "college officials" and "legitimate educational interests" as follows:

a. "College officials" include
   i. Persons employed by Defiance College in an administrative, supervisory, academic, research, or clerical or support staff position (including but not limited to law enforcement unit personnel, attorneys, counselors, and health staff);
   ii. Persons serving on the board of trustees; or
   iii. Persons (including students) serving on an official college committee, such as a disciplinary or grievance committee.

b. A college official also may include a volunteer, contractor, consultant or other party outside of Defiance College
   i. Who performs an institutional service or function for which the college would otherwise use its own employees,
   ii. Who is under the direct control of the college with respect to the use and maintenance of education records, such as an attorney, auditor, or collection agent or a student volunteering to assist another college official in performing his or her tasks, and
   iii. Who is subject to the obligation not to disclose PII from any education record without the prior written consent of the student.

c. "Legitimate educational interests" include performing a task or engaging in an activity related to
   i. One's regular duties or professional responsibilities,
   ii. A student's education,
   iii. The discipline of a student,
   iv. A service to or benefit for a student,
   v. Measures to support student success, and
   vi. The safety and security of the campus.

4. The right to file a complaint. An eligible student has the right to file a complaint with the U.S. Department of Education concerning alleged failures by Defiance College to comply with the requirements of FERPA. The name and address of the Office that administers FERPA is:

Family Policy Compliance Office
U.S. Department of Education
400 Maryland Avenue, SW
Washington, DC 20202

The college reserves the right to notify parents or guardians, regardless of the student's age, status, or conduct, in health or safety emergencies, hospitalizations, or when in our judgment, the health or well-being of the student or others may be at risk.

FREE SPEECH POLICY

Defiance College supports every individual's right to freedom of expression consistent with the forum (area of campus) in which the expression is made. The College also recognizes the importance of fostering a culture of tolerance and civility that is a cornerstone for the accomplishment of its educational goals.

Within the classroom, visual and/or aural demonstrations, depictions or conduct that may be offensive to an individual will not be restricted when there is a legitimate pedagogical context, such as material having an appropriate connection to course subject matter. Similarly, campus discourse on topics of political, artistic or social issues that are conducted consistent with the nature of the forum and reasonable institutional limitations (registration to use space, time, place and manner regulations, etc.) that are clear and unambiguous will be supported.

Expression that is severe, persistent, and objectively offensive, that is directed toward an individual based upon that individual's protected status (e.g., sex/gender, race, ethnicity, national origin, disability or age) and has the effect of limiting or deny educational or employment access, benefits or opportunities is not a protected form of speech or expression, and can form the basis of a violation of the campus harassment, bullying or discrimination policies. Other limitations on free speech include: endangering someone or threatening them; inciting violence; using "fighting words" directed at an individual or group that directly provoke violence; defamation; obscenity; and expression that has a discriminatory effect such that it limits or denies someone's educational or employment access, benefits and/or opportunities.

GAMBLING POLICY

Students are expected to abide by the federal laws and the laws of Ohio regarding gambling, including online gaming. No student or student organization shall conduct, administer, facilitate or sponsor gambling activities, except as expressly permitted by law and with prior written approval by the College. Students who gamble in their individual capacity are responsible for determining whether their activities are lawful. Prohibited gambling activities include, possessing on one's person or premises (e.g., room, residence unit, car) any card, book or other device for registering illegal bets; knowingly permitting the use of one's premises or one's phone or other electronic communications device for illegal gambling; knowingly receiving or delivering a letter, package or parcel related to illegal gambling; offering, soliciting or accepting a bribe to influence the outcome of an athletic event; and involvement in bookmaking or wagering pools with respect to athletic events. Illegal gambling is a violation of College policy and may result in disciplinary action.

GUEST SPEAKERS POLICY

It is the policy of the campus to foster a spirit of free inquiry and to encourage the timely discussion of the broad range of issues that concern our community, provided that the views expressed are stated openly and are subject to critical evaluation.

Student Organization Responsibilities

A registered student organization, may invite guest speakers to the campus, subject to the following provisions:

- Sponsorship must be by a registered student organization and be approved by the Dean of Students.
- Proper arrangements for the use of college facilities must be made, consistent with institutional policy.
- It must be clear that the student organization, not the College, is extending the invitation and that any views the speaker may express are his or her own and not those of the College.
- The student organization must take whatever steps are necessary to ensure that the meeting is conducted in an orderly manner. This may necessitate consultation with campus safety and/or hiring of outside security.
- The student organization must comply with any and all conditions for the orderly and scholarly conduct of the meeting

HAZING POLICY

Students are entitled to be treated with consideration and respect, and no individual may perform an act that is likely to cause physical or psychological harm to any other person within the College community. Defiance College student groups (e.g. registered student organizations, intramural, club and varsity athletic teams, and other recognized student groups) and individual students and employees are prohibited from hazing on or off campus. Accordingly, any such behavior is expressly forbidden when related to the admission, initiation, pledging, joining, or any other group-affiliation activity.

Effective as of October 7, 2021, Hazing, as set forth in Ohio Revised Code section 2903.31, as amended, means: Intentionally, knowingly, or recklessly, for the purposes of initiating, admitting or affiliating a student into or with an organization, or for the purpose of continuing or enhancing a student's membership or status in an organization, causing, coercing or forcing a student to do any of the following, regardless of whether such conduct occurs on or off campus:

- Violate Federal or State criminal law.
- Consume any food, liquid, alcoholic liquid, drug or other substance which subjects the student to a risk of emotional or physical harm.
- Endure brutality of a physical nature, including whipping, beating, branding, calisthenics or exposure to the elements.
- Endure brutality of a mental nature, including actively adversely affecting the mental health or dignity of the individual, sleep deprivation, exclusion from social contact or conduct that could result in extreme embarrassment.
- Endure brutality of a sexual nature.
- Endure any other activity that creates a reasonable likelihood of bodily injury to the student.

Any Defiance College community member or organization found to be involved in any hazing activity will face conduct action and may be subjected to suspension or expulsion from the College. A violation of this policy may exist irrespective of any alleged voluntary or consensual participation in the activity by the person(s) being abused.. The complete Anti-Hazing Policy can be found on the website under Safety and Compliance https://www.defiance.edu/student-life/info/campus-safety-and-compliance.html

Examples

a) Clem was inducted into an unrecognized club that was made up of some members of the College marching band. As part of the induction activities, Clem was asked to do calisthenics half-naked in extreme heat at the request of club leaders. Clem was told he did not have to do them, but that all members did them and it improved their on-field stamina. Clem voluntarily engaged in the calisthenics. *This type of behavior violates the hazing policy, regardless of the "voluntariness" of Clem's decision*.

b) Rick joined Omega Pi Lambda, a fraternity. His pledge class took an oath not to haze, and was repeatedly warned of the fraternity's anti-hazing policy by current members. Rick's pledge class had heard of the long history of hazing that had gone on in their fraternity before they joined, and they felt like they were missing out. All the members had earned their stripes, but Rick's class was under new rules. They wanted to prove themselves to their brothers, so one night Rick and his pledge class secretly invaded Rho Mu Alpha, and stole their flag. The following Sunday, in a solemn presentation, Rick and his cohorts presented the flag of their rival to their chapter leaders, who accepted it with honor and much conversation about how the covert mission was accomplished. The leaders of Omega Pi Lambda faced accusations of violating the College hazing policy. They argued that they did not take the flag, and expressly told the new initiates not to haze. *The College found them in violation for encouraging the activity by accepting the flag, glamorizing its theft, and failing to report the behavior to College officials once they were aware of it.*

MISSING PERSONS POLICY

If a residential student has not been seen on campus for more than 24 hours and acquaintances do not know where the student may be, the Dean of Students and Security should be notified. If attempts to contact/locate the missing student are unsuccessful, the Dean of Students and/or his/her designee will notify local law enforcement within 24 hours of the determination that the student is missing and the College will assist local law enforcement as requested until the matter is resolved. If the missing residential student is under the age of 18, a parent or legal guardian will be notified. The College reserves the right to contact a parent or legal guardian of an older student if deemed necessary. The names and contact information for notification is derived from a residential student's emergency contact form. If any student has been seen in the company of an individual(s) indicating that he/she may be in danger, the Office of Student Life (ext. 2437) or Campus Safety(ext. 2625) should be notified immediately.

NOXIOUS ODOR POLICY

All members of the College Community are responsible for contributing to healthy, supportive learning and living environments. The College recognizes that noxious odors have the potential to contribute negatively to the quality of life in our learning and living environments.

A noxious odor is ANY aroma of such intensity that becomes apparent to any one or more persons. Any odor (including, but not limited to, cigarette, cannabis, cigar or pipe smoke, perfume, air freshener or large amounts of dirty laundry) may become noxious or offensive when it is too strong or lingers for a period of time. When the source of the noxious odor can be traced to a particular room or the odor is emanating from a person and/or their clothing, the occupant(s) of that room or person from whom the odor is emanating may be subject to disciplinary action.

PARKING POLICY

All student motorized vehicles on campus must be registered annually with the Office of Campus Safety (Hubbard Hall McCann Desk) at the beginning of each academic year or within five class days following a student's enrollment at the College. Students may only register one motorized vehicle on campus. Faculty and staff may register multiple vehicles, but are encouraged to have only one vehicle on campus at a given time. All registered vehicles must display a parking sticker in the left front windshield area to avoid being ticketed for an unregistered vehicle. Students are issued new registration stickers for their motorized vehicles each year.

To properly register their vehicle students must complete a vehicle registration form with the Office of Campus Safety All students are automatically billed a $80 parking fee at the beginning of the academic year ($40 if enrolling after Fall semester). Students who do not plan to park a vehicle on campus may opt out of this parking fee by completing a waiver form on the Parking Information page of the DC website in order to remove the fee from their student account. This waiver should be completed by the tenth day of the academic semester in which the fee is charged. The student parking fee is non-refundable.

Personal motorized vehicles may not be parked or stored inside any campus buildings.

Specific parking designations are identified for residential and commuting students, as well as faculty, staff and affiliated personnel. On weekdays, between 8:00 am and 4:00 pm during Fall and Spring terms parking designations are as follows:

<u>A lots (red decal): Hubbard, Serrick, Weaner Center/Smart Center</u>

- Faculty and Staff
- Visitors
- No students or contracted employees between the hours of 7:45am and 4:30pm
- No overnight student parking

<u>B lots (Yellow decal): Gravel lot, Sessions lot across from Dana, Grand Ave.</u>

- Faculty and Staff
- Contracted employees
- Commuters
- Grand Ave, Jacket Suites, 20 College Place, 901 College Drive, 903 College Drive, 180 Grand Ave, and 623 N.Clinton Street residents (NOTE: residents of on-campus houses may park in their driveways but must still register their vehicle and display the registration decal)
- Visitors
- Open to other residential students after 4:30pm until 7:45am

<u>C lot (Green decal): lot behind Whitney Hall</u>

- Residential Students
- No commuter parking
- Faculty and staff who are picking up a campus vehicle, should place their personal vehicle into the space the college vehicle formerly occupied.

<u>Stadium</u>

No residential student parking on game days.

<u>St.John's UCC</u>

No parking during church events (orange cones and posted "Church Parking Only"

<u>Webster and Sessions Streets on-street parking</u>

Webster and Sessions streets are public streets, on-street parking is open to all.

The College has established basic regulations in order to have proper control of the operation of motorized vehicles. These motorized vehicle regulations are updated annually and are distributed to students when vehicles are registered each year. Students are expected to drive responsibly and without recklessness. When these regulations are not followed, a student can expect to be issued a ticket, have the vehicle towed, or lose the privilege of having a vehicle on campus. In extreme cases of misconduct involving motorized vehicles, a student may be suspended from the College. The owner of a motorized vehicle will be held responsible for any fines or costs incurred in connection with the use or misuse of a motorized vehicle on-campus. Any fines incurred must be paid in the Business Office within ten days from the date of posting to the student account.

According to Ohio law, all motor vehicles must carry personal and property liability insurance. The College has no liability, and assumes none, for a student driving or riding in a private car, nor does the College assume any responsibility for the loss or damage to motorized vehicles brought to campus or for liability whatsoever related to the ownership or use of student vehicles.

Vehicle Registration Fees

Initial sticker for vehicle	$80.00

Violation Fee Amounts

Ticket for parking in a restricted area	$35.00
Ticket for excessive speed or other dangerous operation	$35.00
Ticket for failure to register vehicle	$80.00

Restricted parking areas: UCC, handicapped, visitor, or maintenance-only parking spaces. Motorized vehicles are strictly prohibited in fire lanes, driveways, grass, sidewalks, and any other designated restricted areas.

Appeals Process

A student who has received a ticket has 3 calendar days after issuance of a ticket to submit a written appeal to the Office of Student Life. These appeals will be reviewed by the Dean of Students and/or student members of the College Judicial Committee who will make a determination. If a student disagrees with the decision of the student panel, they may appeal to the Dean of Students, whose decision will be final. Forms for these appeals may be found on the Parking Information page of the DC website: www.defiance.edu/pages/parking.html

A student who does not file an appeal within 3 calendar days from the date of the ticket waives the right to appeal.

It is the responsibility of each member of the College community to read, understand and abide by these regulations. Ignorance of these regulations is not grounds for appealing a violation. It is the responsibility of the registered driver to make sure others operating their motorized vehicle understand and obey the College's regulations.

POSTING POLICY

The College supports the freedom to publicize activities and distribute materials by internal or external entities relating to functions on-and off-campus which benefit the College community and are consistent with the College's values.

General Posting Policy

Approval must be obtained prior to making use of the residence halls or campus facilities for the sale, promotion, posting or distribution of any type of material. All material must have a sponsor responsible for the material stated directly on each piece and adhere to all policies that apply.

All printed materials posted or distributed on campus by students and guests must receive approval from the Director of Student Activities. Printed materials include flyers, posters, banners, announcements and advertisements. Bring one sample to the Student Activities office for stamped approval and make copies from that sample. Allow 24 hours turnaround time for approval.

Review and approval of postings will be based on the time, place and manner of posting, not the posting's content. Yard Signs are prohibited unless approved by the Dean of Students. Only signage related to events being held on campus will be considered for approval.

Additional Approvals

The Director of Student Activities (or designee) must approve all promotional material for any and all activities before being posted. The Career Services office must also approve announcements advertising employment opportunities for students. All religious organizations and events religious in nature must have the additional approval of the Dean of Students.

Academic and Administrative office posters do not need the approval of but should be marked with department and date (i.e., Financial Aid Office, December 10, 2016, Do not remove until December 31, 2016).

The promoting group must obtain permission of the appropriate department to post on bulletin boards in Academic/ Administrative areas for non-departmental ads.

Literature Distribution

Literature distribution must be supervised by a student member of the sponsoring registered organization. Non-students may not distribute literature on campus without specific approval of the Dean of Students.

Each sponsoring organization will be held responsible for the conduct of the distribution activity, including the behavior of any non-student participant.

On Campus: The distribution must be made only in designated areas. Calling out to people to facilitate the distribution of literature is not permitted. Absolutely no printed materials may be placed on automobiles parked on College property.

Off Campus: Posting or distribution of materials at an off-campus location requires permission of the proprietor.

Posting Guidelines

Masking tape or tacks are suitable for posting on kiosks and bulletin board. Persons posting are responsible for providing all materials.

Materials may remain posted for a maximum of 30 days or until the day after the announced event, whichever is sooner, and the sponsoring group is responsible for removal. Groups may be fined if materials are not removed the day after an event.

Approved Posting Locations

- Academic Bldgs: Bulletin boards, cork strips or kiosks
- Bulletin boards.
- Library: Lobby kiosk/bulletin boards
- Residence Halls: Give to the Residence Life Office for RAs to post inside residence halls.
- Sidewalks: Chalking is acceptable no more than two days before an event; messages must be removed no later than 24 hours after the event. No chalking on building surfaces.
- McCann Center: Bulletin boards, cork strips, and kiosk. No items may be taped to painted pillars
- Serrick Center: Kiosk, Bulletin Boards. No items may be taped to painted pillars.
- Athletic facilities: Bulletin Boards.
- Restrooms: Only Student Life staff may post in restroom stalls.

Posting Violations

- Posting materials without proper approval(s).
- Posting materials on painted pillars.
- Posters with alcohol as the primary emphasis.
- Use of two-sided, electrical or duct tape.
- Covering another announcement or impairing an individual's line of sight.
- Posting on glass doors or windows, painted or varnished surfaces.
- Distribution on cars parked on campus.

Failure to adhere to this policy may result in losing the privilege to distribute or post printed materials on campus for a period of time to be specified by the Director of Student Activates.

RELIGION/ASSOCIATION POLICY

Students have the right to exercise their religious convictions and associate with religious, political, or other organizations of their choice provided they do so in a manner that respects the rights of other members of the community and complies with the Code of Student of Conduct. Student organizations have the right to affiliate members who subscribe to organizational tenets, beliefs and/or principles as long as all recognized organizations also abide by the College/'s non-discrimination policy.

SALES AND SOLICITATION

Canvassing or soliciting for funds, sales, or subscriptions is prohibited on campus or in College buildings unless written permission has been granted by the Dean of Students (or designee). Additionally, outside and for-profit groups are not allowed to sell items or solicit members of the College community on campus without prior approval from the Dean of Students (or designee).

Posters, flyers and other event advertisements pertaining to sales and solicitation for funds, sales or subscriptions must be approved by the Office of the Dean of Students (or designee) prior to posting or distribution.

The sale of merchandise, or publications or service on College property, other than by contracted vendors, authorized stores, restaurants, departments or divisions of the College/, is likewise prohibited except upon written permission of the Dean of Students (or designee).

SMOKING AND TOBACCO POLICY

The College is committed to provide a safe and healthy environment on campus property. To that end, the College provides a smoke free environment. Therefore smoking is not permitted in any College facilities or buildings. Smoking is also prohibited in all outdoor areas of campus, except parking lots. The use of chewing tobacco, e-cigarettes and vapor devices is prohibited in all campus buildings. E-cigarette and vaping devices are not permitted in the residence halls. Smoking of marijuana is not permitted anywhere on campus.

All employees and students share in the cooperative responsibility of compliance with this policy. Students, faculty and staff have the responsibility to advise their visitors or guests of this policy. When conflicts arise, the health of the nonsmoker will prevail. Employees and students who do not comply with this policy will be subject to the same disciplinary actions that accompany noncompliance with other College rules and/or policies.

STUDENT COMPLAINT POLICY

Defiance College is required by its accreditor the Higher Learning Commission to maintain a record of formal, written student complaints filed with the office of the President, the Provost, and the Dean of Students. Such complaints must be written and signed by a student of Defiance College in order to be accepted as a formal complaint. The record will include information on the resolution of the complaint. Though the College is required to share this record with the Higher Learning Commission, the anonymity of the complainant and others mentioned in the complaint is protected unless a release is signed by the complainant.

In many cases, student complaints do not reach the level of formal written complaints. When these informal complaints are received by the Dean of Students office they are handled on a case-by-case basis with resolution sought through the department or administrative area that is best equipped to assist the student with their specific concern. When appropriate, documentation of these informal complaints and any resolution is included in the student's file in the Dean of Students office.

Various policy statements of the College prescribe specific procedures for the filing of student complaints and how they are to be handled. These policies include the policy on Equal Opportunity, Harassment, Discrimination and Sexual Misconduct (which includes provisions for anonymous complaints).

STUDENT RIGHT TO KNOW AND CAMPUS SECURITY ACT OF 1990

The Student Right to Know and Campus Security Act of 1990 (now known as the Clery Act) is a federal mandate which requires that all current students and employees be provided with information on policies and procedures involving campus security, the reporting of criminal action or other emergencies, and the enforcement authority of security personnel. This information must also include descriptions of programs for students and employees about campus security and crime prevention, as well as statistics on the occurrence of specific crimes. Notification of the annual security report is made by the College's Dean of Student and the full report is posted on the College website each October and can be found on the website here http://www.defiance.edu/student-life/info/campus-safety-and-compliance.html. Hardcopies are available from the Office of Student Life on request.

STUDENT SALES & FUNDRAISING

Sales will be conducted by registered student organizations only. Sales in stationary locations on campus must be approved by a member of cabinet and the Office of Institutional Advancement (or designee) and appropriate paperwork to reserve facilities must be completed at least five (5) business days before the event. Individuals or organizations may not sell or solicit donations off-campus in the name of the College unless prior authorization is given by the Dean of Students and the Office of Institutional Advancement.

VOLUNTARY MEDICAL/PSYCHOLOGICAL LEAVE POLICY AND POLICY ON INVOLUNTARY LEAVE FOR STUDENTS WHO POSE A DIRECT THREAT OF HARM TO OTHERS

Introduction

The following policies and procedures are to be used to help transition a student to a safer environment more conducive to their needs when it becomes clear that remaining at the College is not in the best interest of the student or the College community. This policy also allows for a student to take a leave voluntarily when medical conditions or psychological distress make a leave in their best interest; its goal is to define the length of separation, outline the path to re-entry and ease the transition for the student's return, and to optimize the opportunities for the student's

success when they return. Under certain conditions, if a student has not opted to take a leave voluntarily, the College may institute an involuntary leave under this policy.

A. Student-Initiated Voluntary Leave of Absence

Students may initiate a leave or withdrawal from the College for medical or psychological reasons. At the discretion of the Dean of Students (or designee), and subject to the refund policies of the institution, arrangements may be made for partial or complete refund of tuition and/or fees. Incomplete grades or other academic accommodations may be made as well, subject to the academic policies of the College. Modifications to housing contracts may also be possible. The normal College procedures for leave or withdrawal will be followed, including any documentation requirements. If a student takes a voluntary leave, the leave documentation will specify the duration of the leave and options for extension. The student is permitted to return upon the end of the leave, subject only to any conditions or restrictions outlined and agreed to prior to the leave or withdrawal. Students taking a leave or withdrawal are under no obligation to accept these conditions, but, should they accept them, they are subject to them. Any conditions should be designed to ensure the success of the student upon return.

Students who elect to fully withdraw, rather than take a leave, are required to reapply for admission after the time specified by the Registrar, and will be treated as any other applicant for admission at that time.

B. College/-Initiated Medical or Psychological Leave

If a student is behaving in a way that is threatening to others, the Dean of Students (or designee) may initiate these procedures. Students who engage in threats to others and self-harm behaviors that cause a significant disruption to the community may also be subject to the Code of Student Conduct.

a) Standard for Involuntary Leave on the Basis of Threat of Harm to Others

1. *Standard for Separating a Student on the Basis of Behaviors Resulting from a Condition of Disability*:

This section applies to all involuntary leaves from housing or from the College for any student who is at significant risk of harm to others as a result of a condition covered by disabilities law. When the potential for harm to others is present, involuntary leave actions must consider whether the endangering behavior results from a condition of disability. If so, the student will be protected by Section 504 of the Rehabilitation Act of 1973. Under this federal statute, an individual with a disability may only be separated on the basis of this disability when they are not otherwise qualified to participate in the education program of the institution. The objective of this section is to determine whether it is more likely than not that a student is a direct threat. When a student is a direct threat, they are not otherwise qualified under disabilities law, and may be placed on leave.

A direct threat exists when a student poses a significant risk to the health or safety of others. A significant risk constitutes a high probability of substantial harm. Significance will be determined by:

- The duration of the risk;
- The nature and severity of the potential harm;
- The likelihood that the potential harm will occur; and
- The imminence of the potential harm.

The College must determine whether reasonable accommodations to policies, practices or procedures will sufficiently mitigate the risk, unless those reasonable accommodations would cause undue hardship for the College.

Determining that a student is a direct threat requires an objective and individualized assessment and hearing. The assessment must be based on a reasonable medical judgment that relies on the most current medical knowledge and/or on the best available objective evidence. This standard also applies to the reinstatement of a student who has been placed on leave. They are entitled to return upon showing they no longer pose a direct threat of harm to others. The College's Behavioral Intervention (CARE Team) will likely assist in this determination.

1. *Status of Conduct Proceedings:*

If the student has been accused of a violation of the Code of Student Conduct, but it appears that the student is not capable of understanding the nature or inappropriateness of the action, this policy may be activated prior to issuance of a determination in the conduct process. Interim suspension for threat of harm to others will also likely be imposed.

If the student is placed on medical leave from the College, or another action is taken under these provisions following a finding that the student's behavior was the result of a lack of capacity, such action terminates the pending conduct action. If the student is found not to be subject to medical leave, conduct proceedings may be reinstated.

b) Referral for Assessment or Evaluation

The appropriate official (or CARE team) may refer or mandate a student for evaluation by a campus or independent licensed psychiatrist or psychologist (or licensed professional counselor, social worker, licensed clinical social worker, etc.) chosen by the College. Such evaluation may be appropriate if it is believed that the student may meet the criteria set forth in this policy or if a student subject to conduct proceedings provides notification that information concerning a mental health/behavioral condition or disorder will be introduced.

Students referred or mandated for evaluation will be so informed in writing with personal and/or certified delivery, and will be given a copy of these standards and procedures. The evaluation must be completed per the direction of the referral letter, unless the Dean of Students (or designee) grants an extension. A student who fails to complete the evaluation in accordance with these standards and procedures, and/or who fails to give permission for the results to be shared with appropriate administrators, will be referred for conduct action for "Failure to Comply" under the *Code of Student Conduct*.

c) College/-Initiated Leave Hearing Procedures for Direct Threat of Harm to Others

1. *Administrative Hearing Option*

The Dean of Students (or designee) may invoke informal resolution procedures to determine the need for an involuntary leave without a formal hearing. This process is also known as an administrative hearing. In administrative hearings, medical and administrative evidence (e.g. BIT/CARE assessment) will be heard, and final determinations will be made by the Dean of Students (or designee). If the medical evaluation and/or administrative assessment (e.g. BIT assessment) support the need for a leave, the Dean of Students will render a written decision within two business days, barring exigent circumstances, stating the rationale for his/her determination. The decision will be delivered to the student directly, electronically, and/or by regular and certified mail. If the determination is made that a leave is warranted, the notification will include information regarding how long the leave may endure, as well as specifying any conditions of reinstatement. If other actions are pending, the appropriate individuals will be notified and may proceed with their actions.

Formal Hearing Option

The student subject to an involuntary leave may request a formal hearing in lieu of the administrative hearing described above. If the medical evaluation and/or administrative assessment (e.g. BIT assessment) support the need for a leave, a hearing will be scheduled before the Dean of Students (or designee), and core members of the College administration. The student will be informed, in writing electronically and through regular and/or certified delivery, of the time, date and place of the hearing. The student will be given at least two business days to independently review the psychological or psychiatric evaluation prior to the hearing. The student will be notified of who is expected to present information at the hearing, and is expected to notify the Dean of Students (or designee) of any parties with relevant information whom the Dean should contact to request their appearance at the hearing as a witness. The student may, at the discretion of the Dean of Students (or designee), be assisted by an advisor in the hearing but no advisor will be allowed to speak for or formally represent the student during a formal involuntary leave hearing.

The student and the student's advisor may present information about the necessity of involuntary leave and the student will be given the opportunity to ask questions of others presenting information. The hearing should be conversational and non-adversarial; however the Dean of Students (or designee) will exercise active control over the proceeding, to include deciding who may present information. Formal rules of evidence will not apply. Anyone who disrupts the hearing may be excluded. There will be a single verbatim record, such as a tape recording, for all involuntary leave hearings. The record will be the property of the College and maintained according to the College's record retention policy for such hearings.

A written decision will be rendered by the committee within two business days, barring exigent circumstances, stating the rationale for its determination. The decision will be delivered to the student in writing electronically and through regular and/or certified delivery. If the determination is made that a leave is warranted, the notification will include information regarding how long the leave may endure, as well as specifying any conditions of reinstatement. If other actions are pending, the appropriate individuals will be notified and may proceed with their actions.

3. *Appeals Process*
The determination of the involuntary leave hearing, administrative or formal, is subject to appeal to the Chief Student Affairs officer in accordance with the following process: Students subject to involuntary leave may petition for a review of the determination within three (3) business days of issuance of the hearing committee's written decision. All petitions must be in writing and delivered to the Office of Student Life. Reviews will only be considered for one or more of the following purposes:
    - To consider new information which was unavailable at the time of the original hearing and could be outcome determinative;
    - To assess whether a material deviation from written procedures impacted the fairness or outcome of the hearing;
    - To decide if an involuntary leave is disproportionate to the severity of the threat evidenced in the hearing;
    - To determine if the decision does not align with the information provided in the hearing or whether reasonable accommodations might mitigate the risk without a leave; or
    - To assess whether bias on the part of a hearing committee member deprived the process of impartiality.

Except as required to explain the basis of new information unavailable at the time of a hearing, review of a hearing will be limited to the verbatim record of the initial hearing and/or all supporting documents. The review and appeal decision of the Chief Student Affairs Officer (or designee) is final.

C. Readmission Following an Involuntary Leave
A student who is seeking reinstatement to the College after an involuntary leave must receive clearance by providing the Dean of Students written evidence from a licensed medical or mental health professional that the student is no longer a direct threat to others and is otherwise qualified to participate in the College's educational programs. Any other conditions outlined in accordance with this policy and/or any conduct sanctions must also be completed. A hearing, as outlined above, may be held to determine whether it is more likely than not that the student is no longer a direct threat.

2025-2026 ACADEMIC CALENDAR

FALL 2025 SEMESTER

Fall Matriculation Ceremony.....Friday, August 22
Evening, Lab and Adult Online Classes Begin [1].....Monday, August 25
All Fall Classes Begin.....Tuesday, August 26
Add/Drop Ends (1st Half Classes).....Friday, August 29
Add/Drop Ends (Full Term Classes).....Friday, August 29
Labor Day Holiday (College Closed).....Monday, September 1
Last Day to Withdraw (1st Half Classes).....Friday, September 26
Course Evaluation Period (1st Half Classes).....Monday, October 6 – Friday, October 10
Last Day of 1st Half Classes.....Wednesday, October 15
Fall Break (No Classes; College Open).....Thursday, October 16 and Friday, October 17
2nd Half Classes Begin.....Monday, October 20
Midterm Grades Due.....Monday, October 20
1st Half Classes Grades Due by Noon.....Tuesday, October 21
Add/Drop Ends (2nd Half Classes).....Friday, October 24
Last Day to Withdraw (Full Term Classes).....Friday, October 24
Spring Semester Registration and Advising Opens.....Monday, October 27
Spring Semester Registration and Advising Ends.....Friday, November 7
Last Day to Withdraw (2nd Half Classes).....Friday, November 21
Course Evaluation Period (Full Term Classes).....Monday, November 24 – Friday, December 5
Thanksgiving Break (College Closed).....Wednesday, November 26 – Friday, November 28
Course Evaluation Period (2nd Half Classes).....Monday, December 1– Friday, December 5
Last Day of Classes.....Friday, December 5
Final Examinations.....Monday, December 8 – Thursday, December 11
Assessment Day (Faculty only; Office Open).....Friday, December 12
Final Grades Due by Noon.....Tuesday, December 16
College Closed for Christmas Break.....Tuesday, December 24 – Wednesday, January 1
Deadline to complete all requirements for December Graduation.....Sunday, January 18

[1] Evening classes are defined as those that begin at 4 pm or later.

IMPORTANT PHONE NUMBERS

Academic Affairs.....2586
Admissions.....2359
Alumni Office.....2303
Athletics.....2342
Audio/Visual.....2615
Bursar/Business Office.....2550
Campus Safety.....2625
Institute for Career Readiness 2349
Computer Services.....2312
Counseling Center.....2562
Dining Services (Hallmark).....2488
Education Department.....2323
Conferences & Events.....2585
Financial Aid.....2364
George M. Smart Athletic Center.....785-2997
Human Resources.....2360
FIRE.....784-2666 or 911
POLICE.....784-5050 or 911
Student Belongingness.....2362
Jacket Sports Line.....2582
Library.....2481
Mailroom.....2329
Maintenance.....2503
McMaster School.....2552
President's Office.....2300
Registrar.....2375
Residence Life.....2563
Sports Information.....2566
Student Academic Success Center.....2336
Student Activities.....2388
Student Life.....2437
Training Rooms: WCC.....2564
Stadium.....2322
Whitney Hall.....2600
McReynolds Hall.....2234

2025-2026 ACADEMIC CALENDAR

SPRING 2026 SEMESTER

Classes begin with required Jacket Journey Days ..... Monday, January 12 – Wednesday, January 14
All other Spring Classes Begin ..... Thursday, January 15
Martin Luther King, Jr. Day (College Closed) ..... Monday, January 19
Add/Drop Ends (Full Term & 1st Half Classes) ..... Friday, January 23
Presidents' Day (No Classes; College Open) ..... Monday, February 16
Last Day to Withdraw (1st Half Classes) ..... Friday, February 20
Course Evaluation Period (1st Half Classes) ..... Monday, March 2 – Friday, March 6
Last Day of 1st Half Classes ..... Friday, March 6
Spring Break ..... Monday, March 9 – Friday, March 13
2nd Half Classes Begin ..... Monday, March 16
Midterm Grades Due ..... Tuesday, March 17
1st Half Grades Due by Noon ..... Tuesday, March 17
Add/Drop Ends (2nd Half Classes) ..... Friday, March 20
Last Day to Withdraw (Full Term Classes) ..... Friday, March 20
Summer and Fall Registration and Advising Opens ..... Monday, March 23
Holy Thursday (No Classes; College Open) ..... Thursday, April 2
Good Friday (College Closed) ..... Friday, April 3
Summer and Fall Registration and Advising Ends ..... Friday, April 7
McMaster Symposium & Colloquium (No Classes; College Open) ..... Wednesday, April 15
Course Evaluation Period (Full Term Classes) ..... Monday, April 20 – Friday, May 1
Last Day to Withdraw (2nd Half Classes) ..... Tuesday, April 21
Course Evaluation Period (2nd Half Classes) ..... Monday, April 27 – Friday, May 1
Last Day of Classes ..... Friday, May 1
Final Examinations ..... Monday, May 4 – Thursday, May 7
Assessment Day (Faculty only; Offices Open) ..... Friday, May 8
Grades Due for Graduating Students by Noon ..... Friday, May 8
Commencement ..... Saturday, May 9
Final Grades Due (for both full term and 2nd Half Classes) by Noon ..... Tuesday, May 12
Deadline to complete all requirements for May Graduation ..... Friday, May 29

SUMMER 2026 SEMESTER
(Full Term (12-Week), Sessions I (1st 6-Weeks), and II (2nd 6-Weeks)

Full Term and 1st 6-Week Classes Begin ..... Monday, May 18
Add/Drop Ends (Full Term and 1st 6-Week) ..... Thursday, May 21
Memorial Day (College Closed) ..... Monday, May 25
Last Day to Withdraw (1st 6-Week Classes) ..... Friday, June 12
Observation of Juneteenth (College Closed) ..... Thursday, June 19
Last Day of 1st 6-Week Classes ..... Friday, June 26
2nd 6-Week Classes Begin ..... Monday, June 29
1st 6-Week Classes Grades Due by Noon ..... Tuesday, June 30
Add/Drop Ends (2nd 6-Week Classes) ..... Thursday, July 2
Independence Day (College Closed) ..... Friday, July 3
Last Day to Withdraw (Full Term) ..... Friday, July 10
Last Day to Withdraw (2nd 6-Week Classes) ..... Friday, July 24
Last Day of 12-Week and 2nd 6-Week Classes ..... Friday, August 7
Full Term and 2nd 6-Week Grades Due by Noon ..... Tuesday, August 11
Deadline to complete all requirements for Summer Graduation ..... Friday, August 28

2025-2026 CALENDAR

August '25

S	M	T	W	T	F	S
					1	2
3	4	5	6	7	8	9
10	11	12	13	14	15	16
17	18	19	20	21	22	23
24	25	26	27	28	29	30
31						

September '25

S	M	T	W	T	F	S
	1	2	3	4	5	6
7	8	9	10	11	12	13
14	15	16	17	18	19	20
21	22	23	24	25	26	27
28	29	30				

October '25

S	M	T	W	T	F	S
			1	2	3	4
5	6	7	8	9	10	11
12	13	14	15	16	17	18
19	20	21	22	23	24	25
26	27	28	29	30	31	

November '25

S	M	T	W	T	F	S
						1
2	3	4	5	6	7	8
9	10	11	12	13	14	15
16	17	18	19	20	21	22
23	24	25	26	27	28	29
30						

December '25

S	M	T	W	T	F	S
	1	2	3	4	5	6
7	8	9	10	11	12	13
14	15	16	17	18	19	20
21	22	23	24	25	26	27
28	29	30	31			

January '26

S	M	T	W	T	F	S
				1	2	3
4	5	6	7	8	9	10
11	12	13	14	15	16	17
18	19	20	21	22	23	24
25	26	27	28	29	30	31

February '26

S	M	T	W	T	F	S
1	2	3	4	5	6	7
8	9	10	11	12	13	14
15	16	17	18	19	20	21
22	23	24	25	26	27	28

March '26

S	M	T	W	T	F	S
1	2	3	4	5	6	7
8	9	10	11	12	13	14
15	16	17	18	19	20	21
22	23	24	25	26	27	28
29	30	31				

April '26

S	M	T	W	T	F	S
			1	2	3	4
5	6	7	8	9	10	11
12	13	14	15	16	17	18
19	20	21	22	23	24	25
26	27	28	29	30		

May '26

S	M	T	W	T	F	S
					1	2
3	4	5	6	7	8	9
10	11	12	13	14	15	16
17	18	19	20	21	22	23
24	25	26	27	28	29	30
31						

June '26

S	M	T	W	T	F	S
	1	2	3	4	5	6
7	8	9	10	11	12	13
14	15	16	17	18	19	20
21	22	23	24	25	26	27
28	29	30				

July '26

S	M	T	W	T	F	S
			1	2	3	4
5	6	7	8	9	10	11
12	13	14	15	16	17	18
19	20	21	22	23	24	25
26	27	28	29	30	31	

FALL SEMESTER SCHEDULE PLANNER

	MONDAY	TUESDAY	WEDNESDAY	THURSDAY	FRIDAY	SATURDAY	SUNDAY
7:00							
		8:00		8:00			
9:00							
		9:30		9:30			
11:00							
		12:45		12:45			
1:00							
		2:15		2:15			
3:00							
		3:30		3:30			
5:00							
7:00							
9:00							

MONDAY

AUGUST 18, 2025

TUESDAY

AUGUST 19, 2025

WEDNESDAY

AUGUST 20, 2025

THURSDAY

AUGUST 21, 2025

FRIDAY

AUGUST 22, 2025

SATURDAY

AUGUST 23, 2025

SUNDAY

AUGUST 24, 2025

MONDAY

AUGUST 25, 2025

TUESDAY

AUGUST 26, 2025

WEDNESDAY

AUGUST 27, 2025

THURSDAY

AUGUST 28, 2025

FRIDAY

AUGUST 29, 2025

SATURDAY

AUGUST 30, 2025

SUNDAY

AUGUST 31, 2025

MONDAY

SEPTEMBER 1, 2025

Labor Day

TUESDAY

SEPTEMBER 2, 2025

WEDNESDAY

SEPTEMBER 3, 2025

THURSDAY

SEPTEMBER 4, 2025

FRIDAY

SEPTEMBER 5, 2025

SATURDAY

SEPTEMBER 6, 2025

SUNDAY

SEPTEMBER 7, 2025

MONDAY

SEPTEMBER 8, 2025

TUESDAY

SEPTEMBER 9, 2025

WEDNESDAY

SEPTEMBER 10, 2025

THURSDAY

SEPTEMBER 11, 2025

FRIDAY

SEPTEMBER 12, 2025

SATURDAY

SEPTEMBER 13, 2025

SUNDAY

SEPTEMBER 14, 2025

MONDAY

SEPTEMBER 15, 2025

TUESDAY

SEPTEMBER 16, 2025

WEDNESDAY

SEPTEMBER 17, 2025

THURSDAY

SEPTEMBER 18, 2025

FRIDAY

SEPTEMBER 19, 2025

SATURDAY

SEPTEMBER 20, 2025

SUNDAY

SEPTEMBER 21, 2025

MONDAY

SEPTEMBER 22, 2025

TUESDAY

SEPTEMBER 23, 2025

WEDNESDAY

SEPTEMBER 24, 2025

THURSDAY

SEPTEMBER 25, 2025

FRIDAY

SEPTEMBER 26, 2025

SATURDAY

SEPTEMBER 27, 2025

SUNDAY

SEPTEMBER 28, 2025

MONDAY

SEPTEMBER 29, 2025

TUESDAY

SEPTEMBER 30, 2025

WEDNESDAY

OCTOBER 1, 2025

THURSDAY

OCTOBER 2, 2025

FRIDAY

OCTOBER 3, 2025

SATURDAY

OCTOBER 4, 2025

SUNDAY

OCTOBER 5, 2025

MONDAY

OCTOBER 6, 2025

TUESDAY

OCTOBER 7, 2025

WEDNESDAY

OCTOBER 8, 2025

THURSDAY

OCTOBER 9, 2025

FRIDAY

OCTOBER 10, 2025

SATURDAY

OCTOBER 11, 2025

SUNDAY

OCTOBER 12, 2025

MONDAY

OCTOBER 13, 2025

Columbus Day

TUESDAY

OCTOBER 14, 2025

WEDNESDAY

OCTOBER 15, 2025

THURSDAY

OCTOBER 16, 2025

FRIDAY

OCTOBER 17, 2025

SATURDAY

OCTOBER 18, 2025

Sweetest Day

SUNDAY

OCTOBER 19, 2025

MONDAY

OCTOBER 20, 2025

TUESDAY

OCTOBER 21, 2025

WEDNESDAY

OCTOBER 22, 2025

THURSDAY

OCTOBER 23, 2025

FRIDAY

OCTOBER 24, 2025

SATURDAY

OCTOBER 25, 2025

SUNDAY

OCTOBER 26, 2025

MONDAY

OCTOBER 27, 2025

TUESDAY

OCTOBER 28, 2025

WEDNESDAY

OCTOBER 29, 2025

THURSDAY

OCTOBER 30, 2025

FRIDAY

OCTOBER 31, 2025

Halloween

SATURDAY

NOVEMBER 1, 2025

SUNDAY

NOVEMBER 2, 2025

MONDAY

NOVEMBER 3, 2025

TUESDAY

NOVEMBER 4, 2025

Election Day

WEDNESDAY

NOVEMBER 5, 2025

THURSDAY

NOVEMBER 6, 2025

FRIDAY

NOVEMBER 7, 2025

SATURDAY

NOVEMBER 8, 2025

SUNDAY

NOVEMBER 9, 2025

MONDAY

NOVEMBER 10, 2025

TUESDAY

NOVEMBER 11, 2025

Veteran's Day

WEDNESDAY

NOVEMBER 12, 2025

THURSDAY

NOVEMBER 13, 2025

FRIDAY

NOVEMBER 14, 2025

SATURDAY

NOVEMBER 15, 2025

SUNDAY

NOVEMBER 16, 2025

MONDAY

NOVEMBER 17, 2025

TUESDAY

NOVEMBER 18, 2025

WEDNESDAY

NOVEMBER 19, 2025

THURSDAY

NOVEMBER 20, 2025

FRIDAY

NOVEMBER 21, 2025

SATURDAY

NOVEMBER 22, 2025

SUNDAY

NOVEMBER 23, 2025

MONDAY

NOVEMBER 24, 2025

TUESDAY

NOVEMBER 25, 2025

WEDNESDAY

NOVEMBER 26, 2025

THURSDAY

NOVEMBER 27, 2025

Thanksgiving

FRIDAY

NOVEMBER 28, 2025

SATURDAY

NOVEMBER 29, 2025

SUNDAY

NOVEMBER 30, 2025

MONDAY

DECEMBER 1, 2025

TUESDAY

DECEMBER 2, 2025

WEDNESDAY

DECEMBER 3, 2025

THURSDAY

DECEMBER 4, 2025

FRIDAY

DECEMBER 5, 2025

SATURDAY

DECEMBER 6, 2025

SUNDAY

DECEMBER 7, 2025

MONDAY

DECEMBER 8, 2025

TUESDAY

DECEMBER 9, 2025

WEDNESDAY

DECEMBER 10, 2025

THURSDAY

DECEMBER 11, 2025

FRIDAY

DECEMBER 12, 2025

SATURDAY

DECEMBER 13, 2025

SUNDAY

DECEMBER 14, 2025

MONDAY

DECEMBER 15, 2025

TUESDAY

DECEMBER 16, 2025

WEDNESDAY

DECEMBER 17, 2025

THURSDAY

DECEMBER 18, 2025

FRIDAY

DECEMBER 19, 2025

SATURDAY

DECEMBER 20, 2025

SUNDAY

DECEMBER 21, 2025

MONDAY

DECEMBER 22, 2025

TUESDAY

DECEMBER 23, 2025

WEDNESDAY

DECEMBER 24, 2025

Christmas Eve

THURSDAY

DECEMBER 25, 2025

Christmas Day

FRIDAY

DECEMBER 26, 2025

SATURDAY

DECEMBER 27, 2025

SUNDAY

DECEMBER 28, 2025

MONDAY

DECEMBER 29, 2025

TUESDAY

DECEMBER 30, 2025

WEDNESDAY

DECEMBER 31, 2025

New Year's Eve

THURSDAY

JANUARY 1, 2026

New Year's Day

FRIDAY

JANUARY 2, 2026

SATURDAY

JANUARY 3, 2026

SUNDAY

JANUARY 4, 2026

SPRING SEMESTER SCHEDULE PLANNER

	MONDAY	TUESDAY	WEDNESDAY	THURSDAY	FRIDAY	SATURDAY	SUNDAY
7:00							
		8:00		8:00			
9:00							
		9:30		9:30			
11:00							
		12:45		12:45			
1:00							
		2:15		2:15			
3:00							
		3:30		3:30			
5:00							
7:00							
9:00							

MONDAY

JANUARY 5, 2026

TUESDAY

JANUARY 6, 2026

WEDNESDAY

JANUARY 7, 2026

THURSDAY

JANUARY 8, 2026

FRIDAY

JANUARY 9, 2026

SATURDAY

JANUARY 10, 2026

SUNDAY

JANUARY 11, 2026

MONDAY

JANUARY 12, 2026

TUESDAY

JANUARY 13, 2026

WEDNESDAY

JANUARY 14, 2026

THURSDAY

JANUARY 15, 2026

FRIDAY

JANUARY 16, 2026

SATURDAY

JANUARY 17, 2026

SUNDAY

JANUARY 18, 2026

MONDAY

JANUARY 19, 2026

TUESDAY

JANUARY 20, 2026

WEDNESDAY

JANUARY 21, 2026

THURSDAY

JANUARY 22, 2026

FRIDAY

JANUARY 23, 2026

SATURDAY

JANUARY 24, 2026

SUNDAY

JANUARY 25, 2026

MONDAY

JANUARY 26, 2026

TUESDAY

JANUARY 27, 2026

WEDNESDAY

JANUARY 28, 2026

THURSDAY

JANUARY 29, 2026

FRIDAY

JANUARY 30, 2026

SATURDAY

JANUARY 31, 2026

SUNDAY

FEBRUARY 1, 2026

MONDAY

FEBRUARY 2, 2026

Groundhog Day

TUESDAY

FEBRUARY 3, 2026

WEDNESDAY

FEBRUARY 4, 2026

THURSDAY

FEBRUARY 5, 2026

FRIDAY

FEBRUARY 6, 2025

SATURDAY

FEBRUARY 7, 2026

SUNDAY

FEBRUARY 8, 2026

MONDAY

FEBRUARY 9, 2026

TUESDAY

FEBRUARY 10, 2026

WEDNESDAY

FEBRUARY 11, 2026

THURSDAY

FEBRUARY 12, 2026

FRIDAY

FEBRUARY 13, 2026

SATURDAY

FEBRUARY 14, 2026

Valentine's Day

SUNDAY

FEBRUARY 15, 2026

MONDAY

FEBRUARY 16, 2026

TUESDAY

FEBRUARY 17, 2026

WEDNESDAY

FEBRUARY 18, 2026

THURSDAY

FEBRUARY 19, 2026

FRIDAY

FEBRUARY 20, 2026

SATURDAY

FEBRUARY 21, 2026

SUNDAY

FEBRUARY 22, 2026

MONDAY

FEBRUARY 23, 2026

TUESDAY

FEBRUARY 24, 2026

WEDNESDAY

FEBRUARY 25, 2026

THURSDAY

FEBRUARY 26, 2026

FRIDAY

FEBRUARY 27, 2026

SATURDAY

FEBRUARY 28, 2026

SUNDAY

MARCH 1, 2026

MONDAY

MARCH 2, 2026

TUESDAY

MARCH 3, 2026

WEDNESDAY

MARCH 4, 2026

THURSDAY

MARCH 5, 2026

FRIDAY

MARCH 6, 2026

SATURDAY

MARCH 7, 2026

SUNDAY

MARCH 8, 2026

MONDAY

MARCH 9, 2026

TUESDAY

MARCH 10, 2026

WEDNESDAY

MARCH 11, 2026

THURSDAY

MARCH 12, 2026

FRIDAY

MARCH 13, 2026

SATURDAY

MARCH 14, 2026

SUNDAY

MARCH 15, 2026

MONDAY

MARCH 16, 2026

TUESDAY

MARCH 17, 2026

St Patrick's Day

WEDNESDAY

MARCH 18, 2026

THURSDAY

MARCH 19, 2026

FRIDAY

MARCH 20, 2026

SATURDAY

MARCH 21, 2026

SUNDAY

MARCH 22, 2026

MONDAY

MARCH 23, 2026

TUESDAY

MARCH 24, 2026

WEDNESDAY

MARCH 25, 2026

THURSDAY

MARCH 26, 2026

FRIDAY

MARCH 27, 2026

SATURDAY

MARCH 28, 2026

SUNDAY

MARCH 29, 2026

MONDAY

MARCH 30, 2026

TUESDAY

MARCH 31, 2026

WEDNESDAY

APRIL 1, 2026

THURSDAY

APRIL 2, 2026

FRIDAY

APRIL 3, 2026

SATURDAY

APRIL 4, 2026

SUNDAY

APRIL 5, 2026

MONDAY

APRIL 6, 2026

TUESDAY

APRIL 7, 2026

WEDNESDAY

APRIL 8, 2026

THURSDAY

APRIL 9, 2026

FRIDAY

APRIL 10, 2026

Good Friday

SATURDAY

APRIL 11, 2026

SUNDAY

APRIL 12, 2026

Easter

MONDAY

APRIL 13, 2026

TUESDAY

APRIL 14, 2026

WEDNESDAY

APRIL 15, 2026

THURSDAY

APRIL 16, 2026

FRIDAY

APRIL 17, 2026

SATURDAY

APRIL 18, 2026

SUNDAY

APRIL 19, 2026

MONDAY

APRIL 20, 2026

TUESDAY

APRIL 21, 2026

WEDNESDAY

APRIL 22, 2026

THURSDAY

APRIL 23, 2026

FRIDAY

APRIL 24, 2026

SATURDAY

APRIL 25, 2026

SUNDAY

APRIL 26, 2026

MONDAY

APRIL 27, 2026

TUESDAY

APRIL 28, 2026

WEDNESDAY

APRIL 29, 2026

THURSDAY

APRIL 30, 2026

FRIDAY

MAY 1, 2026

SATURDAY

MAY 2, 2026

SUNDAY

MAY 3, 2026

MONDAY

MAY 4, 2026

TUESDAY

MAY 5, 2026

Cinco de Mayo

WEDNESDAY

MAY 6, 2026

THURSDAY

MAY 7, 2026

FRIDAY

MAY 8, 2026

SATURDAY

MAY 9, 2026

SUNDAY

MAY 10, 2026

Mother's Day

MONDAY

MAY 11, 2026

TUESDAY

MAY 12, 2026

WEDNESDAY

MAY 13, 2026

THURSDAY

MAY 14, 2026

FRIDAY

MAY 15, 2026

SATURDAY

MAY 16, 2026

SUNDAY

MAY 17, 2026

NOTES